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Court

SUPREME COURT

Date

1998-04-20

Appeal No.

WRIT PETITIONS NOS. 387, 448 AND 453 OF 1997

Judge

SYED MANZOOR HUSSAIN GILANI, CHAUDHARY MUHAMMAD TAJ, MUHAMMAD SIDDIQUE FAROOQI AND MUHAMMAD

Parties

GHULAM MUSTAFA MUGHAL, ADVOCATE SUPREME COURT, MUZAFFARABAD (PETITIONER) VERSUS 1. AZAD GOVT. THROUGH ITS CHIEF SECRETARY, MUZAFFARABAD2. SECRETARY LAW, JUSTICE AND PARLIAMENTARY AFFAIRSDEPARTMENT, MUZAFFARABAD3. AJ&K LEGISLATIVE ASSEMBLY THROUGH ITS SECRETARY,MUZAFFARABAD4. AZAD JAMMU & KASHMIR COUNCIL THROUGH ITS SECRETARY, ISLAMABAD RESPONDENTSWRIT PETITION NO 448971 GENUINE RIGHTS COMMISSION THROUGH ASHFAQ HUSSAIN KIANI ADVOCATE2 MUHAMMAD HABIB ZIA ADVOCATE3 ZAFAR SULTAN KIANI ADVOCATE PETITIONERS. VERSUS 1. IFTIKHAR HUSSAIN BUTT, SECRETARY LAW, JUSTICE AND PARLIMENTARY AFFAIRS DEPARTMENT, MUZAFFARABAD2. SARDAR MUHAMMAD NAWAZ KHAN JUDGE, SHARIAT COURT, MUZAFFARABAD3. AZAD GOVT. THROUGH ITS CHIEF SECRETARY,MUZAFFARABAD4. REGISTRAR, SHARIAT COURT, MUZAFFARABAD5. AZAD JAMMU AND KASHMIR COUNCIL THROUGH ITS SECRETARY, ISLAMABAD6. AJ & K LEGISLATIVE ASSEMBLY THROUGH ITS SECRETARY, MUZAFFARABAD (RESPONDENTS) WRIT PETITION NO 45397SYED SHAHID BAHAR ADVOCATEMEMBER CENTRAL BAR ASSOCIATION MUZAFFARABAD PETITIONER VERSUS 1. AZAD GOVT. THROUGH ITS CHIEF SECRETARY, MUZAFFARABAD '2. SECRETARY LAW, JUSTICE AND PARLIMENTARY AFFAIRSDEPARTMENT, MUZAFFARABAD (RESPONDENTS)

Lawyers

GHULAM MUSTAFA MUGHAL, ASHFAQ HUSSAIN KIANI AND SYED SHAHID BAHAR FOR PETITIONERS. M/S. ADVOCATE GENERAL, KHAWAJA SHAHAD AHMED AND CHAUDHRY MUHAMMAD IBRAHIM ZIA FOR RESPONDENTS.

Statutes

AJK SHARIAT COURT ORDINANCE (XL OF 1997) HUDOOD LAWS AJK PENAL CODE - S. 338-D AJK FAMILY COURTS ACT, 1993 - S. 14(1) AJK EHTESAB ACT, 1997 - S. 2C AND S. 10
AJK SHARIAT COURT ORDINANCE (XL OF 1997) AJK ISLAMI TAZIRATI QAWANIN NAFAZ ACT, 1974 - SS. 25, 31 AJK SHARIAT COURT ACT, 1993 - SS. 9, 10, 11(2), 13C, 14, 23 HIGH COURT AJK CONSTITUTION ACT, 1974 - S. 44 AJK SHARIAT COURT

Judgment

MAJORITY JUDGMENT SYED MANZOOR HUSSAIN GILANI, J. (Chaudhary Muhammad Taj, J. agreeing).- The above-captioned writ petitions under section 44 of Azad Jammu and Kashmir Interim Constitution Act, 1974 involve the identical facts and points of law, hence were heard together and are decided through the common judgment.

2. The petitioners in all the petitions are Advocates of High Court, who have called in question the constitutionality and legality of Azad Jammu and Kashmir Shariat Court and powers conferred on it under different laws. In the petition filed by Genuine Rights Commission and others, the appointment of the Judges in the Shariat Court is also called in question.

3. The relevant facts as stated in Ghulam Mustafa Mughal's case are that petitioner being a State Subject, Advocate of the Supreme Court and presently holding the office of the President of Central Bar Association, Muzaffarabad believes in supremacy of the Constitution, rule of law and independence of judiciary. It is stated that under the Azad Jammu and Kashmir Interim Constitution Act, 1974 (hereinafter to be referred as the Constitution), the Supreme Court and High Court are created under sections. 42 and 43 respectively. Section 46 of the Constitution authorises the establishment of such other Courts which are necessary for the purpose of any law. Section 47 of the Constitution authorises the legislature to provide for the establishment of the Administrative Courts and Tribunals with exclusive jurisdiction for matters mentioned in clauses (b) and (c) of Section 47 of the Constitution. The High Court is vested with the powers of superintendence and control over the Courts subordinate to it under section 46 of the Constitution. It is alleged that respondents have enacted Azad Jammu and Kashmir Shariat Court Act, 1993, Azad Jammu and Kashmir Family Courts Act, 1993 and Islami Tazirati Owaneen Nafaz Act, 1974 (hereinafter to be referred as Islamic Penal Laws Act). The right of appeal under Section 25 of Islamic Penal Laws Act, and under the Family Courts Act is vested in the Shariat Court by taking away the appellate and revisional and even Constitutional jurisdiction of the High Court which amounts to creating a judiciary parallel to High Court. According to the petitioners, the provisions of law which exclude the jurisdiction of the High Court amount to violation of Section 46 of the Constitution under which all the Courts created under law are subordinate to the High Court and subject to its control and superintendence. It is further stated that in view of amendment in Penal Code and Criminal Procedure Code in 1995 the Islamic Penal Laws Act stands repealed, but the provisions of appeal to Shariat Court still remain there which is a violation of the Constitution. It is also alleged that appointments to the office of Chief Justice and Judges of the Shariat Court and the presiding officers of the subordinate Courts and Tribunals is at the sweet will of the Government/the President without consultation of Chief Justices of Supreme Court and the High Court and political involvement in such appointments has shaken the public confidence in the institutions. According to the petitioner such mode of appointment of Judge erodes the independence of judiciary. It is also solicited that to achieve the object of independent judiciary, it is obligatory for the Government to place sufficient funds at the disposal of judiciary so that no hardship is created in the administration of justice. The petitioner has also alleged that all rules empowering the Government in making appointments and promotions in the judiciary are violative of the Constitution which require to be declared as null and void. It is prayed that Section 25 of the Islamic Penal Laws Act and Section 9 of the Family Courts Act, be declared as ultra vires the Constitution and a direction be issued to the Government not to make any appointment in the Shariat Court, special Tribunals and administrative Courts without consultation of the Chief Justices of the Supreme Court and High Court. The petitioner has also called in question the Special Courts for Speedy Trial Ordinance, 1993, whereby the jurisdiction of the Supreme Court and High Court is barred by creating Special Courts thereunder. It was however, stated at bar during the course of arguments that this Ordinance is not in force now and

has lapsed.

4. The respondents have submitted parawise written statement in reply to the petition and raised the preliminary objections to the maintainability of the writ petition stating that the petitioner is not aggrieved person. He is estopped from challenging the laws which are in force since long and the petition is actuated with malice and suffers from laches. It is also alleged that since the Judges of the High Court have also been performing the functions of the Judges of the Shariat Court, they cannot be Judges in their own cause to decide against the Shariat Court. It is also alleged that under Section 6 of the Shariat Court Act, every citizen is involved in the process of Islamization, by making the process of approach to the Shariat Court easier and the Shariat Court is empowered to declare any law as void in case of its being inconsistent with the Injunctions of Islam as laid down in the Holy Quran and Sunnah. It is stated that Ss. 46 and 47 of the Constitution authorise creation of Courts and Tribunals in addition to the Supreme Court and High Court. It is also alleged that superintendence and control under section 46 of the Constitution refers to the Courts subordinate to the High Court only and not others.

5. In the petition filed by Syed Shahid Bahar, Advocate almost similar facts and grounds are alleged against the creation of the Shariat Court as being a parallel Court to the High Court, as are alleged in Ghulam Mustafa Mughal's case. However, Shahid Bahar has in his petition in addition to above, stated that under section 3 of the Constitution the religion of the State is Islam and under section 31(5), the legislature cannot enact any law repugnant to the teachings of Holy Quran and Sunnah, all existing laws are to be brought in conformity therewith. Under Shariat Act, 1989, all the Courts are bound to decide the cases according to Shariat and Supreme Court and High Court are fully competent to strike down any law which is found in conflict with Quran and Sunnah. It is further alleged that the Government on the demand of the Bar Associations had made a bona fide attempt to abolish parallel judicial system by enacting an Ordinance on 20.5.1997, whereby the Chief Justice and Judges km of the High Court were designated as the Chief Justice and Judges of the Shariat Court, but through another Ordinance promulgated on 16.10.1997, the composition of Shariat Court is again changed to adjust and accommodate their favourites in Shariat Court on political basis in violation of the Constitution. Service Laws of the land and various judgments of the superior Courts of Azad Kashmir. It is alleged that it was the duly of the respondents to place Ordinance promulgated on 20.5.1997 before the Assembly in view of Section 41(2) of the Constitution and rule 34 of the Rules of Business and its withholding is mala fide and with ulterior motives. It is further alleged that promulgation of Ordinance is violative of the Constitution and an encroachment on the powers of the Assembly. It is prayed that the Ordinance promulgated on 16.10.1997 be declared as against the provisions of Ss. 41, 42 and 46 of the Constitution.

6. In reply the respondents have raised the similar objection to the maintainability of the petition as in the case of Ghulam Mustafa Mughal. However, the promulgation of the Ordinances dated 20.5.1997 and 16.10.1997 is admitted and it is denied that the Ordinance dated 16.10.1997 creates any parallel judicial system. It is alleged that the Ordinance is issued by the President on the advice of the Prime Minister. Other allegations are refuted.

7. In the case of "Genuine Rights Commission", Mr. Ashfaq Hussain Kiani, Advocate who is the head of the Commission and two other Advocates have challenged the vires of the Shariat Court Act, 1993 on the ground that Ss. 6, 7 and 10 of the Act abridge the powers of the High Court vested in it under section 44 of the Constitution, under which the Court can declare any law ultra vires the Constitution and without lawful authority if found against Quran and Sunnah, so as to give effect to provisions of Ss. 3 and 31(5) of the Constitution, which ensure and guarantee the enforcement of law of Islam. The appointment of respondents Nos. 1 and 2 as Judges in the Shariat Court is also called in question on the ground that they are appointed with the status,

powers and terms and conditions of Judges of the High Court without consultation of Chief Justices of the Supreme Court and High Court and without advice of the Azad Jammu and Kashmir Council which is mandatory for appointment of a Judge of the High Court. It is also alleged that no criteria for appointment of Judges in the Shariat Court is provided by law. It is stated that a parallel High Court is created by constitution of the Shariat Court and the such jurisdiction is conferred upon it under subordinate law, which vests in the High Court under the Constitution.

8. Similar objections and statement is furnished in rejoinder to the petition as in the other petitions with the addition that powers of the High Court under section 44 of the Constitution do not cater the powers vested in the Shariat Court under section 6 of the Shariat Court Act and exclusive jurisdiction for the purpose is vested in the Shariat Court which does neither offend any provision of the Constitution nor create a parallel High Court. It is also stated that appointment of Judges in the Shariat Court is made in accordance with the procedure laid down in the law and status of the office of Judge of the High Court is not lowered down if the pay and privileges of that office are granted to some other i.e. (Judges of Shariat Court).

9. The learned Advocates for the parties are, heard. Each of the Advocates representing the parties in the above cases is heard. Shahid Bahar's case was argued by Mr. Ghulam Mustafa Mughal while the other two cases were argued by the petitioners in person. The respondents were represented by M/s. Shiraz Kayani, Advocate General, Khawaja Shahad Ahmed and Chaudhary Muhammad Ibrahim Zia. All of them were heard.

10. The learned Advocates appearing for the petitioners supporting and relying on each other arguments inter alia contended that the powers of High Court are withdrawn and vested in Shariat Court under section 6. Shariat Court is made at par and parallel to High Court under Ss. 7 and 8 and jurisdiction of Supreme Court and High Court is barred under section 10 of the Shariat Court Act which amounts to violation of Ss. 42, 44 and 46 of the Constitution, that powers of High Court are withdrawn and vested in Shariat Court under section 25 of Islamic Penal Laws Act, and Section 14 of the Family Court Act, that by creation and continuance of the Shariat Court an impression is created that Shariat is enforced by one Court only and the rest of the Courts do not administer Shariat which is against the provisions of Ss. 3 and 31(3) of the Constitution, and Shariat Enforcement Act, 1989, that under section 46(2) of the Constitution, all other Courts subordinate to the High Court are subject to the control and superintendence of the High Court except those established under section 47, while the provisions of the Shariat Court negate the concept of superintendence and control of the High Court, that the Judges of the Shariat Court are put at par with the Judges of the High Court in the matters of pay, privileges, tenure and powers, while no process of judging and evaluating their suitability, eligibility and competence is provided and door is left open for political appointments, thus shaking the confidence of general public in the judiciary as a whole which erodes upon the independence and integrity of the judiciary, that the appointments of Judges in the Shariat Court are politically motivated and the same are made without following the due process of law regulating the induction in service of the State as interpreted by the higher judiciary, that transferring powers of the High Court to the Shariat Court in matters of appeal and revision under sections 299 to 337 of the Penal Code and other laws is violative of the Constitution that promulgation of Ordinance dated 16.10.1997 without placing the Ordinance dated 20.5.1997 before the Assembly is, violative of Section 41(2) of the Constitution and Rule 34 of the Rules of Business that in case establishment/continuance of the Shariat Court for special purpose is unavailable, the persons of special qualification are required to be appointed according to the prescribed rules, as Tehsil Qazis and District Qazis etc. are appointed.

11. The details of the arguments and case-law referred in support thereof by the Advocate for the

petitioners shall be discussed at relevant stages.

12. The learned Advocates appearing for respondents supporting and relying on each others' arguments inter alia that, the case-law referred by the petitioners does not apply to the case in hand, as the provisions of Pakistan and Indian Constitutions are different from the provisions of the Azad Kashmir Constitution, that the Judges of the High Court had been exercising the jurisdiction under Shariat Court Act, they cannot sit to decide the constitutionality of the Shariat Court when the question of their own jurisdiction is involved, that special, different and independent powers are conferred on the Shariat Court which were never exercised by the High Court, not have any powers of the High Court under section 44 of the Constitution been taken away through the Shariat Court Act, that the Shariat Court is not parallel to High Court, that the jurisdiction of the High Court is excluded under Pakistan and Indian Constitutions where Special Courts and Tribunals are set up for a purpose and the provisions of Shariat Court Act, are on the same pattern which is established for a limited jurisdiction, that the power of appointment of Judges vests in "Khalifa" under Islam, not in the Chief Justice the appointments of Judges are validly made by the President, that Section 46 of the Constitution authorises creation of Courts parallel and equal in status to the Supreme Court and the High Court in view of the words "in addition to Supreme Court and High Court", that only legislature is competent to confer jurisdiction on Courts under section 46(3) of the Constitution and this power cannot be questioned, that even if the powers under Ss. 23, 25 and 31 of Islamic Penal Laws are quashed, the powers under other Hudood Laws remain. Before discussing the merits of the case in the light of the arguments of the learned Advocate for the parties, it is felt proper to place on record the legislative history of composition and categories of Courts and method of induction in the judicial service, besides the jurisdictional competence of the Courts.

14. The judicial system, categories of Courts and induction in the judicial service was regulated by Azad Jammu and Kashmir Courts and Laws Code, 1948, which was revised in 1949 through which some additional provisions were added to the Code of 1948. The Courts and Laws Code was in fact the Magna Carta of judicial system in Azad Kashmir under which the High Court and all other Courts of civil and criminal jurisdiction were created and induction therein was regulated. The High Court used to be the principal Court of appeals and revisions against the judgments, decrees and sentences passed by the Courts of different categories with all the powers of induction into and removal from the service of the employees in judicial and administrative cadres of the judicial service, subject to approval of Government. The District Judge on the civil side and the Sessions Judge on the criminal side used to be the principal Courts of original jurisdiction at district level with the powers of Appellate Court against the judgments, decrees and sentences passed by the Civil and Criminal Courts subordinate to them, as the case may be.

15. In the year 1970 when the first regular Constitution for Azad Jammu and Kashmir called as Azad Jammu and Kashmir Government Act, 1970 was enacted, the High Court established under its Section 25 and the High Court functioning immediately before the Act was declared to be the High Court of Azad Jammu and Kashmir. The chapter of fundamental rights was introduced in the Act in 1971, through Amendment Act IX of 1971 and powers of the High Court were enlarged to issue writs and to enforce the fundamental rights. The subordinate hierarchy of the Civil and Criminal Courts remained same as established under Courts and Laws Code.

16. A significant change in the establishment/composition of Courts at the subordinate level on criminal side took place in 1974, when the Islamic Penal Laws Enforcement Act, 1974 (Act XI of 1974) was passed, whereunder a few Penal Laws of Islam i.e.

Qisas, Tazeer, Diyat and Hudood laws regarding offences against property were enforced. The composition of Criminal Courts was changed to the extent of trial of these offences. A Tehsil Qazi

at the Tehsil level with the Magistrate, and a Zilla Qazi at the District level with the Sessions Judge, was appointed for trial of cases under the Tel amir Prnal T iu/c Art rpfrrpH ahnpv Thp Pnnrts u/prp resnppfivel v nampH as Tehsil Court of Criminal Jurisdiction and District Court of Criminal Jurisdiction. The Tehsil Qazis and Magistrates are appointed by the Government on the basis of competitive examination held by the Public Service Commission for the posts according to the rules prescribing qualifications, while Sessions Judges and District Qazis are promoted from subordinate cardes of Sub- Judge/Magistrate and Tehsil Qazis by the Government on the recommendation of selection boards. The High Ceurt remained the Court of appeal and revision against the sentences and orders passed by District and Tehsil Courts of Criminal Jurisdiction, as the case may be and as regulated by the Code of Criminal Procedure.

17. Another significant rather revolutionary change in the Constitutional history of Azad Kashmir took place in 1974, when the Government Act, 1970, was repealed and Interim Constitution Act, 1974 was introduced. Under the Act the composition of High Court remained same and the High Court already functioning was declared to be the High Ceurt under the new Act. Under the Constitution as in force, a Supreme Court for Azad Jammu and Kashmir is also established. Under the Constitution, the matters of federal nature are entrusted to the Azad Jammu and Kashmir Council, headed by the Prime Minister of Pakistan with other elected and nominated members and the rest of the matters of the provincial nature are left for Azad Kashmir Government and Assembly. The appointment of Judges including the Chief Justice in the Supreme Court and High Court as provided by the Constitution is to be made, on the advice of the Council, by the President of Azad Jammu and Kashmir.

18. In the year 1977, when Martial Law was imposed in Pakistan by the General Muhammad. £ia-iil-Haq, it also reverberated in Azad Kashmir in 1977, and the Azad Kashmir Assembly was dissolved. Elected Members of the Council, the Prime Minister and all other representative and political office holders ceased to hold office and a Chief Executive for Azad Kashmir was appointed as a repository of all powers, Following the foot steps of Chief Martial Law Administrator of Pakistan, an Ordinance called "Shariat Bench ot Superior Courts Ordinance, 1979" was enforced. It provided for constitution of bench consisting of three Muslim Judges of the High Court to be called as "Shariat Bench". Its sole function was to examine and decide question as to whether or not any law is repugnant to the Injunctions of Islam. It was followed by Azad Jammu and Kashmir Shariat Court Ordinance which was enforced in 1981, providing for a Court consisting of two Muslim members including the Chairman for the above-referred purpose.

The jurisdiction of all other Courts, including Supreme Court and the High Court was barred to entertain any matter which the Shariat Court had the power to adjudicate and determine. This Ordinance was again amended in the same year providing therein that the Court shaVI have such other jurisdiction as may be conferred on it by or under any law. Corresponding amendment was made on 3.3.1981 in Ss. 23, 25 and 31 of the Islamic Penal.Laws Act, conferring powers of reference, appeal, revision and confirmation of sentences of Hudood and Qisas to Shariat Court through Azad Jammu and Kashmir Shariat Court (Amendment) Ordinance, 1982. It was provided therein that "the Shariat Court shall have the powers as are vested in High Court while exercising civil and criminal jurisdiction, and in the Cr.P.C. the words High Court, Sessions Court and Magistrate 1st" Class shall be construed to mean Azad Jammu and Kashmir Shariat Court, District Criminal Court and Tehsil Criminal Court, as the case may be". Through further amendment in the Shariat Court Ordinance in 1982, the words "Chairman" and "Member" were substituted by the words "Chief Justice" and "Judges". The number of Judges was raised to two besides a Chief Justice. The qualification for Chairman/Chief Justice was prescribed as a person who is or has been or is qualified t© be a Judge of the Supreme Court and for Member/Judges, a person who is or has been or is qualified to be a Judge of the High Court. It may be noted that the Chief justice of the Supreme Court was the first Chairman of the Shariat Court, but later on

the Chief Justice of the High Court remained nominated/appointed as Chief Justice of the Shariat Court till Dec. 28, 1992, when senior most Judge of the High Court was appointed as Chief Justice of the Shariat Court for three years. In October, 1994 a former Additional Judge of the High Court was appointed as a Judge of the Shariat Court for three years, besides a permanent Judges of the High Court continuing as Judge of the Shariat Court. The powers under the Shariat Court Act were exercised by the Judges or a former Judges of the High Court who were duly inducted and appointed as Judges in the High Court in accordance with the provisions of the Constitution A very important amendment was made in the Shariat Court Act on Sep. 18, 1996 through Ordinance No. XXXV of 1996. Relevant provision of amended Section 3 of the amending Ordinance is as follows:- "3. Amendment &f Section 3, Act IX of 1993- In the said Act, the section 3 shall be substituted as follows:- "3(1) There shall be constituted for the purpose of this Act, a Court to be called the Azad Jammu and Kashmir Shariat Court.

(2) The Chief Justice or Acting Chief Justice of the High Court, as the case may be, shall be the Chief Justice and Acting Chief Justice of the Shariat Court and all other Muslim Judges and Additional Judges of the High Court shall be Judges and Additional Judges of the Shariat Court: Provided that if the Chief Justice or Acting Chief Justice of the High Court is non-Muslim, he shall not act as Chief Justice or Acting Chief Justice of the Shariat Court and in that case, the senior most Muslim Judge of the High Court shall be appointed by the President of Azad Jammu and Kashmir to be the Chief Justice of Shariat Court till such time that a Muslim is appointed as Chief Justice of the High Court.

(3) The Judge of the Shariat Court holding office immediately before the commencement of this Ordinance shall continue to hold the office and perform functions as a Judge on the terms and conditions as were applicable to him, immediately before commencement of this Ordinance and shall be entitled to the same salary, allowances, privileges and pension as admission to a Judge of the High Court.

(4) The Principal seat of the Court shall be at Muzaffarabad and it may hold sittings at other District Headquarters from time to time as the Chief Justice may appoint.

19. This Ordinance was re-promulgated time and again (Ordinance dated 20.5.1997, referred in petitions is one of them) and not placed before the Assembly till October, 1997 when Ordinance No. XL impugned before the Court was promulgated on 16.10.1996, whereunder the appointments impugned in petition filed by Genuine Rights Commission and others are made.

Relevant provisions of this amending Ordinance may also be reproduced as under "3 The Azad Jammu and Kashmir Shariat Court. - (1) There shall be constituted for the purpose of this Ordinance a Court to be called the Azad Jammu and Kashmir Shariat Court.

(2) The Court shall consist of a Chief Justice and one or more Muslim Judges to be appointed by the President: Provided that a Judge of High Court may be appointed as a Chief justice of the Shariat Court for a period not exceeding three years.

(3) The Chief Justice of the High Court shall be the Chief Justice of the Shariat Court.

(4) A person shall not be appointed as a Judge of Shariat Court, unless:- (a) he has for a period, pr for periods aggregating not less than ten years, been an advocate or Pleader of the High Court of Azad Jammu and Kashmir or High Court in Pakistan; (b) he has for a period of not less than ten years held a judicial office out of which not less than three years shall have been as District and Sessions Judge.

(5) A Judge of Shariat Court who is not a Judge of High Court shall hold office until he attains the age of sixty-two years, unless he sooner resigns or is removed from office in accordance with law.

(6) The Judge of Shariat Court, other than the Judge of High Court, holding office at the time of commencement of this Ordinance shall be deemed to have been appointed under sub-section (2) and in terms of sub-section (7) The principal seat of the Court shall be at Muzaffarabad and it may hold sittings at other District Headquarters from time to time as the Chief Justice may appoint.

(8) Before entering upon office, the Chief Justice and a Judge of the Shariat Court shall make before the President or a person nominated by him, oath in the form set out in the Schedule.

(9) At any time when the Chief Justice or a Judge is absent or is unable to perform the function of his office, or it is necessary to increase the number of Judges temporarily, the President shall appoint another person qualified for the purpose, for such period as the President may determine, to act as Chief Justice or, as the case may be, Judge.

(10) The President may, at any time, in consultation with the Chief Justice, by order in writing modify the period of office of a Judge, who is appointed from Judges of the High Court.

(11) A Judge of Shariat Court who is not a Judge of the High Court shall be entitled to the same salary, allowances, pension and privileges as are admissible to a Judge of High Court in Pakistan." 20. Another significant change in the process of legislation took place in 1995, when penal provisions of Islamic Penal Laws Act were incorporated in Azad Penal Code through the Azad Penal Code (Amendment) Act, 1995 (Qisas and Diyat Act) (Act XII of 1995). The Islamic Penal Laws Act, therefore stands amended to the extent of penal provisions, however, the procedural provisions of the Act regulating the jurisdiction of the Courts at subordinate original and appellate level remain in tact and the Shariat Court remains the Court of reference, appeal and revision under sections. 23(2)(1), 23(7)(8)(9), 25 and 31. The penal provisions transposed in Azad Penal Code remain to be tried by Tehsil Criminal Court and District Criminal Court established under Penal Laws Act. An amendment was also made in the Code of Criminal Procedure, through Amendment Act, 1995, whereby the Courts established under Islamic Penal Laws Act, are incorporated in Section 6-A and the jurisdictional competence of each Court to try the offences is regulated by amendment in Schedule II of Act V of 1898 (The Code of Criminal Procedure in force in Azad Jammu and Kashmir).

21. Besides the offences finding place in Islamic Penal Laws Act, now transposed in Penal Code Amendment Act referred above, the Courts established under Islamic Penal Laws Act and amended Section 6-A of the Code of Criminal Procedure are also empowered to try offences under the following laws in accordance with their jurisdictional competence provided in amended Schedule II of the Code of Criminal Procedure:; (1) The Offences Against Property (Enforcement of Hudood) Act, 1985; (2) The Offence of Zina (Enforcement of Hudood) Act, 1985; (3) The Offence of Qazf (Enforcement of Hadd) Act, 1985; (4) The Prohibition (Enforcement of Hadd) Act, 1985.

22. The Shariat Court is vested with the appellate, revisional and other powers under the above laws in view of provisions of Ss.

23 , 25 and 31 of the Islamic Penal Laws Act besides specific provisions contained in the above referred laws, referring to provisions of Islamic Penal Laws Act.

23. 1 now proceed to discuss the case as argued at bar by the learned Advocates for the parties.

24. Section 6 of the Shariat Court Act under which it is alleged that powers of the High Court are withdrawn and vested in the Shariat Court is as follows;- .

"6. Powers, jurisdiction and functions of the Court.- (1) The Court may, on the petition of a citizen of Azad Jammu and Kashmir or the Azad Jammu and Kashmir Government, examine and decide the question whether or not any law or provision of law is repugnant to the Injunctions of Islam as laid down in the Holy Quran and the Sunnah of the Holy Prophet, hereinafter referred to as the Injunctions of Islam. * (2) If the Court decides that any law or provision of law is repugnant to the Injunctions of Islam, it shall set out in its decision.- (a) the reasons for its holding that opinion, and (b) the extent to which such law or provision is so repugnant and specify the day on which the decision shall take effect.

(3) If any law or provision of law is held by the Court to be repugnant to the Injunctions of Islam- (a) the President in the case of a law with respect to a matter not enumerated in Council List-, shall take steps to amend the law so as to bring such law or provision into conformity with the Injunctions of Islam; and (b) such law or provision shall, to the extent to which it is held to be so repugnant, cease to have effect on the day on which the decision of the Court takes effect.

25. The law is defined as follows under section 2(g) of Shariat Court Act: "Law includes any custom or usage having the force of law but for the purposes of exercising jurisdiction under section 6 does not include the AJ & K Interim Constitution Act, 1974, Muslim Personal Law, any law relating to the procedure of any Court or Tribunal or any law relating to the matters in the Council Legislative List".

The jurisdiction of Shariat Court is excluded by proviso first of Section 4 of the AJ&K Enforcement of Shariat Act, 1989, relating to the laws as follows "Provided that if the question relates to Muslim Personal Law, any Fiscal Law or any law relating to the levy and collection of taxes and fees or banking or insurance, practice and procedure, the Court shall refer the question to High Court which shall decide the question within sixty days." 26. Though a cursory reading of the above provision leads to assume that the powers analogous to Section 6, are not specifically vested in the High Court, and a special jurisdiction seems to have been vested under the above section in the special forum created in the name of Shariat Court. But perusal of provisions of Section 44(2)(a)(ii) of the Constitution are clear enough to effectively grant the relief visualised by section 6 above, Section 44(2)(a)(ii) of the Constitution is as follows:- Subject to this Act, the High Court may if it is satisfied that no other adequate remedy is provided by law- (a) on the application of any aggrieved party, make an order- (i) (ii) declaring that any act done or proceedings taken by a person performing functions in connection with the affairs of the State or a local authority has been done or taken without lawful authority, and is of no legal effect." 27. If any Law as visualized by Section 6 is challenged before the High Court under the above provision of the Constitution, the High Court, in view of Section 3 of the Constitution which ordains that "Islam shall be State religion of Azad Kashmir" and in view of Section 31(5) of the Constitution which commands that "No law shall be repugnant to the teachings and requirements of Islam as set out in the Holy Quran and Sunnah and all existing laws shall be brought in conformity with the Holy Quran and Sunnah" is under Constitutional obligation to declare the laws without lawful authority and of no legal effect, if the same is found against the State religion or teaching and requirements of Quran and Sunnah. The Supreme Court of Azad Jammu and Kashmir in a plethora of cases has held that the superior Courts are under the Constitutional obligation to declare a law found against the teachings of Quran and Sunnah of no legal effect and ignore the same. Reference may be made to the following cases: (1) "Azad Govt, of the State of Jammu and Kashmir and another v. Kashmir Timber Corporation" (PLD 1979 S.C. AJ &

K 139).

wherein it is held in para 62 of the judgment that:- "It was also contended that in sub-section (5) it is not stated that no law shall be made which is repugnant to the teachings and requirements of Islam but what is stated is that no law shall be repugnant to the teachings and requirements of Islam. On these premises it was argued that sub-section (5) does not relate to the future laws but has reference to the existing laws. It is strange that the Constitution Act should provide for the existing laws to be brought in conformity with the teachings and requirements of Islam as set out in the Holy Quran and Sunnah but should leave the Legislature free to make any law in future against the teachings and requirements of Islam. It is inconceivable that the Legislature should have so intended when it is unmistakably provided in Section 3 of the Constitution Act that Islam shall be the State religion of Azad Jammu & Kashmir and power of the Court to declare a law unconstitutional and void if it is repugnant to the teachings and requirements of Islam as set out in the Holy Qur'an and Sunnah." (2) "Muhammad Ashraf and another v. The State" (1982 P.Cr.L.J. 1286).

wherein it is held that: "We are of the view that any law not in conformity with the Holy Qur'an and Sunnah, in view of Section 34 of the Government Act, 1971, which makes it obligatory for the legislature to make all laws in future in accordance with Holy Qur'an and Sunnah, shall have to be construed as illegal and thus ignored." 28. In the case of " Chief Secretary and others v. Sardar Muhammad Abdul Qayyum Khan" (PLD 1983 SC AJ&K 95), it is held that "the justice has to be administered not only in his name but also according to his teachings." 29. In the case "Nargis Begum v. Muhammad Ibrahim" (PLJ 1982 SC AJ&K 35), it was held that "after coming into force of Interim Constitution Act, 1974, no law repugnant to Holy Quran and Sunnah can be enacted". In the case of "Azad Govt, and others v.

Muhammad Yunus Tahir and others" (1994 SCR 341) where in appeal against the judgment of the High Court, in which an Act of the Assembly besides other reasons was held against the Constitution for the reason of its being against the teachings of Holy Quran and Sunnah as well, in the Supreme Court, Mr. Justice Basharat Ahmed Sheikh, agreeing with the judgment of the High Court held "In this, in view of the matter, I respectfully follow the view in Kashmir Timber Corporation's case as explained in Nargis Begum's case. The Courts in Azad Kashmir can declare law to be invalid if it is in conflict with Holy Quran and Sunnah. The same view has been taken by the High Court and I uphold it." 30. The Supreme Court of Pakistan is also of the same view. It is held in the case of "Mian Aziz A. Sheikh v. The Commissioner of Income Tax" (PLD 1989 SC 613) that: "Article 227(1) not only requires that all existing laws shall be brought in conformity with the Injunctions of Islam but it also commands as a mandate that "No law shall be enacted which is repugnant to such injunctions". It is a command to all law-making bodies and functionaries. It will be anomalous to assume that although in Article 227 there is a command to all the legislative bodies not to enact any law which is repugnant to Islamic Injunctions, nevertheless it permits the functionaries of the State at all levels to go on enacting rules like those of evidence which have the force of law and which are repugnant to the Injunctions of Islam. It is in this context that the earlier made remarks about the conduct of State functionaries in Pakistan get illustrated, i.e. none would even assert that he has power or would lay down a rule having the force of law, which is repugnant to Injunctions of Islam. In the context of the present case, neither the legislature, under the command contained in Article 227(1) has the power to enact a law in any field including those relating to Taxes, which is repugnant to Injunctions of Islam, nor any other functionary including the Income-Tax Authorities has any such power to lay down any un-Islamic rule, which has a force of law.

It is true that with regard to the statutory enactments Article 227 in its Clause (2) commands that effect shall be given to the afore-discussed negative command in clause only in the manner

provided in this part (Part IX)" And thus it may be argued, it also applies to statutory rules. But this prohibition in clause (2) of Article 227 does not apply to decisions by functionaries of State where in the judicial, This is in addition to the reasoning which prevailed in the case Muhammad Bashir v. The State (PLD 1982 SC 139) which had approved the judgment of the Lahore High Court in the case of Haji Nizam Khan v. Additional District Judge, Layallpur and others (PLD 1976 Lahore 930). The approach then was that although it was not possible for the Courts to enforce Islamic Law in those fields which were fully occupied by statutory dispensation, yet, it was not only open to the Courts but they were duty bound to apply common law of Islam, its jurisprudence and philosophy, in fields which were not occupied by statutory dispensation.

Various examples of those subjects are enumerated in the concluding part of the judgment of Haji Nizam's case.

What was held in Muhammad Bashir's case and for that matter Haji Nizam's case, can now be further supported with reference to Articles 2-A and 227(1), of the Constitution as also, what has been held and enforced from amongst the principles of policy by this Court, in the case of Miss Benazir Bhutto." 31. Similarly the Federal Shariat Court of Pakistan which is created under the Constitution of Pakistan when confronted with a provision of law under Enforcement of Shariah Act, 1991, it was held in the case of "Muhammad Ismail Qureshi and others v. The Federal Govt, of Pakistan (1992 PSC 1201) that: "Article 3(2) makes an exception to the application of Shariah to the current political system in Pakistan it means that the Injunctions of Islam as laid down in the Holy Quran and Sunnah will not govern the political system of the country. It goes a step further when it says that the provisions of sub-section (2) shall prevail notwithstanding any judgment of the Federal Shariat Court or the Supreme Court. In effect this provision of law is violative of the provisions of the Constitution inasmuch as the term "law" as defined in Article 203-B (c) "includes many custom or usage having the force of law but does not include the Constitution, Muslim Personal Law, any law relating to the procedure of any Court or Tribunal or, until the expiration of ten years from the commencement of this Chapter, any fiscal law or any law relating to the levy and collection of taxes and fees or banking or insurance practice and procedure". After the expiry of ten years' period from the date of the commencement of Chapter 3-A, which contains the provisions relating to the establishment and jurisdiction of the Federal Shariat Court and the Shariat Appellate Bench of the Supreme Court, the Federal Shariat Court has got jurisdiction in all matters except the Constitution, Muslim Personal Law and law relating to the procedure of any Court or Tribunal. As provided in clause (3) of Article 203-DD of the Constitution, the Federal Shariat Court can be conferred upon such other jurisdiction by or under any law. But, its jurisdiction, cannot be taken away or curtailed by means of a law, as the jurisdiction conferred or barred by a specific provision of the Constitution cannot be interfered with by means of an ordinary law. Constitution is the fundamental law of the land. It is.

thus, a recognised and well-established principle of interpretation of statute that all laws should be subservient to the Constitution and must conform to it. The power and jurisdiction conferred on the Federal Shariat Court under the Constitution cannot be taken away, curtailed or abridged by an ordinary piece of legislation, such as the Shariah Act of 1991. Consequently the exception as provided in subsection (2) of Section 3 shall be invalid, insofar as it relates to the curtailment of the jurisdiction of this Court, which is quite contrary to the Constitutional provisions conferring jurisdiction on this Court." The provisions of Section 31(5) of our Constitution and Article 227 of Constitution of Pakistan in spirit and effect are identical.

32. In view of above it is clear that what the High Court can declare as without lawful authority and of no legal effect under section 44(2)(a)(ii) of the Constitution, the Shariat Court is also vested with the powers under section 6 to declare the same, which is to follow by amendment in the law. The un-Islamic law shall remain on the statute book till law is framed or Court specifies a

date therefor. It is definitely a violation of Section 31(5) of the Constitution. The declaration of the High Court is to take immediate effect, while the declaration of Shariat Court is not "adequate" as it is to be followed by further action. Though there is apparently no inconsistency between the two, but by vesting the power in the Shariat Court and excluding the jurisdiction of the High Court under sections 9 and 10 of the Shariat Court Act to entertain such like matters, the powers of the High Court stand excluded and withdrawn, which militate against the Constitution. The argument of the learned Advocates for the respondents that the jurisdiction vested in the Shariat Court under section 6 can be availed by every citizen, while the jurisdiction of the High Court under section 44 of the Constitution is restricted to an aggrieved person only, thus the scope of involving every person in the process of Islamization is enlarged in view of Section 6, suffers from inherent fallacy. In an Islamic State, every Muslim is an aggrieved person if he finds the State while legislating or Government while proceeding in any matter is acting against the injunctions and requirements of Islam. Even non-Muslims who are also bestowed with certain rights in Islam in an Islamic State can have them enforced, if the State is proceeding contrary to it. The jurisdiction of the High Court embraces every field of action whether legislative or executive and all types of laws and rules passed or enforced by any authority performing functions in connection with the affairs of Azad Jammu and Kashmir, while the scope of the jurisdiction of Shariat Court excludes considerable number of laws in view of definition of law given in the Shariat Court Act, Enforcement of Shariah Act, 1989, and all the laws made by the Council which has 52 items at its disposal for legislative and executive functions. The scope of Islamization of laws (if any) through the process of the Shariat Court, is limited, restricted, ineffective and inadequate, while it is otherwise under section 44 of the Constitution. The argument of the learned Advocates that when special jurisdiction is created the general jurisdiction gives way to it, is also a misconception of jurisprudence. The Constitution is grund norm and source of all laws and itself remains to be called as Constituting authorising and demarcating the legislative competence of different forums. The principle of special and general forum of jurisdiction applies in cases of laws made under the Constitution and to Courts created under law for trial purposes. Where a special jurisdiction is vested in a particular forum, the general jurisdiction of the Civil or Criminal Courts stands excluded e.g. Traffic Magistrate's Court, Forest Magistrate's Court, Drugs Court, Rent Controller's Court, etc. Where the Special Courts exist for the purpose, the general jurisdiction of Magistrates to that extent stands ousted. This principle is not applicable to Superior Courts which exercise jurisdiction under the Constitution. No instance or example is available from anywhere except Azad Jammu and Kashmir, where the High Court's appellate or revisional jurisdiction is excluded and a parallel institution to the High Court is set up as Appellate Court, appeal against which lies to the Supreme Court. There are, no doubt, cases where orders passed by some authority are made final under law without providing remedy of appeal before High Court or Supreme Court e.g. orders passed by Chief Election Commissioner, Custodian of Evacuee Property, Board of Revenue, Income Tax Tribunal etc, but these orders are open to challenge before the High Court in writ.

Various jurisdictions exercised by the Judges of High Court in the capacity of Multiple Allotment Judge, Companies Judge, Chairman Drugs Court, other Special Tribunals etc are also challengeable in the High Court under section 44 of the Constitution How can the Constitution accept the orders of sentences passed by a person not the Judge of High Court to be meant as orders of High Court ? Moreover special Tribunals being composed of Judges of High Court, the faith of general public is never shaken in the judiciary if any special task is assigned to them. Orders, sentences etc. passed by all the special Courts created under law in India and Pakistan, except those for which jurisdiction of the High Court is excluded by the Constitution itself, are appealable and revisable before the High Court either in its general supervisory jurisdiction or special designated jurisdiction as Tribunal or Appellate Tribunal e.g. Election Tribunals etc. If the jurisdiction of Supreme Court under section 42 or of the High Court under Section 44 or 46 is taken and vested in some other forum or Court, it would be a subversion of the Constitution to

accept that such a special law creates a special forum of jurisdiction, and the Constitutional jurisdiction shall give way to it. I may refer here a para from the case of *Azad Government v. Muhammad Yunas Tahir* (1994 SCR 341): I have already stated in the *Kashmir Timber Corporation* case it was laid down and subsequently affirmed in *Nargis Begum's* case that under sub-section (5) of Section 31 that legislature was forbidden from enacting a law repugnant to Quran and Sunnah. It was, therefore, a matter clearly covered by the Constitution itself. In the reproduced portion it is clearly recognised that the power to look into the vires to the law to find out whether it was violative of the Injunctions of Holy Quran and Sunnah was covered by the Constitution. Under what authority this power has been taken away? Shariat Court Act is a sub-constitutional law and this proposition cannot be accepted that a power vested in this Court, or any other Court for that matter, by the Constitution can be taken away by a subconstitutional provision. If the Azad Jammu and Kashmir Council makes a law in respect of a subject is not included in the relevant schedule and is within legislative power of the Assembly all Courts in Azad Jammu & Kashmir are empowered to ignore such a law because the Constitution is supreme and all judicial and executive functionaries have to implement the Constitution. So far as the High Court and this Court are concerned there is an additional jurisdiction in the shape of writ jurisdiction under section 44 of the Interim Constitution Act under which a law can be declared as void.

Therefore, to hold that the power has been taken away from this Court and given to the Shariat Court is to allow the legislature to erode the authority of this Court as well as the supremacy of the Constitution." 33. The constant views of the Supreme Court of Azad Jammu and Kashmir, the Supreme Court of Pakistan, Federal Shariat Court of Pakistan and the High Court of Azad Jammu and Kashmir are that any provision of law that takes away the jurisdiction of the High Court or any provision of law which is found against the Quran and Sunnah or the teaching and requirements of Quran and Sunnah is ultra vires the Constitution and the superior Courts are bound to declare them so. The view otherwise taken in the case of "*Raja Muhammad Niaz Khan v. Azad Government*" (PLD 1988 SC AJ&K 53), the above-referred authorities of the Supreme Court have neither been distinguished, reviewed nor held to be not applicable and overruled; and in view of difference of opinion in the case of "*Azad Government v. Muhammad Yunus Tahir*" (1994 SCR 341) on the point decided in *Raja Niaz's* case, I respectfully follow the view that this Court is competent to declare a provision of law found against the Constitution or Quran and Sunnah as unconstitutional, and is bound to follow Shariah, as Holy Quran says, "Whoso judgeth not by that which Allah hath revealed: such are disbelievers", 34. The arguments of the learned Advocates for the respondents that no jurisdiction of the High Court is taken away or that the jurisdiction analogous to Section 6 is not vested in the High Court is of no substance. There can be no cavil with the argument that High Court can exercise that jurisdiction only which is vested in it, and as the jurisdiction stated and discussed above stands vested in the High Court, the provisions of Section 6 of the Shariat Court Act militate against and stand parallel to High Court and thus against the Constitution. The learned counsel for the respondents *Khawaja Shahad Ahmed* argued that the Shariat Court provides forum and procedure, hence not challengeable in view of PLD 1981 AJK 123. The above-referred section confers powers and creates jurisdiction in the new forum by taking the jurisdiction vested in the High Court under the Constitution, it does not simply provide procedure. Procedure is prescribed by sub-sections (5) to (10) of Section 7 and by Ss. 9 and 11 of the Shariat Court Act, not by Section 6.

35. The other argument of the learned Advocates for the petitioners that Ss. 7, 8 and 9 of the Shariat Court Act, Section 14 of the Family Court Act, 1993 and Section 25 of the Islamic Penal Laws Act make the Shariat Court and its Judges at par and parallel to the High Court, which is a violation of Ss. 42, 43, 44 and 46 of the Constitution. For the perception of the argument, relevant provisions of Shariat Court Act, Islamic Penal Laws Act and Family Courts Act have to be reproduced as under:- Section 7 of Shariat Court Act:~ "Section 7(1). Power and procedure of

the Court.- For the purpose of the performance of its functions, the Court shall have the powers as are vested in the High Court, while exercising revisional, appellate and original civil and criminal jurisdiction.

(2) All directions and orders passed or process issued by the Court shall be enforceable and executed in Azad Jammu and Kashmir as if it has been issued by the High Court.

(3) The Court shall have power to conduct its proceedings and regulate its procedure in all respects as it deems fit.

(4) The Court shall have the power of a High Court to punish its own contempt".

Section 8 of Shariat Court Act: "8. Application of Code of Criminal Procedure, 1898 (Act V of 1898) and amendment. The provisions of the Code of Criminal Procedure, 1898 (Act V of 1898) shall apply, mutatis mutandis, in respect of cases under this Act: Provided that in the said Code the words High Court, Sessions Court and Magistrate First Class wherever occurring shall be construed to mean the Azad Jammu and Kashmir Shariat Court, District Criminal Court and Tehsil Criminal Court as the case may be, for the purposes of this Act.

Section 9 of Shariat Court Act: "9(1) Appeal to the Supreme Court.- (1) Any party to any proceedings before the Court under section 6 aggrieved by the final decision of the Court in such proceedings may, within sixty days of such decision, prefer an appeal to the Supreme Court.

(2) The provisions of sub-section (3) of Section 6 and sub-sections (4) to (8) of Section 7 shall apply to and in relation to the Supreme Court, as if reference to the provisions to Court were a reference to the Supreme Court.

(3) For the purposes of the exercise of the jurisdiction conferred by this Section, there shall be constituted in the Supreme Court consisting of two Muslim Judges of the Supreme Court to be called .the Shariat Appellate Bench, and reference in the preceding clauses to "Supreme Court" shall be construed as a reference to the Shariat Appellate Bench." Section 10 of Shariat Court Act: "10 Bar of Jurisdiction.- Save as provided under this Act no Court or Tribunal, including the Supreme Court and High Court shall entertain any proceedings or exercise any power or jurisdiction in any matter when the Shariat Court has the power to adjudicate and determine." Section 14 of the Family Courts Act, 1993: "14. Appeals.- (1) Notwithstanding anything provided in any other law for the time being in force, a decision or a decree passed by a Family Court shall be appealable to the Azad Jammu and Kashmir Shariat Court only.

(4) Subject to the provisions of sub-section (5) the order of the Azad Jammu and Kashmir Shariat Court shall be final.

(5) An appeal to the Supreme Court of Azad Jammu and Kashmir from judgment, decree or order of the Shariat Court shall lie only if the Supreme Court of Azad Jammu and Kashmir being satisfied, that the case involves a substantial question of law of public importance grants leave to appeal." Section 25 of Islamic Penal Laws Act: jlj l ijil w>LI? (1) 6 JIPI ji! ijil _5 i/I v jl u ,t JjjUj* **,/!US'. Jvl <£. <£. -if,yt JU' j <£. Jyi Uit (/Jl/cOU?! /[/J»\ 60 ' y jy7. jljf JL [/6 L»(* £ J?(U~ S6sb (i 60 v>'l j? JJ»L (X \'/ f£L\ef;\) y60v>/(J ji -/"if X *1998 Jljlf) 1/1 J\ ,*)l -*slr VL5?L -23 J; fe b" LA 337r 300 \P ** & A V# jljlxCx JI&l r f1952 Cl J/ jtAs J>- J&\ CL\ fcL-fy't. af IT kiXI iJA CSV f 36. Besides above, the following provisions of Islamic Penal Laws Act, relevant for the purpose may also be reproduced here: JftfJf Jj Jk JL tfjSj,} C~ Jt? L f17. Jjjj* jt (I) Ji tj"} (i) -cTif J "v/0*3 <o'oi bj> f L~lj WJf£>I (ji Zl i j* JTI LAe \f* /jf=-i/ > 0* Z-b *Jf£i L JSt g £ cU c/Ojj (A) y ir i-?IC>i jf' \Jl [° fjs~\c-fcJ\j* 2- juT wiyi j/1- JZ '&£/ us ji,f ijf \jt £~Z~lj \j\ j il*4 t-J cL/ Jbjj 37. The powers vested in

the Shariat Court under the above-referred provisions of Islamic Penal Laws are also extended/adopted for the purposes of: (1) The Offences Against Property (Enforcement of Hudood) Act, 1985.

(2) The Offence of Zina (Enforcement of Hudood) Act, 1985.

(3) The Offence of Qazf (Enforcement of Hudood) Act, 1985.

(4) The Prohibition (Enforcement of Hadd) Act, 1985.

(5) Section 338(d) of the Azad Penal Code (Amendment) Act, 1995 (Qisas and Diyat Act).

Section 2(c) of recently enforced Ehtesab Act, 1997, has also attracted our attention, which is as follows: " "Court" means a Bench of one or more Judges of the High Court or Shariat Court nominated by the Chief Justice of High Court or Shariat Court." 38. The Shariat Court alongwith High Court is vested with the concurrent jurisdiction under section 10, for trial of cases under the Ehtesab Act, 1997.

39. Though the Special Courts for Speedy Trials Ordinance, 1993, stands repealed as stated at bar, however, following two provisions thereof may be noted for perusal: "5(5). The Special Court shall have, in respect of a case triable by it, all the powers which a High Court has in relation to a trial before it under the Code, including the powers relating to the grant or cancellation of bail or recall or amendment of any order, and shall subject to this Ordinance as nearly as may be, follow the procedure provided in the Code for such trial".

"13. Appeal.-(1) An appeal against the final judgment of the Special Court shall lie to the Special Appellate Court established by the Government and consisting of person who is, or has been, or is » "A qualified for appointment as a Judge of the Supreme Court, hereinafter referred to as Special Appellate Court: Provided that a case involving sentence of death shall be heard and decided by a Special Appellate Court consisting of a Bench of not less than two Judges each one of whom is qualified for appointment as such and, in case of difference of opinion, the case shall be laid before another Judge of the Special Appellate Court, whose decision thereon shall be final.

(2) The Government may establish as many Special Appellate Courts as it may deem necessary." 40. Through the above provisions of law, the Shariat Court and its Judges are made equal to and at par with the High Court and its Judges, with the same powers and conditions of service etc. The provisions clearly visualize that an institution and service cadre parallel to High Court is intended and created, on which the normal appellate and revisional jurisdiction of the High Court, in civil and criminal matters is conferred. The Shariat Court is not created with a new field of jurisdiction and power, but the jurisdiction and powers already vested in the High Court are curtailed, taken away and vested in the Shariat Court. The provisions of Section 43 of the Constitution which authorise the appointment of Judges in the High Court after following a transparent process for exercising the jurisdiction and powers under the Constitution & various laws is rendered redundant when the Judges under the impugned law are appointed and vested with the jurisdiction and powers exercisable or vested in High Court and the word High Court is substituted by Shariat Court. The repealed Special Court for Speedy Trial Ordinance had created a parallel Supreme Court as well and thus the sub-section (1) of Section 42, creating Supreme Court to be the highest Court of appeal, was rendered redundant. Short of repealing specifically Ss. 43, 44 and 46 of the Constitution, all that could be done, is done under the above-referred laws. The Supreme Court is substituted by the word "Shariat Appellate Bench" under sub-section (3) of Section 9 of the Shariat Court Act, reducing the authority of the Constitutional Court to a

Court established under law. The nomenclature of the Supreme Court stands changed and its authority of being the highest Court of appeal is rendered redundant. The power to designate any two Judges of the Supreme Court at the Shariat Appellate Bench is clandestinely retained for intervention of the executive to constitute the bench itself, as the appeals from the Shariat Court decisions is not regulated by the Supreme Court Rules authorising the Chief Justice to constitute the benches. In the case of *Sheikh Khalid Mehmood v. Mallick Muhammad Irfan* (PU 1983 SC AJ&K 212) it is held that when the powers are conferred on a Judge of the High Court under special statute such powers would be deemed to be exercised in pursuance of the powers conferred by special enactment and not in his capacity as a Judge of the High Court. The same principle applies to appeal in the Supreme Court i.e. when the special law confers jurisdiction upon Supreme Court, it will not be Constitutional, but special jurisdiction under ordinary law.

41. All these provisions of law run counter to Section 42(10)(11) and (12) of the Constitution under which the appeal or a petition for leave to appeal in the Supreme Court lies against "the judgments, decrees, final orders or sentences of the High Court of Azad Jammu and Kashmir" or under section 47(3) of the Constitution against the judgment, decree or sentence of an Administrative Court or Tribunal only. The above-referred provisions of the Constitution do not visualise appeal against the judgments, decrees, orders or sentences of any other Court than the High Court or the Courts or Tribunals established under section 47 of the Constitution. The provisions of the Constitution under sub-section (2) of Section 42 which provide: "42(2). Subject to the provisions of this Act, the Supreme Court of Azad Jammu and Kashmir shall have such jurisdiction as is or may be conferred on it by this Act or by or under any law" mean that jurisdiction of the Supreme Court is not restricted to orders passed by High Court or Courts or Tribunals under section 47 of the Constitution in exercise of their Constitutional jurisdiction only, but orders passed by the above-referred Courts under any law may be made appealable to the Supreme Court as the highest Court of appeal. The framers of the Constitution never contemplated nor could it be, as it is in vogue in the contemporary world, that High Court can ever be by-passed or over-riden by any other Court or institution unless the Constitution itself creates a Court, and then bars or excludes the jurisdiction of the High Court, as in case of Section 47 of the Constitution, or Articles 203-A or 212 of the Constitution of Pakistan, or Articles 323-A and 323-B of the Constitution of India. The words "jurisdiction as is or may be conferred on it by this Act or by or under any Law" in Section 42(2) or almost the similar words provided in Section 44(1) of the Constitution that "the High Court shall have such jurisdiction as is conferred on it by this Act or by any other law" means the authority or power to decide the matters not only under the Constitution but under other laws as well. The power conferred and jurisdiction exercised by Courts created under law are also conferred on High Court and Supreme Court in their supervisory and appellate capacity in view of above provisions of the Constitution. In the absence of above words it would have been meant that the Supreme Court or the High Court being creations of the Constitution can exercise powers and jurisdiction limited to the extent of Constitution only. The provisions of Section 42(1)(11) and (12) of the Constitution imply in themselves that High Court being the first Constitutional Court of appeal, orders, judgments, decrees or sentences passed by any Court established under law are appealable to the Supreme Court as the highest Court of appeal, but after going through the appellate or revisional jurisdiction of the High Court. It further means that no appeal or leave to appeal lies to the Supreme Court unless order of any Court passed under law passes through the process of appeal or revision in the High Court. This is the requirement of Constitution as all Courts created under law are subordinate Courts and subject to control and superintendence of High Court under section 46. It is on the strength of Section 46 that High Court is a Court of record and first Constitutional Court of origin appellate jurisdiction. The High Court, therefore, cannot be by-passed nor can its jurisdiction be taken away in any matter except to the extent of matters for which the Tribunals and Courts under section 47 of the Constitution are created. No example of such like forum or jurisdiction is pointed out from counter part institutions and comparable law of

Pakistan and India, except in the cases where the jurisdiction of the High Court is excluded by the Constitution itself. Even Special Tribunals are manned by Judges of High Court or Supreme Court.

42. Under Chapter 3-A of the Constitution of Pakistan, the institution of Federal Shariat Court is created and specific jurisdiction is vested in it. The jurisdiction of the High Court in criminal and civil matters is neither taken away nor vested in the Shariat Court even though it is created under the Constitution, while under the legislation on the subject in Azad Kashmir, jurisdiction is taken away under sub-constitutional law. Under Article 203-A of the Constitution of Pakistan, the Court is vested the overriding jurisdiction, while under Article 203-G, the jurisdiction of the Supreme Court and High Court is barred to the extent of matters vested in the jurisdiction of Federal Shariat Court. Under Article 203-D the Court is vested with the similar powers, jurisdictions and functions as in Section 6 of the Azad Kashmir Shariat Court Act and under Article 203-DD only revisional jurisdiction in Hudood cases decided by the Criminal Courts is vested in it. The orders, judgments and sentences are specifically made appealable to the Supreme Court under Article 203-F. Had it been constitutionally permissible and allowed to establish a Court with the above provisions and jurisdiction in view of Articles 175 and 203 thereof, which are similar to Section 46 of our Constitution, there would have been no need of amending the Constitution and incorporating the above provisions. In spite of the Federal Shariat Court being a part of the Constitution, the Honourable Judges of the Supreme Court of Pakistan in the Judges case (PLD 1996 SC 324) writing their concurring but separate judgments opined as follows: "Per Ajmal Mian, J.- "The Federal Shariat Court is a new Court created by the Martial Law regime. It does not fit in the hierarchy of the Courts originally provided under the Constitution." "Per Manzoor Hussain Sial, J.- "Federal Shariat Court was established under the cover of the Martial Law and did not fit in the scheme of the existing Courts. It cannot possibly be equated with High Court." The learned Advocates for the respondents also contended that the Shariat Court in Azad Kashmir is established at the pattern and with the powers of Shariat Court as in Pakistan. They are wrong in stating so, for the reasons that Shariat Court in Pakistan is Federal Shariat Court, not Provincial. It is created under the Constitution, its jurisdiction is limited to revision in Hudood cases only besides the Shariat petitions, jurisdiction of the High Court is not excluded in criminal and civil matters, except for Shariat petitions; its Judges hold office for three years tenure only; except the Judges of the High Court who are appointed by transfer there, the other Judges are Religious Scholars. There is no commonality between the Shariat Court in Azad Kashmir and Federal Shariat Court, neither can it be. This also lends support to the contention that Shariat Court in Azad Kashmir with the above powers and jurisdiction is beyond the scope of the Constitution.

43. If the interpretation as put forward by the Advocate for the respondents Messrs Advocate General and Ch. Muhammad Ibrahim Zia, that jurisdiction can be conferred and withdrawn from any Court, including the Supreme Court and High Court, and Courts parallel to Supreme Court and High Court can be established under section 46 is accepted, the provisions of the Constitution establishing Supreme Court and High Court would not only become redundant, but the entire edifice of the State falls flat. Learned Advocates for the respondents have gone beyond the scope of the Constitution in arguing that in view of sub-section (2) of Section 46, the Courts parallel to Supreme Court and High Court can be established, the relevant sub-section may be reproduced: "46(2). There shall, in addition to the Supreme Court of Azad Jammu and Kashmir and the High Court, be such other Courts as are established by law".

Being misled by the words, "In addition to the Supreme Court of Azad Jammu, and Kashmir and the High Court" the Advocates contended that Courts parallel to Supreme Court and High Court can be created, while the creation of Additional Court is qualified by the word "Such other Courts as are established under Law". A Court established "Under "Law" can never be equal to a Court

established under Constitution, as the law can never be equal to Constitution. The arguments run counter to sub-section (1) of Section 16 as far as the High Court is concerned and sub-section (1) of Section 42, as far as the Supreme Court is concerned. Under the former, Courts created under law are subject to superintendence, and control of the High Court and under the latter, the Supreme Court is the highest Court of appeal.

44. This is fact an enabling provision. The Courts other than those authorised to be created under section 47 of the Constitution, fall within this Section. Thus the Court of District Judge, Sub-Judge and other Courts established under criminal, civil and special law, are the Courts which stand protected under the above provisions. It does not authorise creation of parallel Supreme Court and parallel High Court over and above the Constitution. It is a village lawyer's interpretation of the Constitution.

There is a similar provision in the Constitution of India as Article 274 authorising creation of additional Courts, which is never meant or used for creation of parallel Supreme Court or High Court but is always treated as an enabling provision for creating Courts under law at subordinate level to High Court.

45. Through the laws under challenge, the Criminal Procedure Code stands amended to the extent of those laws, as far as the High Court is concerned which is substituted by "Shariat Court". Thus the words 'sentence', 'order', 'conviction' and 'acquittal' finding place in Sec. 42(10) (11) and (12) have become redundant. The above provisions of the Constitution do not accept any order, judgment, decree, sentence or acquittal not passed by the High Court and if is so, no appeal lies to the Supreme Court which renders the provision of Sec. 42(1) as well redundant and of no legal effect whereunder the Supreme Court is the "Highest Court of Appeal". Suppose in the Code of Civil Procedure, the words "High Court" is substituted by the words "Shariat Court", no decree will be appealable to the Supreme Court. The only provision of the Constitution authorising the Supreme Court to hear appeals directly or by leave of the Court are Ss. 42 and 47 of the Constitution. If the provision of appeal to the Supreme Court provided by other law is construed as conferring the jurisdiction on Supreme Court, the jurisdiction thus exercised would be under "Law" not under the "Constitution". Finality is attached to the decision of the Supreme Court under section 42-B of the Constitution by virtue of its being a Court created under the Constitution and jurisdiction vested thereunder. Similarly, directions, orders and decrees of the Supreme Court are enforceable in Azad Jammu and Kashmir on the strength of powers of High Court, as provided by sub-section (2) of Section 42-A which reads 'any such direction, order or decree shall be enforceable throughout Azad Jammu and Kashmir as if it has been issued by the High Court' Unlike Pakistan and India, where the Supreme Courts are vested with the original jurisdiction, under Articles 184 (3) and Article 32 of their Constitutions respectively, almost concurrent with the High Court, because of their being 'Federal' and 'Appellate' Courts, the jurisdiction of the Supreme Court in Azad Kashmir is only appellate and revolves around Sections 42(10)(11)(12) and 47(3). If the High Court is taken off from Section 42(10)(11) and (12), the Supreme Court is left with no jurisdiction or power to exercise as a Constitutional Court. The provisions of appeal provided under the above-referred laws to the Supreme Court amount to creating a forum in the hierarchy of the Courts created under those laws while the Supreme Court is a Constitutional institution vested with the power and jurisdiction as enshrined and recognised by the Constitution. If this interpretation is adopted drastic consequences will follow e.g. jurisdiction exercised under law will be open to challenge under Constitution. The word 'jurisdiction' is defined in the case of "Javed Iqbal Khawaja v. Azad Govt, of the State of Jammu and Kashmir" (PLD 1994 AJ & K 26) as under:- "The word "Jurisdiction" signifies the scope of power and authority. The term "Court Jurisdiction" relates to power and authority of the Court to decide issues between the State and the citizens or among the citizens in exercise of its judicial functions. The limitation of Court jurisdiction confines to (i) subject-matter, (ii) territorial extent, (iii)

pecuniary value of the claim involved, (iv) nature of the dispute and (v) amenability of parties to the process of the Court." 46. The words 'power' and 'authority' being the nucleus, of the word 'jurisdiction' are vested in the Supreme Court under section 12(10)(11) and (12) of the Constitution only. All other powers not embraced by the provisions conforming to provisions of Section 42 or 47, are not the Constitutional powers. In the case captioned as "Sardar Muhammad Yasin Khan v. Govt, of Azad Jammu and Kashmir (PLD 1986 SC AJ&K 63) where Sardar Yasin Khan had filed an application under section 42-A of the Constitution read with Order XLIII, Rule 5 of the Supreme Court Rules, the same was dismissed by the Supreme Court with the following observations: "This Court indeed has very vast powers but those powers available under section 42-A read with Order XLIII, rule 5 of the Supreme Court Rules are only to be exercised within the realm of jurisdiction conferred on this Court by the Constitution. Section 42, sub-section (10), (11) and (12) of the Interim Constitution Act are the relevant provisions relating to the jurisdiction and the mode of its exercise. The powers under section 42-A of the Constitution though very vast, are, however, to be exercised, as already listed above, within the realm of the jurisdiction made available to this Court. To entertain this application, we believe, may amount to exercise a jurisdiction not conferred on this Court under section 42, sub-sections (10), (11) and (12) of the Azad Jammu and Kashmir Interim Constitution Act, 1974.

47. The above dictum of the Honourable Supreme Court is the true exposition of law which finds further support from the Supreme Court Rules of 1978 (which may be referred as Rules). No provision of the Rules recognises the Shariat Court. No appeal against the orders, judgments or sentences of the Shariat Court is entertainable under the Rules. Part (II) of the Rules regulates the Appellate jurisdiction of the Supreme Court and Orders XII, XIII, XXII and XXIII of the Rules respectively provide for civil appeals, petitions for civil leave to appeal, criminal appeals and petitions for special leave to appeal in criminal proceedings. All the above Rules do not cater for any appeal or petition in civil or criminal matters from any Court except the High Court. If the jurisdiction conferred by the provisions of Islamic Penal Laws Act or other laws is deemed as proper conferment, over and above the provisions of Ss. 42(10)(11)(12) of the Constitution, there is no reason not to entertain the proceedings under Order XXIV (application for enforcement of fundamental rights) Order XXV (Plaints) and rules connected therewith, of the Supreme Court Rules, 1978. But it cannot be, as the jurisdiction revolves around the realm of Section 42(10)(11)(12), Section 46-A and Section 47 of the Constitution. The similar rules finding place in the Pakistan and Indian Supreme Court Rules are to carry into effect the provisions of Articles 184(3) and 32 of their Constitution respectively. These are the original powers of the Supreme Court there which are not available to Supreme Court under Azad Jammu and Kashmir Constitution. The orders of the Courts and Tribunals mentioned in Section 47 of the Constitution are specially appealable in view of its sub-section subject to leave of the Court.

This Constitutional position lends support to the proposition that order, decree, judgment and sentences passed by all the Courts in Azad Kashmir established under law in exercise of the powers vested under section 46(2) of the Constitution, have to pass through the Hig.' Court. If there is any law by passing, ignoring, ousting or barring its jurisdiction and making the orders, judgments, decrees or sentences appealable to the Supreme Court, it amounts to creating a Court parallel and at par with High Court which clearly violates and makes redundant the provisions of Section 42(10)(11)(12) and Section 46 of the Constitution.

48. No provision of the Constitution nor of any law or rule can be deemed redundant inter se. All the laws and rules are subservient to the Constitution and all shall be read and interpreted in a way that they carry out the purpose of the Constitution. Jurisdiction of whatsoever nature conferred on any Court by law, has to be subject to the provisions of the Constitution and if any provision of the Constitution is rendered inoperative, dead, dormant or redundant as said in the legal phraseology, the jurisdiction is to give way to the Constitution. In the case of Commissioner

of Income Tax, Muzaffarabad v.

Messrs United Builders Corporation (1985 CLC 1102 (SC AJ&K)), it is held that: "It is a settled principle of rule of the interpretation of statutes that the interpretation rendering any provision of law as redundant or superfluous should be avoided. The interpretation of a statute must be such as would reconcile and harmonise the various provisions of law and not render the same as superfluous or redundant. Thus, in our view, the jurisdiction on this Court can be conferred by or under any law as visualised under sub-section (2) of Section 42 only if the law conferring such jurisdiction is not inconsistent with any of the provisions of the Interim Constitution Act. As under sub-section (12) of Section 42 in cases not covered by sub-section (11) of Section 42, the appeal to this Court would only be competent if the Supreme Court grants special leave to appeal, the provisions contained in Section 66-A(2) of the Income Tax Act and in Section 137 of the Income Tax Ordinance, 1979, so far as those pertained to the requirement of obtaining certificate of fitness from the High Court, stand impliedly repealed in view of the provisions contained in Section 42 of the Interim Constitution Act of 1974. It follows from this that if a case is not covered by sub-section (11) of Section 42 of the Interim Constitution Act or any other provision of the said Act, an appeal to this Court shall be valid only if special leave to appeal is granted under sub-section (12) of Section 42 and not otherwise." 49. I may refer here the opinion of the Supreme Court of India in relation to the Special Courts Bill 1978 reported as AIR 1979 SC 478: "The Constitution has thus made ample and effective provision for the establishment of a strong, independent and impartial judicial administration in the Country, with the necessary complement of Civil and Criminal Courts. It is not permissible for Parliament or a State Legislature to ignore or by-pass that Scheme of the Constitution by providing for the establishment of a Civil or Criminal Court parallel to a High Court in a State, or by way of an additional or extra or a second High Court, or a Court other than a Court subordinate to the High Court. Any such attempt would be unconstitutional and will strike at the independence of the judiciary which has so nobly been enshrined in the Constitution and so carefully nursed over the years." This is the true perception and position of the Constitution and the opinion is respectfully followed.

50. The contentions of the learned Advocates for the petitioners that the jurisdiction of the High Court is taken away by way by Ss. 6, 7, 8 and 10 of the Shariat Court Act, Section 25 and other sections of the Islamic Penal Laws Act, Hudood Laws and Section 14 of the Family Court Act referred hereinbefore, cannot be disagreed. Under the Constitution the powers of the High Court under section 44 are its original powers and authority, and under section 46, in its controlling and supervisory capacity over the Court created under the law. These powers are overriding and cannot be barred, nor can it ever be construed that the jurisdiction vested in the High Court is taken away by any law, except Constitution itself. Under section 44 of the Constitution the conditions of non-availability of other alternate adequate remedy and aggrieved person's test has to be satisfied before invoking the jurisdiction. The jurisdiction of the High Court under this section operates on every person and authority functioning in connection with the affairs of Azad Jammu and Kashmir, however, the 'Supreme Court', 'High Court' or a 'Court' or 'Tribunal' established under law relating to the defence services are excluded from the definition of the word 'person' under section 44 of the Constitution and the jurisdiction to that extent is excluded.

51. There is no doubt in the argument that the jurisdiction of the High Court through the above-referred laws is taken away and barred which vests in it under section 46(1) of the Constitution which says "the High Court shall superintend and control all other Courts that are subordinate to it." 52. The question arises as to what does the 'superintend' and 'control' and 'subordinate' mean. The provision is almost analogous to Article 203 of the Constitution of Pakistan and Article 227 of the Constitution of India. Both are respectively reproduced as follows:~ "203. High Court to superintend subordinate Courts. Each High Court shall supervise and control all Courts subordinate to it.

"227. Power of superintendence over all Courts by the High Court.-(1) Every High Court shall have superintendence over all Courts and Tribunals throughout the territories in relation to which it exercises jurisdiction." 53. The Supreme Courts of Pakistan and India have attend these provisions. In the case of "Muhammad Siddiq v. Syed Ali Shah and another" (PLD 1976 Lah. 293), it is held: "That the High Court has judicial control over the subordinate Courts under Article 203 of the Constitution, is well laid down in Mst. Gaman v. Taj Din Abdul Rehman v. Mst. Chaman Ara (2), Farida Parwin v. Qadeeruddin Ahmed Siddiqui (3) and Karim Bakhsh v. Mst. Mubarik Jan By exercising the aforesaid jurisdiction High Court can direct the Family Court to do what which it was bound by law to do." 54. In the case of "Sharaf Faridi and 3 others v. The Federation of Islamic Republic of Pakistan and another" (PLD 1989 Karachi 404), it is held: "I am inclined to hold that the supervision and control over the subordinate judiciary vested in the High Court under Article 203 of the Constitution keeping in view Article 175, is exclusive in nature, comprehensive in extent and effective in operation. It comprehends the administration power as to the working of the subordinate Courts and disciplinary jurisdiction over the subordinate judicial officers. In this view of the matter, any provision in an Act or any rule or a notification empowering any executive functionary to have administrative supervision and control over the subordinate judiciary will be violative of above Article 203 of the Constitution." This is upheld in appeal by the Supreme Court of Pakistan as reported in PLD 1994 SC 105.

55. In the case of "Mst. Khadija Bibi v. Abdul Wahid " (1980 CLC 2145) after discussing relevant provisions of the Constitution in force from time to time it is held: "This Article is verbatim reproduction of the Article found on the subject in Interim Constitution of 1972. Therefore, looking to the scheme of the Constitutional documents predecessor to the present Constitution and also the phraseology used in it, it is clear that by superintending or administrative jurisdiction of the High Court, what is meant is judicial superintendence over the subordinate Courts or say administrative control over such Courts in judicial matters. Such control does not travel beyond the scope of passing such orders which are necessary for ensuring that they are functioning in the best interest of law and justice.

As far as their judgments or orders are concerned they are otherwise under appellate or revisional jurisdiction of the High Court, so they do not find any coverage from this provision. This is also not meant for day to day administrative functions which are not judicial functions in nature. It is further evident from the history of the legislation on this point that only criterion to judge as to which are these subordinate Courts is whether the appellate or revisional jurisdiction of the High Court extends to such Courts. The other Courts or Tribunals not being in the direct hierarchy of the High Court are not covered by this phrase. It is a different matter that extraordinary jurisdiction enjoyed by the High Court under Article 199 of the Constitution, interference may be made with certain acts and orders of such Tribunal but that does not bring them in the hierarchy of the Courts under the High Courts or make them subordinate to it as mentioned earlier.

Adverting to the rent controller's Court it being a Court under the appellate jurisdiction of this Court cannot be excluded from the operation of this provision by mere fact that it was not a Court stride sense as held or some of the precedent cases. In fact this question was not even indirectly under consideration in those cases but this In fact there is yet another angle with which this question deserves to be gone into. Apparently the word "Court" used in the Constitutional provision has been used in its ordinary dictionary meaning and should be construed in its wide and comprehensive meanings. As we shall presently see Rent Controller has been held to be a Court for some other purposes such as for the purposes of Section 8 of the Oaths Act it was held to be a Court in wider connotation of the term "Court". Likewise many a functionaries under special laws like Frontier Crimes Regulation, Rehabilitation and Custodian Laws, etc. have been held to be Courts for certain purposes although they are not the Courts depending upon the

Codes of Civil or Criminal Procedure for their existence. It is, therefore, not necessary that the word "Court" shall always deserve a limited meaning and that while construing this term the term Courts as used for the Courts established under the Codes of Civil or Criminal Procedure should be kept in mind and thus its meaning should remain circumvented by such limitation whether it may or may not be in the interest of justice. In our estimation this term is adequately elastic and such elasticity must depend only upon the consideration that it serves the purpose for which it meant to be cited here to bring home the point that the term "Court" has often been used in its wider sense for achieving the purposes of administration of justice in a comparatively better and more logical- and reasonable manner. In *Sahibzada Masud Ahmed v. Mian Muhammad Saeed Sehgal* with reference to Pakistan Rehabilitation Act, 1956 a Court found under it was held to be a Court in the popular and generally accepted term of the word (imparting justice after receiving evidence etc., between litigants) but at the same time it was held that it being a Court not subordinate to High Court was for that reason incapable of being called a Court for the purpose of Section 2(1) of the Contempt of Courts Act, 1926 and also for Article 177 of 1956-Constitution which was then in operation. It was thus held that it was a Court but for limited purposes. In a ruling from the Indian jurisdiction namely *Brajnandas Sinha v. Jyoti Narain* similar view was taken while interpreting the term "Court" and fixing its scope of activities. It was held so notwithstanding the fact that the Courts under discussion in the case cited were generally performing similar function as the Courts established under the Codes of Civil or Criminal Procedure perform.

For the qualification required by a person/authority/forum to fulfil generally to be termed a Court a reference to *Sahibzada Masud Ahmed's* case referred to above would be of advantage. It says that in this context following conditions should be satisfied: That such persons are entrusted with judicial functions i.e. of deciding litigated questions according to law; (2) That they derive their powers to decide such question from the State; (3) That they exercise the judicial powers of the State; (4) That there is a plaintiff who complains to such persons of an injury done; (5) That there is a defendant who is called upon by such persons to make satisfaction for the injury done.

(6) That they are empowered to pronounce a definitive judgment which is binding and authoritative.

(7) That such persons are appointed by the Government and should receive payments for their services exclusively out of Government funds and they should not be liable to removal by any authority other than Government.

In *Muhammad Ali v. The State* (3) a Deputy Commissioner functioning under Frontier Crimes Regulation was held to be a Court for the purposes of pressing into service the provisions of Section 514, Cr.P.C. although it was a Court established under a special law and unlike Rent Controller's orders, his orders were also not amenable to appellate or revisional jurisdiction of the High Court.

This position makes it evident that to secure the ends of justice a forum having the semblance of Court by virtue of the functions performed by it could be treated to be a Court in the wider connotation of the term and such provisions of law which were otherwise foreign to the law under which such Court was established could be made available to it. It was done only in order to achieve the ends of justice. As pointed out earlier in *Jamal Din v. Haji Muhammad Aslam* the Rent Controller himself was held to be a Court for the purpose of Section 8 of Oaths Act, 1873, notwithstanding the fact the view that it was not a Court *stricto sensu* was reiterated. The term Court was thus construed liberally in this case in order to provide the benefit of Oaths Act to the parties litigating before the Rent Controller. Accordingly it cannot be insisted upon that the term "Court" used in Article 203 of 1973-Constitution should be construed with unnecessary strictness and be confined to operate only in regard to the Courts functioning under the Codes of Civil and

Criminal Procedures. Such conservation and inelastic approach to the subject could not in the least promote the ends of justices. Rather it would defeat the purpose for which the whole legal system exists. Accordingly it would be in the interest of justice that the term be construed in its wider sense." 56. In the case of "Imran v. Presiding Officer" Punjab Special Courts' (PLD 1996 Lah. 542), it is held by the Full Bench that: "So, wherever judicial powers vest in a body/forum, whether designated as a Court or Tribunal any right or liability conferred on or ensuring under a law is to be determined, the control and supervision over the said body/forum/Court or Tribunal under the mandate of the Constitution has to vest in the High Court. It will also be noted that express power has been conferred by the Indian Constitution to constitute/establish Tribunals alongwith the Courts in respect of matters/subjects enumerated in Articles 323-A and 323-B which also provide for the exclusion of judicial review by the High Court and the theory of separation of judiciary as is enshrined in Pakistan Constitution is not contemplated in Indian Constitution." 57. Viewed through the above-stated position of law, there seems no inhibition in stating that the Courts established under Islamic Penal Laws Act now transposed in Section 6-A of the Criminal Procedure Code through amendment in 1995, are the Courts exercising the judicial functions with the powers to sentence an accused person to any punishment authorised under schedule, are the Courts over which the judicial control and superintendence of the High Court cannot be excluded and are to that extent subordinate to the High Court, irrespective of the fact who is their appointing or revolving authority. The subordinate Court visualised by the Section means not only subordinate in administration but in dispensation of justice in the hierarchy of Courts established under law as well in view of the provisions of Section 46. Besides the Courts as created under section 6-A of the Criminal Procedure (Amendment) Act (which overtakes Islamic Penal Laws Act), all other Courts which exercise the civil and criminal jurisdiction culminating in decree, sentence or acquittal etc. or also included in the ambit of subordinate Courts. As stated above it is not the administrative control in the legal set up alone, which determines the subordination, but the judicial powers exercised by them. The Magistrates acting in different capacities under administrative control of different authorities for appointment, efficiency and discipline, removal, retirement, etc., but performing judicial functions, are the Courts subordinate to the High Court in the light of Section 46 of the Constitution. The Municipal Magistrate, Tehsildar, Assistant Commissioner/Magistrates, District Magistrates etc. though under the control of Mayors, Commissioner or Board of Revenue etc., are the Courts subordinate to the High Court. If the existing set up of Courts is viewed from narrowest angle of subordination, the Magistrate/Sub-Judge and Sessions Judge, members of the Tehsil and District Criminal Courts, are subordinate to High Court, exclusion of jurisdiction that way is unconstitutional. It is strange that what a Judge at the subordinate level can do is excluded from the purview of the superior level. The Supreme Court of Azad Jammu and Kashmir in the case of "Muhammad Sabbeel Khan v. Muhammad Riaz Khan" (PLJ 1983 SC AJ&K 103) while interpreting the provisions of Section 35 of the Courts and Laws Code Act which were similar to Section 46 of the Constitution held as follows:- "We have here also the Azad Jammu and Kashmir Courts and Laws Code Act, 1949, which invests the High Court with authority of superintendence and control over the Courts subordinate to it. Section 35 of the Courts and Laws Code Act, 1949, gives wider powers of superintendence and control over all Courts subject to the appellate and revisional jurisdiction of the High Court. It further empowers the High Court to give directions in matters not provided for by law as may be necessary to secure the due administration of justice. The prerogative and privilege of the High Court to superintendence and control subordinate Courts is quite independent and in addition to the powers of the High Court under section 115, C.P.C. This right imposes a corresponding duty to see that Courts subordinate to it do not invade vested rights of subject by usurping jurisdiction. This view is supported by authorities as well. In A.I.R. 1920 Pat. 568 (Brindaban Chander Choubey v. Gour Chandra Roy and others), it was observed: "It is the privilege and prerogative of a High Court, once a record is before it which is erroneous and so erroneous as manifestly to amount to an injustice, to exercise its powers of superintendence to revise such order, or set it aside and direct such further

proceedings to be taken as justice may require." This view is registered in the case of Abdul Rashid v. Gulzar (1995 SCR 307) where in it is held that:- "We are conscious of the fact that the learned counsel for the appellant, when confronted with the provisions contained in the Courts and Laws Code Act, contended that the aforesaid provision in the Courts and Laws Code Act has been omitted by the Act No. XXII of 1992. The position explained by the learned counsel for the appellant is indeed correct, but nevertheless we are of the view that powers contained in Section 46 of the Interim Constitution Act of 1974 remain intact and the High Court can exercise these powers where a patent illegality has been committed by a subordinate Court or any injustice has been done." 58. If any other interpretation is accepted for this section, then the law laid down by the High Court will remain valid to the extent of these Courts and cases only, which will be a travesty of Constitutional Courts and its precedents. The High Court though a creation of the Constitution as the Supreme Court is, cannot be said not to be subordinate to the Supreme Court in its appellate capacity. If Courts parallel to Supreme Court and High Court are established and jurisdiction exercisable by these Courts, is vested in them under law by substituting the word "Supreme Court" with the other name, as in the case of High Court, the latter cannot be said to be subordinate to that Court made equal to Supreme Court. It is duty of the Superior Courts to check and control the attempt of subversion of the Constitution. Section 46(1) commands that all Courts created under law have to be subordinate to the High Court in control and supervision and this includes not only judicial control, but the practical administrative control as well. It is strange that the Government and its Advocates argue against the provisions of Section 46 instead of ensuring compliance with the requirements of the Section. It is the responsibility of the legislature while enacting a law and of the executive while establishing a Court under law to make it subordinate to High Court as sub-section (1) of Section 46 of the Constitution obliges it. If the Courts created under law are not subjected to control and superintendence of High Court by making them subordinate to High Court, under what Constitutional authority do they function? The decisions of Supreme Court and High Court under sections 42-B and 44-B of the Constitution are binding upon the Courts created under law for their being subordinate to High Court and the High Court's orders etc. being appealable to Supreme Court under Constitution. A chaotic and anarchic situation will be created if the Constitutional jurisdiction of the High Court and Supreme Court is substituted by ordinary laws. Courts created under laws have to be subordinate to High Court in the similar way as the laws are subordinate to Constitution. As no parallel Constitution, parallel Government or parallel legislature is authorised, so no parallel judicial system is authorised, it has to be as the Constitution says. It is strange to suggest that as the Courts are authorised to be established under section 46 of the Constitution and there is no prohibition to establish Courts equal to High Court and Supreme Court, the same can be established. Whatever reasonably and prudently was proper to incorporate in the Constitution that has been done, and the rest is left to be perceived and followed by the sweet common sense of the authorities entrusted with the task to act upon the Constitution.

worked out and if any anomaly or ambiguity remains there, it has to be resolved in the light of institutional conventions, prevalent practice in the counterpart States and comparable provisions of Constitution there. Though Section 46 like many other sections of the Constitution are not happily worded, but that does not mean that its purpose and object cannot be perceived and followed. It is left to be interpreted by the men, who are expected to have highest Constitutional perception, with worldly knowledge of the working system of similar institutions. We do not find any such example in the subcontinent, and if there was any, it has been declared unconstitutional by the Superior Courts in different cases which are cited in this judgment. The Constitutional Courts are well within their powers to ignore any law, rule or notification which militates against the provisions of the Constitution by excluding the control of judicial officers by the High Court and entrust them to the control of Executive. All the laws, rules, and notifications have to be brought in line with Section 46.

59. Viewed yet from another angle, the jurisdiction of the High Court as it existed at the time of enforcement of the Constitution is protected in view of sub-section (1) of Section 44 of the Constitution. Under the above subsection, the jurisdiction in addition to the existing jurisdiction is conferred upon the High Court and further jurisdiction is also allowed to be conferred. The jurisdiction which stood vested in the High Court is neither allowed to be taken away nor curtailed or transferred. The jurisdiction vested in the Shariat Court after taking that away from the High Court after enforcement of the Constitution is a violation of Section 44(1) of the Constitution. Shariat Court and Islamic Penal Laws Act was not in existence when the Constitution was enforced, nor is the same part of the Constitution, hence substituting it for the High Court is a subversion of the Constitution.

The Constitution allows only conferment of new or additional jurisdiction, transfer or exclusion of jurisdiction of the High Court and the Supreme Court. There is no such provisions in the Constitution authorising such a legislation.

60. The distinction between the superior Courts and the subordinate Courts is marked and visible i.e. Superior Courts are those established under the Constitution itself, while the Subordinate Courts are those established under law. The Superior Courts being the Constitutional Courts have the jurisdiction with respect to all the matters, except those in respect of which their jurisdiction is expressly taken away by the Constitution itself, whereas the Subordinate Courts have jurisdiction in respect of matters of which jurisdiction has been specifically conferred upon them under law. That is why the Constitution under section 46(3) and (4) says that "A Court so established shall have such jurisdiction as conferred on it by law" no Court shall have any jurisdiction which is not conferred on it by this Act or by law or under any other law". The word "Court" used in Section 46 disjunctively from "Supreme Court" or "High Court" means and connotes a Court created under law which has to be subordinate to High Court for superintendence and control. The word "Court" does not include Supreme Court and High Court, those are known and designated in their own name.

61. These provisions refer to the Courts created under law with any specified field of powers, functions or jurisdiction. Any judicial forum having the resemblance of a Court in deciding the matters before them by applying the rules of procedure enshrined under the Civil or Criminal Procedure Code, adhering to the provisions of evidence and having effect of affecting the rights of the citizens under any law, are the Courts over the orders, judgments, decrees and sentences of which the jurisdiction of the High Court cannot be excluded, and if so excluded it militates against the spirit of Section 46 of the Constitution. Section 46 in fact guarantees the independence of judiciary by entrusting all the Courts established under law to the control and superintendence of the High Court and the High Court being a creation of Constitution and its protector, in turn stands guarantee for all the Courts to function independently, uprightly, un-influenced by any executive authority or control in the matter of administration of justice between the subjects and the State or between the subjects inter se. The Supreme Court is there to finally look into and see as to whether the matters made final by the High Court are true exposition of law or not, when challenged before it in appeal under section 42 of the Constitution.

62. The High Court and the Supreme Court do not make the law but interpret and explain what the law is or what does it mean.

So when confronted with any case in appeal or revision, as the case may be, decided by any Court, both the Constitutional Courts in their respective jurisdictions ensure, that law as made and introduced by the legislature is truly applied by the executive authorities vested with the powers to apply the law.

63. The trichotomy of powers is inherent in all the democratic countries and the same cannot be achieved unless the subordinate judiciary is not free from executive control at least in the matters of administration of justice. The argument of the learned Advocates for the respondents that unlike the Constitutions of Pakistan and India, the Constitution of Azad Kashmir does not contain the provisions guaranteeing independence of judiciary or separation of judiciary from executive, so the High Court cannot claim those powers which are vested in the High Court in Pakistan and India is misconceived and ill-founded, firstly for the reason that relevant articles of Pakistan and Indian Constitutions creating the High Court, conferring jurisdiction on them, visualising control and superintendence on subordinate Courts, are identical. Secondly that trichotomy of powers is vivid in different sections of the Constitution e.g. the executive authority of the Government and Council is vested in them under Ss. 12 and 19 of the Constitution respectively, the legislative authority is vested in the Council and Assembly under Ss. 21(7) and 31 of the Constitution as the case may be, and the judicial authority is vested in the judiciary under Ss. 42, 43 and 46 of the Constitution.

64. There is no ambiguity in Section 46 of Constitution that the Courts can be established. The provision is wisely incorporated.

If the existing system and set up of the Courts cannot cater with the load of work, for early decision making and decentralising of litigation, new Courts with specific jurisdictions can be established. In the 20th century which is at the fag end, new jurisdictional fields are opened due to industrialisation, urbanisation, environmental complications, scientific exploration, etc. for which people with special skill, profession, training, knowledge and experience are indispensably required for catering the field.

The maritime and civilisational interests are heading towards a collusion. The substitute Courts or Tribunals have become the requirement, in which people with the relevant background of knowledge assessed and evaluated in a transparent manner by the recognised mechanism have to be appointed. These Courts may be of Civil or Criminal jurisdiction or with composite jurisdictions, but all at the level below to the Constitutional Courts, so that the judicial functions of the Courts is controlled by the Constitutional Courts as Section 46 means. It will be of interest to refer here a portion from the thought provoking speech of Chief Justice of India Mr. Justice A.M. Ahmedi (as he then was) as reported in the case of "Delhi High Court Bar Association v.

Union of India" (AIR 1995 Delhi 323): "While we all are and should be concerned about the mounting arrears, the remedy may not be to divest the High Courts of work which is essentially judicial in character and convert the Supreme Court into a virtual first Appellate Court and clog its dockets with petty disputes. This has the effect of diluting both the institutions. In the name of the decentralisation of litigation the High Courts are slowly being deprived of causes which can be rightly described as wholly judicial, thereby diminishing its importance and depriving the public of a wholly independent adjudicatory machinery. While the enthusiasm of the bureaucracy to nibble at the judicial cake is dignity and status of judicial institutions are not diluted. Public confidence is the only bed rock on which the judicial edifice stands and if that is eroded the foundation of the justice delivery system will weaken. It must be realised that High Court are Constitutional institutions unlike Tribunals which are statutory at best and hence the nature of work that the former does must not be diluted and must not in any case be of less important than that transferred to Tribunals Similarly, the Supreme Court must not be reduced to a first Appellate Court. If the Supreme Court is also flooded with work of the nature of first appeals brought against Tribunals orders it will also get diluted in importance and consequently our democratic polity will suffer".

65. The provisions of the Constitution shall always be given the extended meaning and all that

.shall be read and meant from a provision of the Constitution dealing with an institution of the State, which ordinarily relates to its functions in the modern political world, where trichotomy of powers is a rule, irrespective of the fact whether a speaking Constitutional provision does exist in the Constitution or not, unless that meaning is specifically prohibited or excluded from being so read. The interpretation which advances the theory of trichotomy of powers shall have to be applied for ensuring the independence of judiciary and rule of law. Though there is no dearth of authorities on the point, but I will refer only the following para from the Judges case (PLD 1996 SC 324) on the interpretation of Constitution which is brief and comprehensive in nature and based on exposition of several authorities of the Sub-Continent: "I am inclined to hold that the distinction which was brought out by A. V. Dicey in 1885 between laws and conventions as to the enforceability and non-enforceability by the Courts is no longer holding the field. With the passage of time, the other eminent Jurists have not adhered to the above distinction. They have emphasised the importance of the Constitutional conventions for proper operating/functioning of the Constitution' Jennings has put in very beautifully by explaining that the Constitutional conventions provide "flesh which clothes the dry bones of the law, they make the legal Constitution work, they keep in touch with the growth of ideas". The above view has been reiterated by the other Professors/Jurists of International repute. Even the President of Indian constituent Assembly, Dr. Rajandara Parshad, while introducing a bill for the adoption of Indian Constitution in 1950 pointed out in his speech that "many things which cannot be written in a Constitution are done by conventions. Let me hope that we shall show those capacities and develop those conventions." The Indian Supreme Court, after reviewing the treatises on Constitutional laws and the case-law in the case of Supreme Court Advocates-on-Record Association (Supra) has held that there is no distinction between the "Constitutional law" and an established "Constitutional convention" and both are binding in the field of their operation. I am also of the view that the Courts, while construing a constitutional provision, can press into service an established Constitutional convention in order to understand the import and the working of the same, if it is not contrary to the express provision of the Constitution.

It is also evident that under Islamic Jurisprudence, the conventions which were not contrary to Holy Quran and Sunnah, were recognised from the very inception and they were given binding effect. In this view of the matter, it will be appropriate to refer to the relevant conventions if any, while containing various Constitutional provisions relating to the judiciary." 66. Whether the creation, Constitution or continuance of the Shariat Court itself is against the spirit of the Constitution as argued by the learned Advocates for the petitioners has always remained a question of heated debate at bar and bench and in the general public and press as well. This is not only a Constitutional and legal question, but to some a question of faith and conviction, and to others a delicious morsel for political consumption.

67. There is no cavil with the hard fact that Pakistan as well as Azad Kashmir, the latter in no case can be deemed as out of Pakistan, though not a Province of Pakistan, are creation of ideological movement based on the spirit of Islam, a separate home land for Muslims with their own rules ordained by Quran and Sunnah. Without going into the past Constitutional provisions, the Constitution in force in Azad Kashmir, unambiguously states in Section 3 as follows: "Islam to be State religion.- Islam shall be the State religion of Azad Jammu and Kashmir." " Section 31(5) of the Constitution speaks that: "No law shall be repugnant to the teaching and requirements of Islam as set out in the Holy Quran and Sunnah and all existing laws shall be brought in conformity with the Holy Quran and Sunnah." 68. The Azad Jammu and Kashmir Enforcement of Shariah Act is Section 4 obliges the Courts to decide cases according to Shariah; Section 8 obliges the Government for effective arrangement for teaching of and training in Shariah; Section 9 requires the laws to be interpreted in the light of Shariah and Section 10 ordains the Government to place the recommendations of the Council of Islamic Ideology before the Assembly.

69. In the above background of the Constitutional and legal position of Azad Kashmir, one cannot even think of having any law, Court or institution not functioning in accordance with the requirements and teachings of Islam as enshrined in the Holy Quran and Sunnah. Islam as a religion does not mean mere system of faith and workshop or practice of several rituals, but represents all that goes with statecraft as a way of life. It is "DEEN" in its popular Islamic sense which includes in itself every sphere of life- social, political, economic, public or personal. I may quote here para 58 from the case of "Haji Nizam Khan v. Additional District Judge, Layalpur" (PLD 1976 Lah. 930), which is as follows:- "At this stage, it is necessary to see the implication of Article 2 of the Constitution. During the arguments addressed by Mr.

Farooq A Hassan, learned Assistant Advocate General, he heavily relied on it. The English text reads Islam shall be the State religion of Pakistan." U&i ftP'I) The Arabic rendering is as follows:- jiji**! i » j II JJI - x (I have taken the Arabic text from the official Arabic translation of the Constitution prepared by the Ministry of Law and Parliamentary Affairs, Government of Pakistan) It may be straightway clarified that the word " " in the above Arabic translation also means and represents " (Jy*f " and " in Arabic as also "official" and "regular" in English (See Elias' Modern Dictionary Arabic English). Adoption of any other meaning for this word in the translation would be in violation of the spirit and letter of the Constitution, and thus unacceptable, with consequence of its exclusion from the translation as un-enacted part of the Constitution. The Arabic rendering of Article 2 is analogous to what is contained in Verse 19 of Surah Al ' Imran of the Holy Quran, relevant portion whereof reads as follows: "- To the same effect is a part of Verse 3 of Surah Al' Maida of the Holy Quran and several other verses. The English word "religion" as used in Article 2 has not been defined in the Constitution. Its meaning given in various English dictionaries does not, at all, represent the true significance of the word " J " as used in its above-quoted and understood Arabic text as also in the Quran. It is not possible to doubt the proposition that the Constitution-makers while enacting Article 2 must have been inspired and motivated by the injunctions in the Quran on the subject of Islam as Din. While religion as a Western concept means mere system of faith and worship- practice of sacred rites- the word -cc>" in Arabic language of the Quran is not confined and used so restrictively. It also represents all that goes with "statecraft" and "way of life". The study of the Holy Quran shows that it (C/)) has been used therein, in at least five different major facets of human life. They are: (i) sovereignty, control, authority over others and corresponding total submission; (ii) law of the land and rule of Law of God; (iii) code and way of life and thought; (iv) judgment and consequential punishment; (v) religion in restricted sense- submission in faith and prayer (see amongst others, Verse 76 of Surah 12: V. 2 of Surah 24: V.

78 of Surah 38, Vs. 2 & 3 of Surah 39, V. 65 of Surah 40, Vs. 13 and 21 of Surah 42, V. 26 of Surah 70; V. 46 of Surah 74; and V. 9 of Surah 82 of the Holy Quran).

While Islam is ordained as way of life of the State of Pakistan, it does not carry merely spiritual meaning of submission in faith and prayer, but also has ramifications in the other aspects of life like political and social including juridical. Thus, word "religion" (9) has been used in Article 2 for the State with the foregoing meanings and connotation specified at Nos. (ii) and (iii) above.

Looked at from this angle, it is impossible to agree with the view that this Article visualises the making of a mere theocratic system. The State not being an ordinary person having spiritual perceptions, cannot have any religion in ordinary (English) sense.

Article 2, therefore, deals with the tangible aspects of Statecraft including realm of political science, jurisprudence, laws and affairs of State properly so-called." "O ye who believe Come, all of you into submission (unto Him), and follow not the footsteps of the devil Lo! he is an open

to one and only one path and that is the path of Quran and Sunnah and come out of the guile. We are caught between this and that which is said in the words of Holy Quran as: Surah A1 Nisa (Verse No. 143): "Swaying between this (and that), (belonging neither to these nor to those)." 73. With this I come to the point of process of appointment of Judges in the Shariat Court. As said above till 1994, the sitting Judges of the High Court alone were appointed as Judges of the Shariat Court. In Oct., 1994, an ex-additional Judge of the High Court was appointed as Judge of the Shariat Court for three years while in December, 1992, the senior most Judge of the High Court was appointed as Chief Justice of the Shariat Court. So far so good, because, their eligibility, suitability fitness stood tested at the time of their appointment as Judges in the High Court by the Chief Justice of Azad Kashmir and the Chief Justice of the High Court, the process of Azad Jammu and Kashmir Government and advice of the Council, which is sine qua non for appointment of a Judge of the High Court.

74. The Service structure in Azad Kashmir is provided by Section 49 of the Constitution. Relevant sub-section (1) of Section 49 is as follows:-- "49(1). Subject to this Act, the appointment of persons to, and the terms and conditions of service of persons in, the service of Azad Jammu and Kashmir may be regulated by law." 75. The term "Service of Azad Jammu and Kashmir" is defined in Section 2 of the Constitution as follows:- "Service of Azad Jammu and Kashmir" means any service, post or office in connection with the affairs of Azad Jammu and Kashmir, including the Council, but does not include service as Chairman of the Council, President, Speaker, Deputy Speaker, Prime Minister, Member, Federal Minister in charge of the Council Secretariat or advisor appointed under section 21, or a member of the Assembly or member of the Council." 76. The Assembly has enacted Civil Servants Act, 1976 to regulate the appointment to and the terms and conditions of service in respect of persons in the service of Azad Jammu and Kashmir employed in connection with the affairs of the Government. The appointment in the service of Government is authorised by Section 4 of the Civil Servants Act, 1976 as follows "4.Appointments:- Appointments to a civil service of Azad Jammu and Kashmir or a civil post in connection with the affairs of the government, shall be made in the prescribed manner by the Government, or by a person authorised by it in that behalf." 77. The word "prescribed" is defined in Section 2(19)(1) of the Civil Servants Act, 1976 as 'prescribed by rules'. The Government has framed rules in this behalf called as AJ & K Civil Servants (Appointment and Conditions of Service) Rules, 1977. Rule 3 of the Rules relevant for the purpose is reproduced as follows: "3(1). Appointment to posts shall be made by promotion, transfer or initial recruitment, as may be prescribed by the Government in relation to the posts in a grade from time to time.

(2) Appointments by promotion or transfer shall be made in accordance with Part II and by initial recruitment in accordance with Part III of these Rules".

Rules 16, 17 and 18 of the Rules which regulate the initial appointment in the service are as follows:- "16. Initial appointment to the posts in grade 16 to 20, except those which under the Azad Jammu and Kashmir Public Service Commission (Functions) Rules, do not fall within the purview of the Commission or which are specified to be filled without reference to the Commission, shall be made on the basis of examination or test conducted by the Commission." "17. Initial appointment to all posts in grade 1 and above except those filled under rule 16, shall be made on the basis of examination or test to be held by the appropriate Committee or the Board, as the case may be, after advertisement of the vacancies in newspapers, or in the manner to be determined by the Government." "18. (1) A candidate for initial appointment to a post must possess the prescribed educational qualifications and experience and also, except as provided in the rules framed for the purpose of relaxation of age limit, must be within the age limit as laid down for the post: Provided that experience, where prescribed would include equivalent experience, to be determined by the Government in a profession or in the service of An Autonomous or Semi-Autonomous Organisation or a private organisation." 78. However,

following do not fall in the definition of "Civil Servant" under section 2(b) of the Civil Servants Act, 1976, wherein the term "Civil Servant" is defined: "2(b) "Civil Servant" means a person who is appointed to any service or holds a civil post in service of Azad Kashmir employed in connection with the affairs of the State but does not include:- (i) A person who is on deputation of the service of Azad Jammu and Kashmir in connection with the affairs of Government, from the Council or the Federation or any Province of Pakistan or Authority; (ii) A person who is employed on contract, or on work charged basis, or who is paid from contingencies; (iii) A person who is a "worker" or "workman" as defined in the Factories Act, 1934 (XXV of 1934) or the Workmen's Compensation Act, 1923 (VIII of 1923).

79. The impugned appointments of respondents in the case of "Genuine Rights Commission and others" are made vide Notification of the Government dated 27.10.1997. Both are initial appointments. The files of their appointments were sent for from the "Law Department which are perused. Recommendation for the appointment of respondents was made by the Law Minister on 16.10.1997 and the President has approved the proposal on the advice of the Prime Minister dated 16.10.1997. The Chief Secretary resubmitted the case to the Prime Minister on 29.10.1997 with the proposal that Mr. Nawaz Khan respondent be appointed against the post vacated by Mr. Justice Riaz Akhtar Chaudhary. Regarding Mr. Iftikhar Hussain Butt respondent, it was proposed by the Chief Secretary that "his appointment shall be made when financial position so allows and he shall continue as Law Secretary till a suitable person is appointed as Secretary Law". The proposal of the Chief Secretary may be reproduced here as a whole which is relevant for the discussion hereinafter to follow: M yj S 'JS % L~j \ JIS 6d? S f & z~Si(iv u*~ ciyir JI J\Ali/vji f *yi \$ Lh t/ w-U (JV Ir' UU j* []£* *?i ii* f'y -\$if ,A JL J*-1JI fS A~i<)j&j £- ISIJI J? JZ/J J3' jf*rCV Jt J'j £,VJ 2£vy j»//zjj)/** jI)J\ jjt -6 £ JU! Jli 1-* JU y v/ >I t/Lv \$ \s _j ju-f {\$/}) ci/ /wvAjo wsfiif cj iy / J>* Jb * -JV-U / dtf* _Zl j1) cjl f (I US'LJU ijt (I cj./ £ A L jlj L-f ft oft 6'& \$ 1/ (II JyJ?' JjvV £) >i< Clf W c/T" -r-57 A/ l/1 l/'-j IV -C> dft 80. The Prime Minister agreed with the proposal on 27.10.1997 in these words "b (S> (0 -A tfr 'jjftjZ \ jijT </> / *Jg tin -f- jlf f \\$/> ,y£ CJ Ay j* djb -f-jiii 2- fo 6J> S6J/ 'JiSuft ijs/fj j wi/j w; -Jjf (Jvlf LK>I «£- I (j.K (Jj/fM9Z.-IOA vy* DJ/U jt\jsJ? y -\»x y vj< cb*/ Kiqqr *i4fi „ *,/,»jS- jljf tfj/> * S&jLsf JO' * 81. After issuance of the Notification of the respondents, the Law Minister again recorded as follows on 5.11.1997 and submitted the file to the Prime Minister: jt <£- j/ Jf \J? jt sylj <£- }J3>. {J fr / v> \Sj? -££ # £ Z-Sj/> j jS\i> S(l/jj _>it uti djy y -UI jyC YJJI IV** The Prime Minister recorded the following thereon on 6.11.1997.

82.

83. The file stands closed thereafter.

84. A perusal of above reveals that the appointment of respondents was neither recommended by the Public Service Commission, no by the Selection Board. Assuming the appointment having been made as is apparent from their appointment order, on the analogy of being equal to Judges of the High Court and with the same terms and conditions of service, there is no recommendation of the Chief Justice of Azad Jammu and Kashmir, nor of the Chief Justice of the High Court. With whatsoever name their appointments may be styled, they had to pass through the requirements of law provided by the Civil Servants Act and Rules made thereunder or in accordance with the requirements of Section 43 of the Constitution i.e. on the recommendations (consultation) of the Chief Justices of the Supreme Court and High Court and advice of the Council. The rule of harmonious construction of statutes requires that all the laws have to be read and interpreted in juxtaposition to each other, so that none is rendered redundant. The offices occupied by the respondents are public offices, discharging duties assigned to them under law and paid from public exchequer, holding civil posts in Civil Service. They are neither on deputation or contract nor are they workmen. They are thus the Civil Servants holding the civil posts on permanent basis and to retire at the age of 62 years in view of terms of appointment

under section 3 of impugned law. Their appointment, therefore, has to be in accordance with the rules governing the terms and conditions of civil servants or the Judges of the High Court. If none of the two modes is adhered, the Constitution as well as Laws and Rules stand violated. In the case of *Syed Sajid Hussain v. Ch. Muhammad Latif* (1992 SCMR 468) the appointment by promotion of a Secretary was held illegal as the rules for the post were not framed. In the cases: (1) *Azad Jammu and Kashmir Govt. and others v. Muhammad Yunus Tahir and others* (1994 SCR 341).

(2) *Sheikh Manzoor Ahmed v. Azad Govt.* (1994 SCR 297).

(3) *Azad Government v. Javid Iqbal Khawaja & others* (1996 SCF 40).

Even the ad hoc Appointments without complying with the provisions of Ac and Rules were not accepted legal. The offices occupied by the incumbent: were declared vacant and law validating their appointment was declared without lawful authority.

85. As Judges of the Shariat Court, the functions and powers exercised by the Judges of the High Court are to be exercised by them, while their appointment is not made in accordance with the mode provided for the appointment of Judges of the High Court. The respondents have not placed on record anything showing as to how are they qualified for the posts, as far as their professional and academic qualifications is concerned, especially any 'qualification with reference to the Shariat from any University or religious school to be deemed as Religious Scholars, nor have they pleaded that their case is ever recommended by any Selection authority, e.g. Selection Board, Public Service Commission or the Chief Justices of the Supreme Court and High Court, neither does the file of their appointment support anything as required by law and the Constitution. No law, reason or argument is advanced as to how their appointments could be made without complying with the requirements of the Constitution and law discussed above. Tehsil Qazis and District Qazis associated with Sub-Judges and Sessions Judges respectively for trial of cases under Islamic Penal Laws are required to possess prescribed religious qualification from recognised religious schools, while their appellate authority, i.e. Judge of the Shariat Court, is neither required to have that qualification nor to undergo the process of appointment as prescribed for other Government servants. This amounts to putting the cart before the horse.

80. The appointments styled as Additional Judges of the High Court made under the Courts and Laws Code (Amendment) Ordinance were struck down by the High Court as ultra vires the Constitution in the case of *"Ghulam Mustafa Mughal v. Azad Government and others"* (NLR 1991 Civil 724), on the ground that the appointments in the Court cannot be made without consultation with the Chief Justices and the advice of the Council. This judgment was upheld by the Supreme Court on appeal as reported in 1993 SCR 131. The Supreme Court not only upheld the judgment of the High Court to the extent of declaring the appointments as illegal and ultra vires the Constitution, but also held that the law allowing such appointments is ultra vires the Constitution. The High Court in the case of *"Raja Bashir Ahmed Khan, Chairman Service Tribunal v. The President of Azad Jammu and Kashmir and three others"* (PU 1997 AJK 22) has held that the appointments in different offices under the nomenclature or styled in the way to be said as equal in status and with the terms and conditions of Judge of the High Court, is a misnomer and against the spirit of the Constitution. Perusal of the above authorities shows that appointments and law authorising appointments styled as Additional Judges in the High Court over and above the Constitution was not approved by the High Court as well as the Supreme Court, and the claim that a person with terms and conditions or equal in status to the Judge of the High Court is also not accepted by the High Court, thus the impugned legislation, which also authorises the appointments as Judge of the Shariat Court with the terms and conditions of a Judge of High

Court and the appointees are vested with substantial criminal and civil powers in appellate and revisional jurisdiction by taking away the powers from the High Court, is not only against the Constitution but also against the above precedents of the Superior Courts as well.

87. The Government of Azad Jammu and Kashmir is also of the same view as stated by the Advocate General in the case of "Raja Bashir Ahmed Khan v. Azad Government and others", in Writ Petition No. 297/96, in a rejoinder filed on behalf of the Government as follows That likewise the respondent Government has also decided to implement the other decisions of the superior Judiciary in their letter and spirit. The decisions handed down by this Honourable Court in cases titled "Raja Bashir Ahmed Khan v. President Azad Jammu and Kashmir and others as decided on 5.8.1996 and "Syed Muhammad Akram Shah v. Azad Government and others" decided on 23.7.1996 pertained to very important questions of law and the Constitution which were resolved by the Division Bench of this Honourable Court." That since the respondent Government was bound to carry the afore-mentioned decisions of this Honourable Court into effect, therefore the cases of certain persons whose terms and conditions were unconstitutionally and illegally, placed and declared at par with that of a Judge of the High Court were being processed for regulating their services in the light thereof. As the case of the petitioner also fell within purview of the said decision, hence, the respondent Government has got no legal choice except to send him on retirement since the petitioner has already attained the age of superannuation, however, the cases of other persons are still in the process of completion." That the newly inserted para 'J' of the petition is utterly misconceived and shown of any legal sanctity, whatsoever.

Moreover, the paragraphs Nos. 16 to 20 of the judgment in Writ Petition No. 31/96, specifically and conclusively resolved an issue taken up by one of the respondents in his para-wise comments, asserting therein that even in this previous official capacities the respondents enjoyed the tenor and conditions of a Judge of the High Court." 88. The High Court is substituted by Shariat Court, which means that the Constitution is substituted by law and the Judge of High Court is substituted by the Judge of Shariat Court, which means that a Government servant appointed under law is to be styled as Justice. Justice is a status for an appointee under the Constitution only. Under the Constitution of Pakistan, the Shariat Court is established with a limited jurisdiction and Judge of that Court is appointed for three years. It is because of their Constitutional position that they are designated as 'Justices' and their pay and privileges are equal to Superior Court Judges, except the tenure. A person may be employed on any remuneration, with any pay or in any scale, if the appointment is on contract, work charged basis or for a limited tenure and not pensionable. But if the service or employment is of a permanent character with all service and pension benefits, it has to be within some discipline insofar as induction into and mode of appointment therein is concerned, as in other services of the State. Only discretionary posts e.g. P.R.Os., Private Secretaries etc. which are temporary and personal in nature, may be appointed at the discretion of the Government or the dignitary, who sink and swim with the dignitary. These posts are wisely exempted from the purview of the Public Service Commission. No instance or example of any service is available or cited where a person is to hold a public office like others similarly placed but employed without any criteria or standard, without any process of recruitment, evaluation or assessment of suitability. It is only in the tenure posts or contractual services that strict adherence to the recruitment rules is overlooked, though it is also disapproved now (See AIR 1987 SC 386 and PLD 1996 Lah. 542 referred above). Public offices are filled either by selection on merit through Public Service Commission, Selection Board on the process visualised by the Constitution, as in vogue for different services, or through election e.g. members of the Assembly. Prime Minister, President etc. No third course or mode is recognised in the legal world. The Supreme Court in the case of "Brigadier Ali Muhammad v. The Azad Government and others" (Civil Appeal No. 14 of 1988), upholding the judgment of the Service Tribunal, holding appointment of Chairman Inspection Team as a permanent employee of the Government, held him liable to rules relating to the civil service for removal etc. though the

Chairman was appointed under a special law known as the "Irregular and Unauthorised Allotments (Cancellation) Ordinance". It implies that appointments made under special laws are also deemed by the Supreme Court as governed by the Service laws and rules applicable to other civil servants similarly placed and this alone is the correct approach. The Magistrate, District Magistrates, Collectors, Commissioners, Superintendent or Inspector General of Police etc. provided under different laws are to be seen that they can be appointed at random and without any criteria, at the discretion of Government etc. Their induction into service is regulated by rules, through the Public Service Commission or Board etc., though the special laws creating them do not provide it. Even if an Act of the Assembly does not provide for appointment on the recommendation of Public Service Commission Selection Board, the same has to be read in it as the Constitution and service laws in force in the State require so. Appointments to the public offices, have to be made from the best amongst the qualified persons and that purpose can be achieved only by the mode provided by the Civil Servants Act, rules etc. If it is left scot free, ambitious persons in Government authority would have nothing for meritorious and qualified people who are without political influence and lack personal contacts with authorities in power. The autonomous bodies e.g. Universities, Corporations, Banks etc. have also their standards for induction into the service therein and any appointment made therein without the recommendation of the Selection Board is held by the Courts as without lawful authority.

8.9. In the above background, the action of the Government in enacting the impugned law and making the appointments in the way it had itself stated as against the Constitution, speaks of double standards of the Government regarding law and judiciary. The Government is precluded from making appointments on the pattern it had stated to be unconstitutional after the decisions of the Courts and its admission.

90. The fact which is pertinently to be noted is that Law Minister has withdrawn the recommendation for the appointment of respondents, the advice issued by the Prime Minister on 16.10.1997 on which the President had ordered the approval is withdrawn on 27.10.1997 by the Prime Minister on resubmission of the case to him by the Chief Secretary; the order of appointment of Mr.

Iftikhar Hussain Butt is issued against the advice of the Prime Minister on the note of President dated 27.10.1997. The recommendation and proposal for appointment of both the respondents is made and approved in a meeting which was headed by the Prime Minister, Chief Secretary and Sardar Khalid Ibrahim Khan MLA (who has no locus standi in the process of making the appointments), the note of the Prime Minister dated 11.1997 is recorded after the issue of order of appointment of respondents.

It thus suggests, that the appointments are made in a fanciful manner not based on any principle, legal requirements regarding induction in the service without any criteria. The presence of Mr. Khalid Ibrahim MLA, in the meeting in which the decision for appointment was made, smacks of appointment having been made on political considerations. All those who of any competent legal sanction to be assumed as not motivated by political consideration. The proposal of the Law Minister is not based on opinion of any Board or recommendation of the Chief Justices. The Prime Minister first agreed with it, and then reversed it partly agreeing with the Chief Secretary and the President acted against the advice of the Prime Minister to the extent of Mr. Iftikhar Hussain Butt. None other from Bar or Service from where the respondents are picked, are considered and no merit is discussed. Appointments in the Civil Service with the highest status cannot be bestowed on the favourites without giving the others equally qualified or those belonging to the class from which the respondents are picked, a chance to be considered. Besides violation of the Constitution, law and rules, it is clear discrimination and violation of principle of equality, and in view of the facts discussed above, a political decision. I may refer here the following dictum of the Supreme Court from the Yunus Tahir's case (1994 SCR 341): "In

accordance with the scheme laid down by Ss. 48 and 49 of the Interim Constitution Act and the Public Service Commission Act and the rules made under them, if a citizen wants to enter the civil services of Azad Jammu and Kashmir in grade 16 and above has to pass through the following procedure. Firstly the applications are called by the Public Service Commission for which certain conditions are laid down which must be fulfilled by the candidates. They relate to qualification, age etc. After receiving the applications the Public Service Commission holds written and real tests and on the basis of merit recommendations are formulated. For every post there are hundreds of applicants although they are less in posts of specialised nature. It means that a person stands a remote chance of selection in an open competition and only those are selected who on account of their qualifications, brilliance and hard work prove themselves to be the best among the contestants. This is the plain requirement of the laws which apply to all State subjects but the Regularisation Act has given a special benefit to those who are ad hoc appointees. Jobs have been bestowed to them by operation of law by depriving people like Javed Iqbal Khawaja who is unemployed and had applied to the Public Service Commission and wanted to compete for a job. His right to compete is recognised by the existing laws but has been taken away." 91. Another important aspect of which the notice has to be taken is that the President's note dated 27.10.1997 runs counter to the note/order of the Prime Minister dated 27.10.1997, in which he had agreed with the proposal of the Chief Secretary. The President is to act on the advice of the Prime Minister as tendered and that advice is binding on him in view of Section 7 of the Constitution. Wherever, any function is assigned to the Honourable President under any law or rule, that is always subject to the advice of the Prime Minister unless the Constitution specifically excludes the advice as in the case of appointment of Judges in the Supreme Court and appointment of the Chief Election Commissioner in which case he is bound by the advice of the Council.

92. The induction in the judiciary determines the level of integrity and independence of the judiciary and it is the process of induction in superior judiciary which reposes confidence of general public in the judiciary which is deemed to be arbiter of the rights of the parties. Who is to determine whether a person is qualified for appointment as Judge in the High Court or any other Court, is a decision which has to be made on sound objective criteria, and the object can be best obtained after consultation with the Chief Justices of the Supreme Court and the High Court as in the case of Judges of the High Court, if the process of Public Service Commission is not adhered to. The determination for the purpose left at the sole decision and discretion of executive amounts to eroding the independence of judiciary and Constitutional and legal set up of the country. The act of appointment of Judges is, no doubt, an executive act, but the same has to be based on judicial determination of the fitness of the incumbents. It is the Chief Justices being heads of the Constitutional institutions acted by their colleagues, who know better about the professional skill, legal acumen, personal attitude and conduct of the Advocates or the Law Officers qualified for the appointment on the basis of their professional and academic qualifications.

93. In the famous Judges case referred above, it is held that: ".....The opinion of the Chief Justice of Pakistan and Chief Justice of a High Court as to the fitness and suitability of a candidate for judgeship is entitled to be accepted in the absence of very sound reasons to be recorded in writing by the President/Executive." It is further held that: "Act of appointment of a Chief Justice or a Judge in the superior Courts is an executive act. No doubt this power is vested in the executive under the relevant Articles of the Constitution, but the question is, as to how this power is to be exercised.

Conventions can be pressed into service while construing a provision of the Constitution and for channelling and regulating the exercise of power under the Constitution; whereas under the Islamic Jurisprudence, a convention, which is termed as Urf has a binding force on the basis of

various Islamic sources. It has been a consistent practice which has acquired the status of convention during pre-partition days of India as well as post partition period that the recommendation of the Chief Justice of a High Court and the Chief Justice of the Supreme Court in India as well as in Pakistan have been consistently accepted and acted upon except in very rare cases. The practice of consultation of the Chief Justice of a High Court and the Indian Federal Court was obtaining even under the Indian High Courts Act as well as under the Government of India Act, 1935. though the appointment of Judges of superior Courts in India was a matter of pleasure vested in the Crown. The recommendations of the Chief Justices even in those days were accepted as a matter of course.

If it was to be assumed that the Executive has the discretion to appoint Judges in the superior Courts, it is well-settled proposition of law that the discretion is to be exercised fairly and justly and not arbitrarily or in a fanciful manner".

It is again held:.

"I have also quoted hereinabove various Verses from the Holy Quran and the relevant portions of the letter Hazrat Ali Karam Allah Wajho, addressed to Ashter Malik, the Governor of Egypt, from which it is evident that Islam enjoins that, while selecting the judges, the authority should select the people of excellent character, superior calibre and meritorious record having deep insight and profound knowledge." 94. The argument of one of the learned Advocate for the respondents Chaudhry Muhammad Ibrahim Zia that under Islam it is the prerogative of the "Khalifa" to appoint Qazis, and the Chief Justice or the Qazi-ul-Qaza has nothing to do with it, is not wholly untrue as the appointment is ultimately to be the executive act of the "Khalifa" or the Government in the modern political system of Governments. Khalifa is the repository of all the powers of the State and thus these powers are exercised by the Government i.e. Prime Minister or by the President on the advice of the Prime Minister as Section 7 of the Constitution says. But Khalifa is also to base its action on some footing, some criteria, some known principles of governance and that the criteria is the consultation with, or the recommendation of the institution which is established and functioning. In the States ruled by monarchs, the institutions, running a particular field of State, play the basic role in running that institution. In the countries of contemporary world, we are most linked with Kingdom of Saudi Arabia. It is ruled by a King, but the institutions are run by experts meant for the institutions, crewed under codified legal charter. From the Book namely: .

6 j** (Jvif at page 77, the following may be quoted: r JZ fu> fcjt if W-/ {jif vjl f Jj£ -1 .

CJL/ JTI f IE) £ J7 J*u /W I J(lt< ?irr V* il vtf' vjl (j* LP £ 0 ik-* I5A jjLi L~U [fZcJ]i i~y. jt ti-A <-j]L 2_ii fr:jt UAl J*u df j£ <_,i IJL UtJ *J The above legal charter is further amended in 1975, as written at page 96 of the above-referred Book.

95. The Constitution, Civil Servants Act, Rules, the Public Service Commission, Selection Board or the Chief Justice etc. are the substitutions of above or the above are the substitutes of Constitution and Laws. The argument of the learned Advocate runs contrary' to the provisions of the Constitution, law and precedents of superior judiciary that "Khalifa" alone is competent to make appointment, and even against the practice prevalent in the country in which only Shariat is the rule of governance in all the fields of life i.e. Kingdom of Saudi Arabia as stated above. The law and rules in the codified form which do not run counter to Quran and Sunnah are the laws of Islam, not the divergent views of the scholars. The views of the scholars who have achieved perfection in their field of knowledge are entitled to highest regard and respect, but these can be adhered only when the recognised principles of law on which the consensus is built up in the form of Law and Rules are not in the field or when laws run Contrary' to the express dictates of Quran and Sunnah, and the views of scholars'are in consonance and in furtherance of the

dictates of Quran and Sunnah in which case the Courts are bound to follow Quran and Sunnah and ignore such laws and rules.

96. The argument of the learned Advocate General- that the precedents of law referred from Pakistan and Indian jurisdictions are based on the provisions of law not identical to those which are in force in Azad Kashmir is unfounded. The Advocate General has not referred any provision from the Pakistan or Indian Constitution on the point of induction in service, establishment or creation of Courts and conferment of jurisdiction on the Courts which run contrary to the provisions of Azad Kashmir Constitution. As referred somewhere' above, the provisions are almost identical with the exception that in brief words our Constitution comprises all that comprehensive provisions of Indian and Pakistan Constitutions contain. Moreover, every precedent is not binding. One can differ if the language of law or facts of the case so warrant. But the learned Advocate General, except beautifully arranged English words, made reference to no precedent contrary to Constitutional provisions of Azad Kashmir. Khawaja Shahad Ahmed one of the learned Advocates for the respondents stated that the Shariat Court is not a Court parallel to the High Court, but a "substitution", or "alternate" thereof. The word "substitution" or "alternate" means an alternate of something else in its place. If it is so accepted, the entire case of the petitioners is made out and has to be accepted as it is.

However, the cases have to be decided on their own merits, irrespective of the contentions of the learned Advocates, which of course, have to be placed on record. Khawaja Shahad Ahmed, Advocate referred a judgment from the Supreme Court of India jurisdiction where the Full Bench of the Court deciding three consolidated Constitutional petitions filed to challenge the establishment/creation of Administrative Tribunals through Act of 1985, on the ground that the Tribunals take away the jurisdiction of the High Court and the appointments made thereunder affected the structure of the judicial system and the principles of independence of judiciary. Separate but concurring judgments were written by Justice Bhagwati, Honourable Chief Justice of India, and Justice Ranganath Misra, Judge. I will quote Chief Justice only on the point of appointments made in the Tribunal which were for a tenure of five years only or attaining the age of 65 or 62 years as the case may be, whichever first occurs. Para 6 of the judgment is as follows which is reported as S. P. Ampath Kmarv. J.M. Gupta (AIR 1987 SC 386): "That takes me to another serious infirmity in the provisions of the impugned Act in regard to the mode of appointment of the Chairman, Vice-Chairman and members of the Administrative Tribunal. So far as the appointment of judicial members of the Administrative Tribunal is concerned, there is a provision introduced in the impugned Act by way of amendment that the judicial members shall be appointed by the Government concerned in consultation with the Chief Justice of India. Obviously no exception can be taken to this provision because even so far as Judges of the High Court are concerned, their appointment is required to be made by the President inter alia in consultation with the Chief Justice of India. But so far as the appointment of Chairman, Vice-Chairman and administrative members is concerned, the sole and exclusive power to make such appointment is conferred on the Government under the impugned Act. There is no obligation cast on the Government to consult the Chief Justice of India or to follow any particular selection procedure in this behalf. The result is that it is left to the absolute unfettered discretion of the Government to appoint such person or persons as it likes as Chairman, Vice-Chairman, and administrative members of the Administrative Tribunal. Now it may be noted that almost all cases in regard to service matters which come before the Administrative Tribunal would be against the Government or any of its officers and it would not at all be conducive to judicial independence to leave unfettered and unrestricted discretion in the executive to appoint the Chairman, Vice-Chairman and administrative members, if a judicial member or an administrative member is looking forward to promotion as Vice-Chairman or Chairman, he would have to depend on the goodwill and favourable stance of the executive and that would be likely to affect the independence and impartiality of the members of Tribunal. The same would be the position vis-a-

vis promotion to the office of Chairman of the Administrative Tribunal. The administrative members would also be likely to carry a sense of obligation to the executive for having been appointed members of the Administrative Tribunal and that would have a tendency to impair the independence and objectivity of the members of the Tribunal. There can be no doubt that the power of appointment and promotion vested in the executive can have prejudicial effect on the independence of the Chairman, Vice-Chairman and members of the Administrative Tribunal, if such power is absolute and unfettered. If the members have to look to the executive for advancement, it may tend, directly or indirectly, to influence their decision-making process particularly since the Government would be a litigant in most of the cases coming before the Administrative Tribunal and it is the action of the Government which would be challenged in such cases. That is the reason why in case of appointment of High Court Judges, the power of appointment vested in the executive is not an absolute unfettered power but it is hedged in by a wholesome check and safeguard and the President cannot make an appointment of the High Court Judge without consultation with the Chief Justice of the High Court and the Chief Justice of India and a healthy convention has grown up that no appointment would be made by the Government which is not approved by the Chief Justice of India. This check or safeguard is totally absent in the case of appointment of the Chairman, Vice-Chairman and administrative members of the Administrative Tribunal and the possibility cannot be ruled out—indeed the litigating public would certainly carry a feeling—that the decision making process of the Chairman, Vice-Chairman and members of the Administrative Tribunal might be likely to be affected by reason of dependence on the executive for appointment and promotion. It can no longer be disputed that total insulation of the judiciary from all forms of interference from the co-ordinate branches of Government is a basic essential feature of the Constitution. The Constitution-makers have made anxious provision to secure total independence of the judiciary from executive pressure or influence.

Obviously, therefore, if the Administrative Tribunal is created in substitution of the High Court and the jurisdiction of the High Court under Articles 226 and 227 is taken away and vested in the Administrative Tribunals, the same independence from possibility of executive pressure or influence must also be ensured to the Chairman, Vice-Chairman and members of the Administrative Tribunal. Or else the Administrative Tribunal would cease to be an equally effective and efficacious substitute for the High Court and the provisions of the impugned Act would be rendered Chairman, Vice-Chairman and administrative members should be made by the concerned government only after consultation with the Chief Justice of India and such consultation must be meaningful and effective and ordinarily the recommendations of the Chief Justice of India must be accepted unless there are cogent reasons, in which event the reasons must be disclosed to the Chief Justice of India and his response must be invited to such reasons. There is also another alternative which may be adopted by the Government for making appointments of Chairman, Vice-Chairman and members and that may be by setting up a High Powered Selection Committee headed by the Chief Justice of India or a sitting Judge of the Supreme Court or concerned High Court nominated by the Chief Justice of India. Both these modes of appointment will ensure selection of proper and competent persons to man the Administrative Tribunal and give it prestige and reputation which would inspire confidence in the public mind in regard to the competence, objectivity and impartiality of those manning the Administrative Tribunal. If either of these two modes of appointment is adopted, it would save the impugned act from invalidation. Otherwise, it will be outside the scope of the power conferred on the parliament under Article 232-A. I would, however hasten to add that this judgment will operate only prospective and will not invalidate appointments already made to the Administrative Tribunal. But if any appointments of Vice- Chairman or administrative members are to be made hereafter, the same shall be made by the Government in accordance with either of the aforesaid two modes of appointment." 97. The appointments impugned before the Court are to last till the incumbents attain the age of superannuation i.e. 62 years, provided for Judge of the High Court,

in view of their terms and conditions being equal to the Judge of the High Court as provided under the impugned law.

98. In the case reported as "Imran v. Presiding Officer, Punjab Special Courts No. VI, Multan and 2 others" (PLD 1996 Lah. 542), the Full Bench of the Lahore High Court deciding 13 petitions through the common judgment in which the constitution of and the appointments in the Suppression of Terrorists Activities (Special Courts) Act, 1975 and Offences in Respect of Banks (Special Courts) Act, 1975, were called in question, the power of appointment of the Judges under the Acts was vested in the Government as in the case of impugned appointments, however, the appeal against the order and sentences passed by the Courts was provided before the High Court. The honourable Chief Justice of the Lahore High Court (as his lordship then was) speaking for the Court held as follows: "Thus, it stands recognised that even if the power of appointment or of establishment of a Court vests in the Government/Executive, the appointments cannot be made arbitrarily, and the said power of appointment is to be exercised through meaningful consultation of the Judiciary or its head (Chief Justice) and judicial power cannot be invested by the Executive by appointing persons on its own, providing any procedures or imposing any sentence or conviction so as to control free and fair exercise of judicial power." "The principles deducible from the survey of the Constitutional provisions and the case-law are that in order to comply with the mandate of independence and separation of Judiciary, the Courts howsoever designated as "Special Court" or "Tribunal" are to be established and constituted by making appointment with meaningful consultation of the Chief Justice of the High Court and by providing security of tenure for a period which will not act as a disincentive, such a tenure should then be secured by making necessary provision in the Statute itself. The concept of consultation with the Chief Justice/the High Court is not a new concept introduced by the Supreme Court in its recent judgment." "The provisions of the two statutes, seen in the light of these principles would be found to be infringing and violating the concept of independence and separation of Judiciary. The appointments of the Presiding Officers have been made by the Federal Government in its sole discretion in some cases of the persons who were office bearers of the party in power and in other cases of persons who may not be qualified to be appointed as a Judge of the High Court or a District Judge as in many cases, it was pointed out, did not fulfil the criteria of active practice for the prescribed years. Be that as it may, these appointments have been made till further order or for a short tenure with no security of tenure whatsoever. The appointment is terminable at any time and without assigning any reasons as no provision is made to secure tenure or appointment. Even the powers to transfer cases vests with the executive and the supervision and the control of the High Court is altogether excluded." "For the above reasons, Sections 3 and 4 of the Offences in Respect of Banks (Special Courts) Ordinance, 1984 (Ordinance No.

IX of 1984) and Sections 3, 4 and 4-A of the Suppression of Terrorist Activities (Special Courts) Act, 1975 (Act No. XV of 1975) are hereby declared unconstitutional as these erode the independence of judiciary and the notifications appointing the Presiding Officers to these Special Courts are quashed." 99. In the case of "Supreme Court Advocates-on-Record Association v.

Union of India (AIR 1994 SC 268), it is held: "When it is well-recognised that the Courts are an impenetrable bulwark against every assumption of power in the legislature or executive and that the understanding of the Courts and respect for their authority by the people are greatly influenced by adjudicative dispensation of justice by the presiding impartial Judges "without fear or favour, affection or ill-will", can it be rightly said that the assurance of the immutable rights and privileges in respect of service conditions alone are sufficient to achieve the independence of judiciary and to protect it from being impaired and no other condition is required? Our answer to this nagging question would be in the negative.

"No doubt true, that the Constitutional assurances relating to the basic service conditions are

absolutely necessary to protect the independence of the judiciary but in our view they are not be all and end all. More than the above, one other basic and inseparable vital condition is absolutely necessary for timely securing the independence of judiciary, that concerns the methodology, followed in the matter of sponsoring, selecting and appointing a proper and fit candidate to the (Supreme Court or High Court) higher judiciary. The holistic condition is a major component that goes along with other constitutionally guaranteed service conditions in securing a complete independence of judiciary. To say differently, a healthy independent judiciary can be said to have been firstly secured by accomplishment of the increasingly important condition in regard to the method of appointment of Judges and, secondly, protected by the fulfilment of the rights, privileges and other service conditions. The resultant inescapable conclusion is that only the consummation or totality of all the requisite conditions beginning with the method and strategy of selection and appointment of Judges will secure and protect the independence of the judiciary.

Otherwise, not only will the credibility of the judiciary stagger and decline but also the entire judicial system will explode which in turn may cripple the proper functioning of democracy and the philosophy of this cherished concept will be only a myth rather than a reality." "The essence of the above deliberation and discussion is that the independence of judiciary is the live wire of our judicial system and if that wire is snapped, the 'dooms day' of judiciary will not be far off." 100. In the case of "Delhi High Court Bar Association v. Union of India" (AIR 1995 Delhi 323) in which the creation of a Special Court and appointment of a Judge under Recovery of Debts Due to Banks and Financial Institutions Act, 1993, was under challenge, it is held: "Civil Courts which are directly under the control and superintendence of the High Court trying bank suits, the suits of creditor and debtor relationship, have been deprived of their jurisdiction and the jurisdiction conferred on a Tribunal which is against the scheme of the Constitution and independence of judiciary which as noted above, is a basic feature of the Constitution. It is rightly said that the act erodes independence of judiciary. It is a case where jurisdiction of a Civil Court has been truncated and it has been deprived of existing jurisdiction. It is a different matter if in a law enacted by Parliament jurisdiction is conferred on the Civil Court, but when the existing jurisdiction is taken away and conferred on a Tribunal having only trappings of a Court, it certainly affects the independence of judiciary. We cannot visualize a situation where a Court is continuously deprived of its ordinary jurisdiction and the same is conferred on the Tribunals under the control of the executive Since the Act erodes the independence of judiciary, it is unconstitutional and is void".

The appointment of Judge was also declared as without lawful authority.

101. As seen above, the constitution and composition of Shariat Court and appointment of Judges therein has always remained a matter of tricks and kicks in view of rapid amendments in Section 3 of the Shariat Court Act Ordinance as the case may be. The executive has some times notified only one or two Judges of the High Court to act as Judge of the Shariat Court, and once appointed a Judge other than the Chief Justice of the High Court as the Chief Justice of the Shariat Court, and then Judges of the High Court as a whole as the Chief Justice and Judges of the Shariat Court, while through the impugned legislation appointed the incumbent Judges in the arbitrary manner. All this impairs, shakes erodes and tells upon the independence and integrity of the Judiciary and makes mockery of an august institution in the sacred and supreme name of Shariah. What criteria or level weighs with the executive in picking a sitting Judge of the High Court to exercise the powers of Judge of the Shariat Court as against others, and what reasons or criteria weighs with it while modifying his terms of appointment. This pick and choose casts aspersions upon the institution and person of incumbent Judge and it shakes the confidence of general public in the Judiciary.

102. I now revert to the objections raised to the maintainability of the petitions by the learned

Advocates representing the respondents i.e. the petitioners are not the aggrieved persons, the petitions suffer from laches and that the Judges of the High Court cannot sit to decide upon the vires of the Shariat Court Act or Ordinance as the Judges of the High Court have themselves acted as Judges of the Shariat Court.

103. By now when the Nation alongwith the World is entering into 21st Century, it is too cruel to suggest or to say that the Advocates are not aggrieved persons when the Constitutional and appointments in the Courts and erosion on the independence of judiciary is pinching the members of the legal fraternity. The right to invoke the jurisdiction of Courts is a fundamental right of every citizen, when an authority is alleged to have violated the Constitution, law or rule. Free, fair and independent Judiciary is the only guarantee for enforcement of the rights of the citizens and if there is any impression that the Judiciary or a Judge is not free or independent of the extraneous in view of the state of law, every person is aggrieved, especially Advocates, who always have a right to be considered for appointment in the higher judiciary and have licence to appear before independent Judiciary and Judges. The Advocates have always and everywhere been accepted as aggrieved persons when the question of independence of Judiciary is involved. Reference may be made to "Sharaf Faridi and three others v. Federation of Islamic Republic of Pakistan" (PLD 1989 Kar. 404), "Government of Sindh v. Sharaf Faridi" (PLD 1994 SC 105), S.P. Gupta's case (AIR 1982 SC 149), "Supreme Court Advocates-on-Record v. Union of India" (AIR 1994 SC 268), Al-Jehad Trust v. The Federation of Pakistan" (PLD 1996 SC 324).

104. The following para from the Judges' case may be reported here: "The above reports relied upon also support M. Khairi's contention. I am inclined to hold that not only a practising Advocate but even a member of the public is entitled to see that the three limbs of the State, namely, the Legislature, the executive and the Judiciary act not in violation of any provision of the Constitution, which affect the public at large. The Fundamental rights, which are enshrined in our Constitution and which also have the backing of our religion Islam, will become meaningless if there is no independent Judiciary available in the Country. The independence of Judiciary is inextricably linked and connected with the Constitutional process of appointment of Judges of the superior Judiciary. If the appointments of Judges are not made in the manner provided in the Constitution or in terms thereof, the same will be detrimental to the independence of Judiciary which will lead to lack of confidence among the people. In my view, the appellants/petitioners have locus standi as the Constitutional questions raised in the appeal as well as in the aforesaid Constitution petition are of great public importance as to the working of the Judiciary as an independent organ of the State".

105. As for the question of laches is concerned, it is accepted principle of law that there is no estoppel against the statute.

Whenever the unconstitutionality of a statute, order or action is perceived by an aggrieved person, he is entitled to challenge the same, more so, when the wrong is continuing and would continue if the same is not stopped. Reference may be made to the case of Fazlul Qadar Chowdhry v. Mr. Muhammad Abdul Haque (PLD 1963 Supreme Court 486), wherein it is held: "Lastly, it remains to notice the argument that the High Court should have dismissed the application on the ground of laches, since it was being made nearly nine months after the appellants entered upon their respective offices as Ministers. If the Ministers were holding office without any lawful authority, their continuance in office was in the nature of a continuing wrong giving rise to a cause of action de die in diem, and, therefore, there could be no question of any laches. In any event, on questions relating to the constitutionality of actions the ground of laches cannot prevail, for there, can be estoppel against the Constitution and an act which is unconstitutional cannot become Constitutional of lapse of time, nor can it vest anyone with any kind of legal right to benefit from such an unconstitutional act." 106. In Azad Government and

others v. Sahibzada Muhammad Ishaq Zafar and others" (1994 SCR 323), it is "held: "It has been contended by the learned counsel for the appellants, Mr. S.M. Zafar, that the writ petition was filed after the lapse of a period of more than two years, and, thus, it entailed dismissal on the sole ground, and that there are circumstances which are indicative of the fact that the petitioner-respondent acquiesced in the relevant proceedings and the writ petition was hit by the principle of estoppel. It may be stated here that no authority has been cited by Mr. S.M. Zafar in support of the proposition that a writ of quo warranto is not maintainable if there is inordinate delay. On the other hand, the learned counsel for the respondents has cited a number of authorities, referred to above, which show that a writ of quo warranto cannot be dismissed merely on the ground of laches or, in other words, because it was filed after an expiry of a considerable time, reckoned from the date of accrual of cause of action. It may be observed that in Manzoor Hussain Gilani's case, referred to above, which was a case of writ of quo warranto, this Court considered the delay as a circumstance which lent support to the contention that the writ petition was actuated by malice. However, it was opined in that case, too, that mere delay in filing a writ of quo warranto is not fatal to it. The learned counsel for the petitioner-respondent has cited, at least, two recent decisions from the Supreme Court of Pakistan wherein it has been held that mere delay is not fatal to a writ of quo warranto, especially so when the interpretation of the provisions of the Constitution is involved. The question as to whether the delay in the instant case can be read as a supportive evidence to draw an inference of mala fide, cannot be gone into at the stage in view of the circumstances of this case, because it is to be ascertained after the resolution of controversial fact as to whether the respondent was reluctant to administer oath of the office to the member of Assembly due to mala fides, the learned counsel for the respondent, Sardar Refique Mehmood Khan, has relied the authorities, referred to above, there is no estoppel by acquiescence in case of a writ of quo warranto, the learned counsel has also cited the authorities to the effect that in case of a writ of quo warranto, there is always a "continuing wrong" and thus, delay is not fatal. Irrespective of the validity of the arguments advanced by the counsel for respondent, the matter does not fall within the ambit of "apparent disregard of law."

107. A peculiar feature of this case is that the law relating to the Shariat Court did exist since early 1980 but exception to its constitutionality was not noticed for the reason that Judges of the High Court, notified as such, acted as Judges of the Shariat Court. The notice of the unconstitutionality of the law was taken when the Government made impugned appointments from outside the Judges of the High Court without following any process of law. The law, authorising the appointment, and the appointments itself, were challenged immediately after the impugned amendment in the law and appointment made thereunder.

Thus the question of laches is otherwise not attracted.

108. Technical escape or restraint from determination of the Constitutional and legal disputes which have attained the public importance and have become issues of public controversy will shake the confidence of the Nation in the Judiciary and Judges. The Nation as a whole watches the working of all the Institutions and attaches high hopes with the Judiciary in a civic society where other two Institutions i.e. executive and legislature are divided and built on divergent political lines. The Judiciary should not shirk its responsibility of interpreting the Constitution and Law in stating what they mean, unless it is dragged to enter into the political questions, which have to be avoided at all costs. The objection regarding aggrieved person, laches, ouster of jurisdiction etc., before the superior Courts have to be perceived in their relative Constitutional and legal implications. An immoral or illegal act howsoever ancient or old in its continuity or usage, does not attain the morality or legality simply for the reason that it is age old or that the person the person making complaint against it is not aggrieved or that he had been living with the situation. Under Shariah it is the duty of every Muslim to stop the evil by hand, if not possible, then by words of mouth, and, if that too is not possible, one should hate it in the heart of his hearts. Under the Code of Criminal Procedure it is the duty of every citizen to make report of

cognizable offence to the competent authority and correspondingly it is the duty of the authority to entertain the complaint and redress the grievance. In the modern world of media explosion where every action of every body is openly discussed, and known to every one, the Courts cannot hide the unconstitutional and illegal actions the carpet under the pretext of above objections or excuses which were entertained under authorization threat. It is now 21st century, the era of the human rights and transparency, entertainment of above objections will be at the cost of Institution and integrity of Judges, one could eschew even that, if the act complained of extends justice and relieves burdens. However, black-mailing and mala fides of the litigation have to be kept in view, viz-a-viz the relator.

109. As far the third objection i.e. that the Judges of the High Court have acted as Judges of the Shariat Court, so they cannot be Judges of their own cause in deciding on the vires of the Shariat Court Act/Ordinance, the argument is misconceived. The administrative of justice in criminal and civil matters is the power and prerogative of the High Court, being the Court having the control and superintendence of the Courts of subordinate jurisdiction in civil and criminal matters. It hardly matters,, whether any Judge in the High Court hears or is entrusted with a civil or criminal matter or with the Constitutional matter, what however, matters, is as to whether the jurisdiction of the Judges or the Court as a whole is taken away by law. It becomes the concern and dominion of the High Court to look into the vires of the legislation when the jurisdiction exercised by the High Court (Judges of the High Court) is entrusted to persons not the Judge of the High Court. Judges of the High Court have no interest in hearing a particular case or class of cases under any particular law, but they are definitely interested in watching the dominion of the jurisdiction and constitutionality of law. It is their Constitutional obligation. So whether the jurisdiction is validly taken away from Court/Judge or as to whether a Judge/Court is vested with a jurisdiction, is a question which has to be decided by the Judge/Court itself when the question is raised before it. The High Court being the Court of original Constitutional jurisdiction under section 44 of the Constitution is the only forum to determine the jurisdiction and vires of laws when challenged or brought before it, including its own jurisdiction. In the case of *Miss Asma Jilani v. The Government of Punjab* (PLD 1972 SC 139) repelling the similar argument, it was held: "The Courts undoubtedly have the power to hear and determine any matter or controversy which is brought before them, even if be to decide whether they have the jurisdiction to determine such a matter or not. The superior Courts are, as is now well- settled, the Judges of their own jurisdiction. This is a right which has consistently been claimed by this and other Courts of superior jurisdiction in all civilised countries and it is on the basis of this very right that this Court itself went into the question of the validity of the Martial law in Doss's case".

110. In the case of "*State v. Zia-ur-Rehman and others*" (PLD 1973 SC 49), dilating upon the powers of Judiciary to determine the sphere of jurisdiction, it is held: "By virtue of the fact that it has been set up as that organ of the State which is to adjudicate upon disputes, it has the right to exercise its "judicial powers" to hear and determine even in cases where its own jurisdiction is in question. If there is a dispute on the point as to whether it has or has not jurisdiction over a certain subject-matter, it can certainly hear and determine the dispute even if the result be that it had to hold that it has no jurisdiction. " 111. The above-referred authorities are followed in the Judges' case referred above (PLD 1996 SC 324). The Judges of the superior Courts are at times entrusted with different functions which they ordinarily avoid. But when it becomes unavoidable or inevitable to perform these functions, the executive actions and orders passed, proceedings conducted, advice given or opinions formed by a Judge in that capacity, definitely demand that Judge should not sit to decide about the legality or propriety of those actions as an element of personal touch does remain there and so is designed by Article IV of Code of Conduct for Judges which is as follows "A Judge must decline resolutely to act in a case involving his own interest, including those of persons whom he regards and treats as near relatives or close friends.

"A Judge must rigidly refrain from entering into or continuing any business dealing howsoever unimportant it may be, with any party to a case before him. Should the dealing be unavoidable, he must discontinue his connection with the case forthwith." "A Judge must refuse to deal with any case in which he has been a connection with one party or its lawyer more than the other, or even with both parties and their lawyers." "To ensure that justice is not only done but is also seen to be done, a Judge must avoid all possibilities of his opinion or action in any case being swayed by any consideration of personal advantage either direct or indirect." .

112. The questions involved in these writ petitions do not relate to any interest, executive action or proceedings of any of the Judges of the Court, but are usual questions of determination of jurisdiction and vires of law, which is the sole prerogative of the superior Courts. The Judges in the High Court are not called upon to decide on a matter decided or opined by them as Judges of Shariat Court. They did exercise the jurisdiction which vests in the High Court though in the name of Shariat Court, but none did ever opine about the legality or constitutionality of jurisdiction or ouster of jurisdiction as Judge of the Shariat Court nor has any of the Judges given any pre-judgment opinion.

113. The last point which is agitated on behalf of the learned Advocates for the petitioners is that the impugned Ordinance is re- promulgated without placing the Ordinance dated 20.5.1997 (substituted form of Ordinance No. XXXV of 18th" Sept., 1996) before the Assembly, hence a violation of Section 41(2) of the Constitution and Rule 34 of the Rules of Business of the Government, 1985.

114. The Ordinance is a short term and short cut legal measure to be resorted to in extreme and extrajudicial circumstances when immediate action is unavoidable. This power is not absolute but qualified by prior approval of the Cabinet in view of Rule 32 read with Rule 34 of the Rules of Business, 1985. Relevant rules are reproduced here:- Rule 32: "Official Bills:- (1) That department administratively concerned shall be responsible for determining the contents of the proposed legislation, for consulting the other departments concerned (including the Finance Department, where necessary) and for obtaining the approval, in principle, of the Cabinet to the issue involved, before asking Law Department to give legal shape to the Bill: Provided that where the proposed legislation involves only verbal or formal amendment of an existing law, it shall not be necessary to obtain the Cabinet's approval before asking the Law, Justice and Parliamentary Affairs Department to give legal shape to it.

(2) While referring the approved legislation to the Law, Justice and Parliamentary Affairs Department, the department administratively concerned shall send a memorandum indicating precisely the lines on which it is proposed to legislate, which shall include:- (a) a statement in the form of series of proposition detailing the provisions required to be made, or preferably, a draft bill, and (b) a statement giving the objects and reasons for each provision.

(3) When a proposal for legislation is referred to the Law, Justice and Parliamentary Affairs Department, that Department shall, apart from giving shape to the draft legislation, advise the Department concerned whether any legal requirements are to be complied with before the Bill is introduced in the Assembly. The Law, Justice and Parliamentary Affairs Department shall also advise whether the proposed law disregards or violates, or is not in accordance with the fundamental rights conferred by the Act and whether a reference should be made to the Council of Islamic Ideology for advice, if not already done by the Assembly and if so what shall be the terms of that reference.

(4) The Department concerned shall then submit the case, including the advice of the Law, Justice and Parliamentary Affairs Department to the Cabinet- (a) for approval of the draft Bill; (b)

for deciding any issue that may still be outstanding; (c) for orders as to which of the following motions should be made in the Assembly- (i) that it should be taken into consideration at once; or (ii) that it should be taken up at a future date to be specified; or (iii) that it should be referred to a Select Committee or any other Committee of the Assembly; or (iv) that it should be circulated for the purpose of eliciting public opinion thereof.

(5) The Department concerned shall thereafter prepare a brief for the use of Minister, which shall include the directions given by the Cabinet regarding the line of action to be adopted with regard to the Bill.

(6) The Department shall forward to the Law, Justice and Parliamentary Affairs Department through the Prime Minister the , draft legislation.

(7) The Law, Justice and Parliamentary Affairs Department shall arrange to include the Bill in the Official Business of the Assembly. The bill shall be introduced in the Assembly by the Minister or a Parliamentary Secretary and thereafter published in the Gazette by the Assembly Secretariat. If, however the Bill is of great urgency, the Law, Justice and Parliamentary Affairs Department may request the Assembly Secretariat to publish it in the Gazette before introduction.

(8) The procedure regarding amendments shall be the same as for Official Bills.

Rule 34: "Ordinance". (1) The provisions of Rule 32 shall not apply mutatis mutandis where the proposed legislation in an Ordinance.

(2) The Law, Justice and Parliamentary Affairs Department shall promulgate the Ordinance and in the due course arrange to lay it before the Assembly as required by clause (a) of sub-section (2) of Section 41 of the Azad Jammu and Kashmir Interim Constitution Act, 1974." 115. And secondly by laying it before the Assembly in view of Section 41 of the Constitution, which is as follows: "41. Power to make Ordinance.- (1) The President may, except when the Assembly is in session, if satisfied that circumstances exist which render it necessary to take immediate action, make and promulgate an Ordinance as the circumstances may require.

(2) An Ordinance promulgat'd under this Section shall have the same force and effect as an Act, in the Assembly to make law, but every such Ordinance- (a) shall be laid before the Assembly and shall stand repealed at the expiration of four months from its promulgation or, if before the expiration of that period a resolution disapproving it is passed by the Assembly, upon the passing of that resolution, and (b) may be withdrawn at any time by the President.

(3) Without prejudice to the provisions of sub-section (2) an Ordinance laid before the Assembly shall be deemed to be a Bill introduced in the Assembly.

(4) The President shall likewise, except when the Council is in session, if » so advised by the Chairman of the Council make, promulgate and withdraw an Ordinance as the circumstances may require, and the provisions of sub-section (2) and sub-section (3) shall apply to an Ordinance so made as if references therein to Act of the Assembly and Assembly were references respectively to Act of the Council and Council." 116. The spirit of Rule 32 of the Rules of Business referred above is that the proposed for legislation to the Law Department is to be initiated by the relevant "special institutions" as they in themselves are concerned administrative departments. However, if the Law Department being the Secretariat concerned with the affairs of the special institutions itself feels necessary to propose the legislation, it is its duty to place on record of the Cabinet the proposed legislation alongwith other connected matters. In a parliamentary form of Government, the supremacy of the Parliament or the Assembly in its

legislative affairs within the realm of Constitution cannot be under-mined or ignored. It is the basic power, privilege and prerogative of the Assembly to legislate.

However, if the urgent, immediate and unavoidable circumstances exist for legislation and the Assembly is not in session or it cannot be immediately summoned, the legislation through Ordinance is permissible within the limits of Section 41 of the Constitution and Rules 32 and 34 of the Rules of Business. The approval of the emergency legislation i.e. Ordinance by the Cabinet is prerequisite. The Cabinet being the representative of the Assembly in the Government is competent to approve the legislation in the form of Ordinance. The impugned Ordinance was not put up before the Cabinet as testified by the Chief Secretary (Secretary Cabinet) in his affidavit dated 31.10.1997, wherein it is stated: 117. The file of the Law Department does not show that the Cabinet, the Prime Minister or the President were informed by the Law Secretariat of the opinion or advice of the Council of Islamic Ideology referred above. The proposal of the impugned legislation violates Rules 32 and 34 of the Rules of Business.

118. Any proposal of legislation in the form of Ordinance in violation of above rules is an assault upon the Cabinet which is the highest executive decision making body in the Government and an invasion upon the authority, power and privilege of the Assembly, if the Ordinance whether or not promulgated in the above manner, is not laid before the Assembly as required by Section 41(2) (a) of the Constitution. Section 3 of the Shariat Court Act 1993 was first amended on Sep. 18, 1996 and it was kept being repromulgated since then after the expiry of every four months. Under sub-section (3) of Section 27 of the Constitution "there shall be at least four sessions of the Assembly every year and three months shall not intervene between the first sitting of the Assembly in one session and its first sitting in the next session". Since Sep. 18, 1996 when Section 3 of the Shariat Court Act, 1993 was first amended through Ordinance, till its being again amended through the impugned Ordinance, and by now, seventeen months have elapsed. We assume as the Constitution requires that at least four sessions of the Assembly must have taken place since then. The Ordinance is not placed before the Assembly. It is kept on being repromulgated after every fourth month. It is obligatory under section 2(a) of Section 41 referred above to place the Ordinance before the Assembly. The word "shall" is mandatory for the reason that it is followed by clause providing consequences of not laying it before the Assembly i.e. "it shall stand repealed at the expiration of four months from its promulgation". Moreover, as the legislation is the power and authority of the Assembly, it amounts to violation of Constitutional authority of the Assembly to keep it away from the powers of legislation. It is a different question that if the Assembly is not in existence or stands dissolved, that the mandatory requirement referred above shall commence from the date when the Assembly made through Ordinance, subject to the Constitution and Rules of Business. The unconstitutional law is without lawful authority even if it is passed by the Assembly, but law making remains the prerogative of the Assembly only, and it remains in force till it is declared unconstitutional by the superior Courts.

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(crVfy) 119. The continuous repromulgation of the Ordinance has not been approved and is held to be violative of the Constitution by the superior Courts of sub-continent. The relevant provisions regulating the issuance of Ordinances in Pakistan and Indian Constitutions are similar to those of Section 41 of our Constitution, except to the extent of brevity of words. In the case of "Collector of Customs, Karachi v. M/s. New Electronics (Pvt) Limited and 59 others" (PLD 1994 SC 363), it is held: Per Mr. Justice Ajmal Mian: "However it will suffice to observe that the under-lined idea/philosophy seems to be that the legislative power vests in an Assembly, which power cannot be usurped by a Head of the State or a Province while the Assembly exists. The above reason will not hold good if an Assembly stands dissolved and for a justifiable reason, it has not been reconstituted within the period specified in the relevant article of the Constitution.

I am inclined to hold that if the National Assembly does not stand dissolved, the President cannot usurp the legislative power of the National Assembly by repeating the same Ordinance without submitting it in terms of Article 89 of the Constitution to the National Assembly".

Per Mr. Justice Saleem Akhtar: "A perusal of this provision will show that firstly the National Assembly should not be in session and secondly, the President should be satisfied as to the existence of circumstances which require immediate action. The words "circumstances exist which render it necessary to take immediate action" do indicate to situation which requires immediate action for dealing with the problem at hand. On these conditions the President can promulgate an Ordinance which would be subject to such restrictions as are imposed on the legislative power of Majlis-e-Shoora to make the law. However, a further safety value has been inserted by Clause (2)(a) which requires that such Ordinance shall be laid before the National Assembly if it contains provisions dealing with all or any of the matters specified in clause A'7'2 nn/) in AtVior r»ocac Kpfnrp Knth HnilCPC Thp lifiP of the Ordinance is only four months form its promulgation or less, if before the expiration of the said period a resolution is passed by the National Assembly disapproving it. Similar is the position in cases where the Ordinance is to be placed before both the Houses. Lastly the President can withdraw the Ordinance, but such withdrawal should be either within four months of the promulgation of the Ordinance or before the resolution disapproving it is passed by the Assembly or both the Houses as the case may be. Therefore, the President does not enjoy unfettered power to promulgate the Ordinance. The period of four months provided in Article 89(2)(a)(i) and (ii) has great significance in the scheme of the Constitution. The life of an Ordinance has been limited to a maximum period of four months inter alia to maintain the democratic federal character of the Constitution, the supremacy of the legislature through the National Assembly, the Senate or the Provincial Assemblies and to avoid legislation by Ordinances. In case the President is empowered to reenact Ordinances which lapse on expiry of four months and are not placed before the Assembly, it will amount to giving a vast power to the President to bypass the Assemblies and to rule by Ordinances.

It is the scheme and intention of the Constitution that limitation has been placed on the power of the President and the life of the Ordinance is limited to a maximum period of four months. If one accepts the contention that re-enactment is permissible under the Constitution, then the restraint placed by the Constitution will be meaningless and the period of four months mentioned in Article 89 will merely become illusory." 120. In the case of *Dr. D. C. Wandhwa and others v. State of Bihar and others* (AIR 1987 SC 579), it is held: "The power conferred on the Governor to issue Ordinances is in the nature of an emergency power which is vested in the Governor for taking immediate action where such action may become necessary at the time when the Legislature is not in session. The primary law making authority under the Constitution is the Legislature and not the Executive but it is possible that when the legislature is not in session circumstances may arise which render it necessary to take immediate action and in such a case in order that public interest may not suffer by reason of the inability of the Legislature to make law to deal with the emergency situation, the Governor is vested with the power to promulgate Ordinances. But every Ordinance promulgated by the Governor must be placed before the Legislature and it would cease to operate at the expiration of six weeks from the re-assembly of the Legislature or if before the expiration of that period a resolution disapproving it is passed by the Legislature Assembly and agreed to by the Legislative Council, if any. The object of this provision is that since the power conferred on the Governor to issue Ordinance is an emergent power exercisable when the Legislature is not in session, an Ordinance promulgated by the Governor to deal with a situation which requires immediate action and which cannot wait until the legislature reassembles must necessarily have a limited life. Since Article 174 enjoins that the Legislature shall meet at least twice in a year but six months shall not intervene between its last sitting in one session and the date appointed for its first sitting in the next session and an Ordinance made by

the Governor must cease to operate at the expiration of six weeks from the re-assembly of the legislature, it is obvious that the maximum life of an Ordinance cannot exceed seven and a half months unless it is replaced by an Act of the Legislature or disapproved by the resolution of the Legislature before the expiry of that period. The power to promulgate an Ordinance is essentially a power to be used to meet an extraordinary situation and it cannot be allowed to be "perverted to serve political ends". It is contrary to all democratic norms that the Executive should have the power to make a situation, this power is conferred on the Governor and an Ordinance issued by the Governor in exercise of this power must, therefore, of necessity be limited in pot of time. That is why it is provided that the Ordinance shall cease to operate on the expiration of six weeks from the date of assembling of the Legislature. The Constitution-makers expected that if the provisions of the Ordinance are to be contained in force, this time should be sufficient for the Legislature to pass to necessary Act. But if within this time the Legislature does not pass such an Act, the Ordinance must come to an end. The Executive cannot continue the provisions of the Ordinance in force without going to the Legislature.

The law-making function is entrusted by the Constitution to the Legislature consisting of the representatives of the people and if the Executive were permitted to continue the provisions of an Ordinance in force by adopting the methodology of repromulgation without submitting to the voice of the legislature, it would be nothing short of usurpation by the Executive of the lawmaking function of the Legislature. " 121. No justifiable reason is placed on record nor argued at bar as to. why the Ordinance No., XXXV, dated 18.9.1996 or the impugned Ordinance was not laid before the Assembly. The action of the respondent-Government is, therefore violative of Section 41 of the Constitution and all the Ordinances relating to the legislation in dispute till now, subsequent to Ordinance No. XXXV, dated 18.9.1996 are without lawful authority and of no legal effect. However, judicial orders passed, actions taken, proceedings conducted by the Shariat Court or any of its Judges will not be affected and shall remain valid in view of the de facto doctrine.

However, the executive actions, orders of appointment etc., under the Ordinances being the continuous wrong under an unconstitutional legislation are without lawful authority for this reason as well, besides the reasons discussed above.

122. If the temporary legislation as held by the Supreme Court of Azad Jammu and Kashmir in the case of "Mir Haider Shah v.

Azad Government and others" (1992 SCR 320) express, the permanent legislation revives. Following this view, Shariat Court Act, 1993, as it was before its amendment vide Ordinance No. XXXV, dated 18.9.1996, remains in the field. Thus viewed from any angle i.e. assuming the existing impugned Ordinance to be in operation (which is not) or original Act of 1993, being revived, the Shariat Court is made parallel to, and equal with the High Court, and the. appointments made thereunder are not governed by any scheme of law as discussed above.

123. Another aspect of the impugned legislation also requires attention and determination. The learned Advocates appearing for the respondents did not place on record nor pleaded before the Court as to what object the Government wanted to achieve by promulgation of the impugned Ordinance. Legislation in fact is a very sacred trust entrusted by the Nation to its representative sent to the Assembly. The Ordinance no doubt has the same force as an Act of the Assembly, thus for all practical purposes it is to be treated as such. Law is always for some Public/National purpose. The aims and objects of the law have to be clear and transparent and it has "to disclose the state of circumstances, compelling reasons, public purpose and objectives of the impugned legislation," as held by the High Court in the case of Javed Iqbal Khawaja referred above.

124. The President, in whose name the Government expresses its executive authority, had itself enacted Ordinance No. XXXV on Sep. 18, 1996, amending Shariat Court Act, 1993, designating the Chief Justice and Judges of the High Court as the Chief Justice and Judges of the Shariat Court. The reasons recorded in the file of the Law Department (No. 64/96) containing the above amending Ordinance are state as: 3 JS- Jlf Sc- uf 1/ *c\j.Jv#JrdZ 4 2- U# izsi/ iijjy'-jijt -2-1? jjiS1 f >z\j& iji sjc-?s Jil & J\ c3j CX JL JU!IJ i// vjl 1/jK ->Ul wl; CX (jf wi? vji / V> 0* S £_j t,01?! £ J** Jrt. js\ 'A £ i;/j jy' - jlf 'T"7II(I? Vj/(Ji Jfc) *mr wiXi J>v/Jlf 2L<£jtj± iijf J>1 (w w) ajr""c/* <£-' ITF (J r s>IT iijH" s>IT ZIX. jl c~ j, fir* J? js\ } i/ \$r hj?i ir t/cL r £ j/vj WC? \f~sj I 'Z'jy* JI5I - (Jlf (J f vjl "ul t/ iijse i yjj ji? »cytr 125. Section 3 of the Shariat Court Act, 1993 was amended through the above Ordinance and it remained in force in the above form by being repromulgated after every four months till the impugned amending Ordinance Mo. XL was enacted on 16.10.1997. The Law Minister, instead of placing the ,arlier Ordinance before the Assembly, recorded the following Note on 17.9.1997 when the same was sent to him for re-promulgation of the Ordinance: j'l ~c~ Z tjp.y' colif -if1 i'Jlf VIA *Sx> 2- <*b" Jiut i- Ljf- cjts JfijugrltSjizL The Prime Minister approved the Note on 18.9.1997. The impugned Ordinance was thereafter issued.

126. When the first amendment in the Shariat Court Act, 1993 was made on Sep. 18, 1996, cogent reasons and object of the amending Ordinance was recorded, but on 17.9.1997, it was recommended by the Law Minister to be dropped as having last its utility or efficacy. The Law Secretary putting up the proposal for dropping the earlier scheme of the Shariat Court amending Ordinance and enacting the impugned one, recorded on 18.9.1997 that: g v ii V mr X\ L g (/Ji WC? >jiu L -2-'J>. 2-x 4 fbt t/1 zsL/ uUCUf t£j/>/i J1/k-ieJshjiis'sW'df smL JWLcU FT'O>IR > ~M JI j l iijP* Jr jf'/- £-fp/ tjii)i>r* tyUS IJF When the composition of the Shariat Court as provided by its Act 1993 was changed in 1996 through Ordinance, the reasons and object cited was that huge work load is accumulated in the Shariat Court, and when the scheme was changed, the reasons and object for the impugned Ordinance is cited that it if It is paradoxial that no figures, list or number of cases was with the Law Department at any of the above occasions.

27. The Law Department is back bone of the Government. It is always expected of it that it has to tender true, becoming upright and straight advice and proposal to the Government for action or legislation. The purpose and object of the legislation is not to meet a particular eventuality or benefit a particular individual. It is for the Nation and Society, and to remain on the statute unless its remaining as such is harmful for the State and Society reasonably and responsibly proposed and enacted. In legislating through drastic step of legislation i.e. Ordinance, all the more responsible attitude and mode has to be adopted. In Javed Iqbal Khawaja's case, the High Court, striking down an Act of the Assembly, stated that: "In order to enforce drastic legislation in the shape of impugned Act, it was enjoined upon the legislation and the government to reflect positive objectives, containing the interest of the State, citizens or the civil service. In absence of justifiable conditions, reasons or objectives, the enforcement of impugned legislation cannot be upheld." 128. The Court, for its satisfaction, inquired from the Registrar High Court as well as Registrar Shariat Court the actual number of cases pending before the Courts in their original, appellate or revisional jurisdiction. It is surprising that since the creation of the Shariat Court in 1980 till the report of the Reader of the Court dated 11.2.1998, only twelve Shariat petitions have been registered in the Shariat Court out of which only two pending at the moment. The total number of pending cases on all circuits of the High Court including the cases which are transferred from jurisdiction of the High Court to Shariat Court in view of amendments effected in the Islamic Penal Laws Act, Family Courts Act etc. are two thousand three hundred and eighty four (2384). None of the reasons and objectives stated for first or second amendment in the composition of the Shariat Court is supported by the figures. The Judges at the moment in the High Court are five for the above cases. If the number of cases is compared with the counterparts in Pakistan High Courts, each Judge in the High Court will be found seized with nearly equal to the total number of cases of this Court. Viewed from another angle, can the two

Judges in the Shariat Court be more fruitful with additional financial burden in a fiscally hollow Government, if not insolvent, or five Judges without any financial liability? Yet another question to be asked is as to whether the Judges appointed in accordance with the process of the Constitution and law would gather more goodwill for the State and the Government in dispensation of the justice or those appointed otherwise and in clandestine manner? It is again strange to note that only one out of two is to function as Judge while the other remains as Secretary Laws. It is unheard that a Secretary of the Government is given charge of a Judge, though a Judge is given additional change of any becoming office if he accepts it. What a legislation I reproduce here a thought provoking para from an article written by Mr. S.M. Zafar in the Daily Nation on Mar. 18, 1997: "It is time to comment on our legislative powers legislative process is not only also and cumbersome, it is hedged by local rivalries and vested interests. The inaptness of the Parliament and the absence of leaders of public opinion in the Parliament has so disappointed the country that the new role adopted by judiciary appears to be a welcome change. In addition we also know that the quality of the Statutes have suffered in contents, language and definiteness. A little more active role by the judiciary is really helpful to the whole system and the Parliament and the executive better learn to live with it." 129. In a rejoinder filed by the Advocate General in a case captioned "Raja Bashir Ahmed Khan v. Azad Government" Writ Petition No. 297/96, in which the learned Advocate General, in the sunnort of the first amendment in the Shariat Court Ordinance on Sep.

18, 1996, stated in para 3(a) of the rejoinder dated 3.12.1996 as: that the respondent Government after coming into power has sincerely embarked upon streamlining all the laws in the light of the decisions of the superior judiciary. The recent example is that of the promulgation of an Ordinance whereby the provisions of the Azad Jammu and Kashmir Shariat Court Act were amended on 18.9.1996. An Act of the Assembly has to follow the said Ordinance very soon".

130. The above statement of the Advocate General on behalf of the Government when viewed in the light of the impugned Ordinance, does not speak of proper and straight functioning of the Law Department of the Government.

131. We as responsible citizens of the State and being at the helm of affairs in the field of judicial administration, cannot be oblivious of the affairs with which the country is confronted with. We feel constrained to observe that no National, Public or Institutional interest is served by the impugned legislation. The nature of cases which entrusted to the jurisdiction of the Shariat Court, arise out of penal laws of Islam enacted and codified by the Assembly. The family laws of Islam are also enacted and codified by the Assembly. So, no question of their being against the requirements and teachings of Quran and Sunnah arises.

They have to be applied by all Courts as other codified laws. The volume and nature of work does not demand the Court in the form the impugned legislation caters. If any ambiguity remains in the enacted or codified law regarding its Islamic character in spite of various organs meant for scrutiny of laws, i.e. Department of Law, Legislative Assembly, the Council of Islamic Ideology provided under section 32 of the Constitution and the similar Council established in Azad Kashmir chaired by the honourable Chief Justice of Azad Jammu and Kashmir and composed of learned scholars, then God alone may help us.

132. Be that as it may, if still such an eventuality arises, religious scholars renowned calibre can be associated as recommended by the Council of Islamic Ideology of Azad Kashmir, headed by the honourable Chief Justice of Azad Jammu and Kashmir, or if five Judges of the High Court and three in the Supreme Court are deemed insufficient for the purpose, the number of Judges can be increased on the lines suggested by the Council of Islamic Ideology, if the State exchequer so allows and induction of renowned religious Scholars is ensured in accordance with

the process of the Constitution, for determining whether any law is against the requirements of Quran and Sunnah when such a question arises in a case or is raised through a petition.

133. During the pendency of the writ petitions, the Court was informed through a written application that the President has filed a reference in the Supreme Court under section 46-A of the Constitution for its opinion on the points in dispute before the High Court. It is answered by the Supreme Court on 12.3.1998. The reference and its answer by the Supreme Court are perused.

134. It is paradoxical that the President stating in the reference that "Government has clear view on the point that Shariat Court Act does not, in any way, abridge jurisdiction conferred on High Court", and also that "vires of Shariat Court are challenged through different writ petitions and revisions", still opinion of the Supreme Court was sought on the same points which were sub judice before the High Court in its Constitutional jurisdiction, in which the Government had entered into rejoinder engaging three Advocates besides its Law Secretary being personally and officially a party in the case, the purpose seems to obtain prejudgment opinion. The Supreme Court of Pakistan in famous Judges case (PLD 1996 S.C. 324) refused to adjudicate upon the petitions when the similar case was pending in the High Court against the appointment of Chief Justice, though the Supreme Court was vested with the jurisdiction in its original capacity under Article 184(3) of the Constitution.

135. Two opinions of the national institutions of Azad Jammu and Kashmir are before the Court regarding the Shariat Court, one given by the Supreme Court in Reference No. 1 of 1998 made by the President and the other given by the Council of Islamic Ideology of Azad Jammu and Kashmir on reference made by the Prime Minister, as referred in the judgment above. All the Courts in Azad Jammu and Kashmir are bound by the decisions of the Supreme Court under section 42-B and of the High Court under section 44-B of the Constitution, and not by the opinion of the Court given under section 46-A which is an administrative function/opinion of the Court, not judicial; so is the opinion of the Supreme Court as reported in 1997 SCR 108 in President's Reference No. 1 of 1996 and of the Supreme Court of Pakistan as held in *Aljehad Trust v. Federation of Pakistan* (PLD 1997 SC 84) as follows: "Opinion of the Supreme Court is just opinion with explanation on the question of law and is not of binding nature and it is upto the President or the Federal Government to act upon it or not." and of the Supreme Court of India in A.I.R. 1960 S.C. 845 and A.I.R. 1974 S.C. 1862. The Federal Court, in A.I.R. 1944 F.C. 33, has held that the "advisory opinions of the Federal Court are nonetheless binding upon it in subsequent cases", while the Supreme Court of India in A.I.R. 1979 S.C. 478, has opined that the view expressed by the Supreme Court in advisory *iirisriif'tinn nnpht tn he hindine* and also said that: "We are not unfrindful of the view expressed by an eminent writer that although the advisory opinion given by the Supreme Court has high persuasive authority, it is not law declared by it within the meaning of Article 141." Article 141 of the Indian Constitution is similar to Section 42-B of our Constitution. It is correct to accept that such opinion is entitled to the highest respect, so it should not be commented upon if not followed, and we respectfully do the same. Except on one or two points, the decisions of the Supreme Courts of Azad Jammu and Kashmir & Pakistan are available on almost every point discussed above and on the main points involved in the petition i.e. appointments in the Shariat Court, jurisdiction conferred on it and jurisdiction of High Court for declaring in law as un-Islamic. I am guided by the enunciation of law made in regularly decided cases and am enlightened by the opinion of the Supreme Court and recommendations of the Council of Islamic Ideology.

136. The opinion of the Council of Islamic Ideology, which was given by the Council composed of renowned religious scholars, headed by the sitting Chief Justice of Azad Jammu and Kashmir, is, however, binding upon the Government for being placed before the Assembly for legislation as

provided by sub-section (2) of Section 10 of the Enforcement of Shariah Act, 1989. The Rules of Business of the Government also oblige so. The opinion also appears nearer to establishment of the Courts set up at the subordinate level, where an Aalim-e-Din (religious scholar with prescribed qualifications) is associated with Sessions Judge and Sub-Judge in Hudood, Qisas, Diyyat, etc. cases.

137. In view of the reasons based on law and judicial precedents discussed above, the conclusion is that a Court or Courts with specific and special jurisdiction at subordinate level can be established under law subject to control and superintendence of High Court only, under section 46 of the Constitution. The jurisdiction conferred on the Shariat Court under section 6 of the Shariat Court Act stands already vested in the High Court under section 44(2)(ii) of the Constitution read with sections 3 and 31(3) thereof and the provisions of Enforcement of Shariah Act, 1989. All Courts and Judges are bound to decide the cases in accordance with Shariah as ordained by Almighty Allah in Quran. In an Islamic State, every Court is a Shariat Court to administer the law made by Assembly of a Muslim State who cannot make any law repugnant to Injunctions of Holy Quran and Sunnah. A Court in the name of Shariat Court to decide whether any law is repugnant to the Injunctions of Islam as laid down in Quran and Sunnah not comprising of religious scholars of acknowledged qualification in Islamic Fiqah and not appointed in accordance with the manner other civil servants with similar or equal grade, pay and status are appointed is a mockery, and law authorising such appointments without providing mode and method of appointment and left to be appointed over and above the Selection Board, when the appointment is for a tenure, and without advertisement of the post and suitability test, when it is of a permanent nature, is ultra vires the Constitution and without lawful authority. Constitution of the Shariat Benches in the Supreme Court and High Court as recommended by the Council of Islamic Ideology by appointment of religious scholars therein is in line with the system of Courts already functioning in Azad Kashmir at subordinate, level. The substitution of the words "Shariat Court" for "High Court" in various laws is subversion of the Constitution. No Court or institution at par or parallel and with the jurisdiction vested in the High Court or Supreme Court can be established under law. President cannot pass any order without or against the advice of the Prime Minister or the Council, as the case may be. No Ordinance can be promulgated without approval of the Cabinet and re-promulgated after expiry of four months unless the Assembly stands dissolved or not in existence due to any emergency. The Government is bound to place the recommendations of the Council of Islamic Ideology before the Assembly.

138. In view of above, it is declared that:~ (a) Sub-sections (2), (5), (8 11) words "as the Chief Justice may appoint" of sub-section (7) of Section 3 of the Shariat Court, Ordinance No. XL of 1997, dated 16.10.1997 and similar provisions in any other Act or Ordinance, if any; (b) Sub-sections (2) and (4) of Section 7; (c) The words "Shariat Court" in section 8; and (d) Sections 9, 10, 11(2), 13(C) and 14 of the Shariat Court Act, 1993; (2) (a) Sub-sections (7), and the words "Shariat Court" in subsection (8) of Section 23; and (b) Sections 25 and 31 of Islamic Penal Laws Act i.e. The Azad Jammu and Kashmir Islamic (Tazirati) Qawanin Nafaz Act, 1974 (Act XI of 1974); (3) The Apaptation/Application and Enforcement of above-referred provisions of Islamic Penal Laws Act, conferring jurisdiction on Shariat Court alongwith similar provisions under the following laws: nffonpac A oointr Dr/nortir /Ctifnrooinont A r>* 1ftQC.

(ii) Offence of Zina (Enforcement of Hudood) Act, 1985; (iii) The Offence of Qazaf (Enforcement of Hadd) Act, 1985; (iv) The Prohibition (Enforcement of Hadd) Act, 1985; (v) Section 338-D of the Azad Penal Code (Amendment) Act, 1995; (4) Section 14(1) of the Azad Jammu and Kashmir Family Courts Act, 1993; (5) The words "Shariat Court" in Sections 2(C) and 10 of Ehteshab Act, 1997; and .

all other provisions under any law whereby the Shariat Court is substituted for the High Court,

are declared ultra vires the Constitution, hence without lawful authority and of no legal effect; II. Appointment of respondents Nos. 1 and 2 through Notification No. LD/4/4/97-AD, dated 27.10.1997 as Judges of the Shariat Court in the Petition filed by "Genuine Rights Commission and others v. Iftikhar Hussain Butt and others" being against the Constitution and law, is declared without lawful authority and of no legal effect; III. The points of law raised, pleaded and argued in the above petitions and rejoinders but not decided, are left open to be decided as and when specifically raised in any other case.

No order as to costs.

MUHAMMAD SIDDIQUE FAROOQI, I have gone through the judgment recorded by my learned brother, Mr. Justice Syed Manzoor Hussain Gilani in this case, except to the extent of the views, observations and additions hereinafter appearing and substantially agree with the exposition of law and conclusion arrived at by him in the judgment (to be referred as main judgment).

2. I agree that a Court equivalent in status to the High Court, cannot be established. The concept of creating Courts exercising powers and jurisdiction in criminal and civil cases exists in the Interim Constitution Act only in relation to the Supreme Court, High Court and the subordinate Courts. The words "in addition to the Supreme Court and High Court" used in Section 46 of the Interim Constitution Act do not authorize the establishment of the Courts parallel to the High Court and Supreme Court. The aforesaid two Courts have the jurisdiction in all criminal and civil cases, except where a special domain is allotted to any other Court/Tribunal like those provided in the Interim Constitution Act. The provisions embodied in Pakistan Constitution regarding the establishment of Administrative Courts and Shariat Court etc. The detailed reasons in this behalf have been already given in the main judgment, as such those need not be repeated.

3. The provisions of Shariat Court Act transferring powers of High Court to the Shariat Court together with the provisions relating to the bar of jurisdiction of the High Court and the Supreme Court and the provisions relating to the appeals to the Supreme Court are violative of the Interim Constitution as the same abridge the powers of the High Court.

4. As a result of this, all such similar provisions, i.e. Section 25, etc of the Islamic-Penal Laws Enforcement Act, 1974 and those in Hudood Laws are also violative of the Interim Constitution Act, whereby the jurisdiction which earlier was vested in the High Court has been conferred upon the Shariat Court.

5. The Shariat Court was established with a view to create a forum which would exercise the powers in relation to the litigation where the matter in issue requires a finding whether any law is repugnant to the Injunctions of Islam or not: To that extent; the powers were not expressly conferred upon the High Court, as such the establishment of Shariat Court for this purpose is not violative of the Interim Constitution Act and a Court, with this jurisdiction, can be established. The provisions of Shariat Court Act to that extent are not violative of the Interim Constitution Act, therefore, these are valid pieces of legislation and any amendment in law made, within this parameter would be justified whether made through an Act of the Assembly or through an Ordinance promulgated, by the President of Azad Jammu and Kashmir in exercise of the powers conferred upon him under the Interim Constitution Act.

6. So far as the appointment of the Judges is concerned, the President of Azad Jammu and Kashmir has been invested with the powers to appoint them. Any procedure is not provided as has been done in the Interim Constitution Act in relation to the appointment of the Judges in the High Court. It would be desirable that consultation with the learned Chief Justice of Azad

Kashmir and the learned Chief Justice of High Court and in the matter of Judges from Ulamas, consultation with the Council of Islamic Ideology should have been provided for. Apart from, that, in the matter of suitability of Judge who has to give findings whether a law is repugnant to the Injunctions of Islam or not, the person well-versed with the teaching of Islam and being a recognized scholar, should be associated as Judge in this Court. A person qualified for the appointment as Judge of High Court may also be appointed in this Court so as to enable the Court to interpret the provisions of law keeping in view the well- established principles of modern law and requirement of present day society,'as is done in case of Shariat Court in Pakistan.

Without the association of Ulemas the constitution of Shariat Court would become a mockery. If Ulemas are not to be associated, then the job can be performed by the Judges in the High Court and in case of necessity, if any, the number of Judges in this Court can be increased. This course will avoid the dual and parallel systems. The Shariat Court should comprise of Judges being scholars of a recognized standing in Islamic Shariah as well as some persons with the qualification for being appointed as Judge of High Court if its separate entity is desired.

7. A mechanism should be provided to make the matter transparent and to 'avoid the doubts otherwise arising about the appointment of Judges so that the public at large has a confidence on one hand and possibility of creeping in, of unsuitable persons is eliminated on the other.

8. In the matter of appointment of present two Judges in the Shariat Court, a writ of quo warranto has been also sought for.

The factors pointed out in the main judgment, are substantially correct and there are some defects in these appointments.

Nevertheless, I am of the opinion that the Judges should have been confronted with the points enumerated in the main judgment so that they could avail the opportunity of justifying their cases. For example, Sardar Muhammad Nawaz Khan was placed in the panel for appointment of Judge in High Court by the learned Chief Justice of Azad Kashmir, and the learned Chief Justice of the High Court. He was also recommended by the President of Azad Jammu and Kashmir for also this purpose. His suitability thus cannot be disputed. It is unfortunate that in spite of this point being in issue, the Counsel for the respondents did not defend him on this score. Had these points been clearly confronted to him, he would have been able to defend the same. The appointment is thus, not illegal as the consultation was not required under the existing law.

9. So far as the political motivation is concerned, the presence of Sardar Khalid Ibrahim Khan, in the meeting as indicated in the note of the Chief Secretary, does suggest the inferences of political interest. These elements would continue so long as the powers of appointments vest in the Executive, particularly during the period, the political parties are in power. So, it is not a new thing. Such factors shall only be eliminated if the appointments are to be made purely on the recommendation of the judiciary.

10. So far as the appointment of Mr. Iftikhar Hussain Butt is concerned, he was one of the senior most District and Sessions Judges. His name was not placed in any panel by the learned Chief Justice of Azad Kashmir nor by the Chief Justice of High Court when the appointment of a Judge in the High Court was under consideration. Therefore, his case is slightly different from that of Sardar Muhammad Nawaz Khan on this score. Apart from that, some other factors have also been pointed out in the main judgment. Perhaps, he would have been able to give any explanation if he was properly confronted with the reasons appearing against him. It is proper to point out that even the petitioners or the Counsel for the petitioners have not specifically raised the points which appear in the earlier part of the judgment. The appointment of a Secretary Law

and Parliamentary Affairs, as Judge of the Shariat Court is unbecoming in the circumstances that basically his position as Secretary has been maintained. It is not possible that a person may continue to remain a civil servant and at the same time become a Judge of superior Court. It is lawful that a Judge of superior Court is assigned the job of Secretary but a Secretary cannot be assigned the functions of a Judge of the superior judiciary. The Secretary Law is a key-person in the process of legislation. He has to defend the law if challenged by some body in the Court. How he can be a Judge of the Shariat Court when his duties are conflicting. Thus, his appointment in its present form is improper and needs rectification. As a Judge of Shariat Court he may function as Secretary of a Department where his duties do not conflict with each other. If time would have been allowed to the incumbent, he, could have made a choice to hold one of the two offices or the Government could have taken corrective steps. In my view, two months' time should have been given to the incumbent as has been done in Pakistan in the cases of Speedy Trial Courts for taking certain corrective measures. Even in the famous Judges case decided by the Supreme Court of Pakistan some of the Judges found to be illegally appointed, were not straightaway relieved through the judgment, rather the Government was directed to take appropriate steps.

So the Government regularized some of the Judges while others were required to quit the offices. In my opinion instead of quashing of the appointments, some time should be granted for the corrective measures.

11. In the matter of the appointment in various services, I have slightly a different view. The appointment of Judges in superior judiciary is to be made according to the procedure laid down in the Interim Constitution. In case of civil service, the Public Service Commission makes the selection for the posts above a certain limit and the committee below that. There are general principles for other bodies and institutions for which the Public Service Commission does not make the selection, notwithstanding that these are valid because such bodies have their own selection authorities and the appointments are made on the basis of the selection. Only the posts of Private Secretaries and Public Relation Officers etc., which are purely on personal establishment of the Ministers and the Holders of Representative Offices are made at the discretion of such dignitaries. The posts of Judges in the Shariat Court are not to be made in the manner provided for the discretionary staff. It has been held in the main part of the judgment that Law Minister is not an authority to make the selection. His proposal should not be a base for advice by the Prime Minister or for the approval by the President rather wider penal of class of the persons to which the appointees belong, are to be considered by the advising or approving authority.

Although the provisions of law relating to the appointments are not unconstitutional but certainly lacking propriety keeping in view the responsibilities of the Judges. The detailed reasons have been already given in the main judgment. The Government should take corrective steps for the improvement of legislation.

12. Another point argued before the Court, which needs determination as to whether the Judges could be allowed the pay privileges and the terms and conditions at par with the Judges of the High Court. I disagree with the main judgment on this point. The grounds appearing in the case titled "Raja Bashir Ahmed Khan v. Azad Jammu and Kashmir Government¹" decided by the Full Bench affords complete answer to this question.

13. As a result of the aforesaid discussion, the writ petitions of Ghulam Mustafa Mughal, Shahid Bahar and Genuine Rights Commission merit acceptance to the extent that Sections 9 and 10 of the Azad Jammu and Kashmir Shariat Court Act, 1993, Sections 23, 25 and 31 of the Azad Jammu and Kashmir Islamic Penal Laws Enforcement Act, 1974, so far as these relate (o Shariat

Court, Section 338-D of the Penal Code as amended and similar provisions of Hadood Laws mentioned in the main judgment conferring appellate/revisonal jurisdiction upon the Shariat Court are to be struck down. The petitions so far as these relate to quo warranto against Sardar Muhammad Khan and Iftikhar Hussain Butt, are disposed of which the direction that the Government may take corrective steps as pointed out in the earlier part of the judgment within two months.

' MINORITY JUDGMENT MUHAMMAD REAZ AKHTAR CHAUHDARY, J. (dissenting). - I have gone through the judgment recorded by-my learned brother Mr. Justice Manzoor Hussain Gilani and am unable to agree with him for the following reasons:- The detail facts and the arguments of the learned Counsel for the parties have been incorporated in the judgment, therefore, need not to repeat the same.

During the pendency of the aforesaid writ petitions, a Reference was made by the President of AJ & K before the Supreme Court of Azad Jammu and Kashmir under Section 46-A of the Azad J & K Interim Constitution Act, 1974 (hereinafter to be referred as Act, 1974). This reference was made on all the points involved in the instant writ petitions, except regarding the validity of the appointments of the respondents Nos. 1 and 2, which has been challenged through Writ Petition No. 448. After the decision of the Reference, this Court passed an order and directed the Advocate General to place the copy of the judgment on the file. The requisite copy was produced by Advocate General. The perusal of the judgment of the Supreme Court shows that it was observed by the Supreme Court, that by the establishment of the Shariat Court, no powers of the High Court have been taken away, which were available to it u/s. 31(5) of the Act, 1974. It was also observed by the Supreme Court that even before the establishment of the Shariat Court, the High Court had no jurisdiction to declare a law void on the ground of being repugnant to Islam, therefore, no jurisdiction of the High Court has been taken away and conferred upon the Shariat Court of Azad Jammu and Kashmir. I would like to reproduce the finding of the Supreme Court which is as under "14. First we deal with the questions as to whether the establishment of the Shariat Court takes away any power of the High Court which vested in it under the provisions of section 31(5) of the Constitution Act. It may be stated that the question as to whether the High Court is empowered to declare law as void because the same is against the Injunctions of Islam, came up for consideration in a case reported as "Faqr Ali v. Standard Bank Ltd., Muzaffarabad (PLD 1979 SC AJK) wherein it was held that the phraseology employed in the aforesaid provision does not empower the High Court to declare a law as void even if it is against the Injunctions of Islam and it would remain on the statute book of Azad Jammu and Kashmir as a valid law till it is amended by the Legislature according to the provisions of the Constitution. It may be observed that undersub-section(l) of Section 4 of the Constitution Act, any law on custom of usage having the force of law which is inconsistent with the fundamental right guaranteed by the Constitution Act, shall be void but no such phraseology has been used in section 31(5) of the Constitution Act or any other provisions whereby any such law is void and can be so declared. The relevant extract from the aforesaid authority of this Court is reproduced as below:- "This section, it appears, is not happily worded as is its comparable Article 227 of the Constitution of Islamic Republic of Pakistan (1973). However, even as it is worded, it does not strike down all existing laws even if they are repugnant to the injunctions embodied in the Holy Qur'an and Sunnah. All that its relevant sub-section (5) states is that legislation is not to be repugnant to the teachings and requirements of Islam as set out in the Holy Qur'an and Sunnah. For this, it contains a mandate that all existing laws are to be brought in conformity with the Holy Qur'an and Sunnah. This very mandate about the existing laws which are not in conformity with the requirements of Holy Quran and Sunnah makes it amply clear that the law-maker did not intend to strike down automatically all such existing laws. Therefore, in our view, all such existing laws will continue to be operative till the mandate of bringing them in conformity with the Holy Qur'an and Sunnah is carried out through proper Legislation. Section 48 of the Courts & Laws Code,

1949 or sub-section (5) of Section 31 of the Constitution Act do not per se render laws which are on the statute book as inoperative even if they are not according to tenets of Islam." 15. The question again came up for consideration in case reported as *Azad Government of the State of Jammu & Kashmir v.*

Kashmir Timber Corporation (PLD 1979 SC (AJK) 139) in which it has been held that a law which is found to be violative of the Injunctions of Islam is void and can be declared as such by the High Court. However, while deciding this case, the view taken in *Faqir Ali's* case, referred to above, was not brought into the notice of the Court and it finds no reference in the judgment.

However, subsequently, the matter came up for consideration again in case reported as *Raja Muhammad Niaz Khan v. Azad Government of the State of J & K* (PLD 1988 SC (AJ&K) 53), in which both the aforesaid cases were considered and the view taken in *Faqir Ali's* case was approved while one taken in *Kashmir Timber Corporation's* case was dissented from. The aforesaid question was again considered in case reported as *Azad Jammu and Kashmir Government v. Muhammad Younus Tahir and others* (1994 SCR 341) and a difference of opinion arose between the members of the Division Bench of this Court; one of the members of the Bench was of the opinion that the view taken in *Faqir Ali's* case and *Raja Niaz's* case reported as *Faqir Ali v. Standard Bank Ltd., Muzaffarabad* (PLD 1979 SC (AJ&K) 62) and *Raja Muhammad Niaz Khan v. Azad Government of the State of Jammu and Kashmir* (PLD 1988 SC (AJ&K) 53) was correct while the other member of the bench preferred the view taken in the case reported as *Azad Government of the State of Jammu & Kashmir v. Kashmir Timber Corporation* (PLD 1979 SC (AJ&K) 139). As the matter was disposed of on other grounds, the difference of opinion remained as such. It may be stated that the view taken in *Raja Niaz's* case must prevail because the same was taken after considering the previous conflicting views taken in *Azad Government of the State of Jammu & Kashmir v. Kashmir Timber Corporation* (PLD 1979 SC (AJ&K) 139) and *Faqir Ali v. Standard Bank Ltd., Muzaffarabad* (PLD 1979 SC (AJ&K) 62). It follows from what has been stated above that this Court has been of the view that even before the establishment of the Shariat Court, the High Court had no jurisdiction to declare a law as void on this ground of being repugnant to Islam, as is evident from cases of *Faqir Ali* and *Raja Niaz*, referred to above. It may be observed here that a perusal of Section 31(5) and Section 32 of the Constitution Act would reveal that the laws, whether they were enacted before the promulgation of the Constitution Act, or after, would remain as valid laws until and unless the same are same amended, altered or abrogated by the Legislature. The perusal of the Shariat Court Act also reveals that a law which is repugnant to the Injunctions of Islam would remain a valid law and all the pending cases to be decided according to law as it stood on the statute book. It has been laid down in clauses (a) and (b) of sub-section (3) of section 6 of the Shariat Court Act that after the declaration by the Shariat Court that a law is repugnant to Islam, the President shall take steps to amend the law so as to bring the same in conformity with the Injunctions of Islam, and that the previous law would cease to have effect on the date on which the decision of the Court takes effect and not prior to that. There are identical provisions in the Shari'ah Act, 1989 wherein it is stipulated is proviso to sub-section (5) of section 4 that decision of the High Court declaring certain laws repugnant to Injunctions of Islam shall be effective after sixty days of the decision and this period may be extended. Similarly, section 32 of the Constitution Act stipulates that 1/3rd of the members of the Legislative Assembly or the Azad Jammu & Kashmir Council, as the case may be, may refer a question for advice to the Council of Islamic Ideology of Pakistan, as to whether the proposed law is repugnant to the Injunctions of Islam, but under sub-section (3) of section 32, the Legislative Assembly or the Council would not wait for the advice of the Council of Islamic Ideology but pass the relevant law and promulgate the same.

However, when any advice is received from the Council of Islamic Ideology, it may be considered by the Assembly or the Council.

Here again, there is no stipulation that the Azad Jammu & Kashmir Assembly or the Council is bound by the advice of the Council of Islamic Ideology or the law found to have been against the Injunctions of Islam by the Council of Islamic ideology, would be deemed void. It may also be observed that a separate Council of Islamic Ideology has been functioning in Azad Jammu & Kashmir under the Act of Assembly since long; the said Council has been making recommendations with regard to the laws passed by the Azad Jammu and Kashmir Legislative Assembly and the Azad Jammu and Kashmir Council to bring various statutes in conformity with the Injunctions of Islam, many of such recommendations regarding existing laws, whether they were made before the promulgation of Constitution Act or afterwards, have been amended and brought in conformity with the Injunctions of Islam. It is evident from what has been stated above that there is no provision in the Constitution Act which declares a law against the Injunctions of Islam as being void, as has been envisaged in case of inconsistency of a law with any of the Fundamental Rights.

It follows from this that in view of the dictum of this Court, referred to above, the High Court, even prior to the establishment of the Shariat Court, was not empowered to declare a law void on the ground of being violative of the Injunctions of Holy Quran and Sunnah. Therefore, it cannot be said that section 10 of the Shariat Court Act abridges or takes away the powers of the High Court or for that matter, the Supreme Court to declare a law as being void because no such jurisdiction existed even prior to the promulgation of the Shariat Court Act. If any such power did not vest in the High Court even before the promulgation of the Shariat Court, there is no question of 'abridging' or 'taking away' any such powers by the said Act." It has been clearly observed by the Supreme Court, Azad Jammu and Kashmir, that even prior to the establishment of the Shariat Court, the High Court was not empowered to declare a law void on the ground of being repugnant to the Injunctions of Holy Qur'an and Sunnah. According to the aforesaid view of the Supreme Court, the High Court was not competent to declare any law repugnant to the Injunctions of Qur'an and Sunnah as required under section 31(5) of Constitution Act, 1974, therefore, there is no question of abridging or taking away any such power by the enforcement of Shariat Court Act.

It was further observed by the Supreme Court that by providing an appeal against the judgment and order of the Shariat Court to the Supreme Court, no violation of the Constitution was committed. I would also like to reproduce the finding of the Supreme Court which is as under in para 16 of the judgment:- "16. The next ground which was made basis of arguments that the establishment of the Shariat Court curtails or abridges the jurisdiction of the High Court because sub-clauses (a) and (b) of sub-section (ii) of Section 42 of the Constitution Act stipulate, that in certain cases, an appeal against the judgment of the High Court would be competent to the Supreme Court but no such appeal would lie to the Supreme Court after the establishment of the Shariat Court or for that matter, the promulgation of the Shariat Court Act. For appreciating the matter in its true perspective, it would be expedient here to reproduce the said provision of appeal as under:- "42(1) (2) (3) (4) (5) (6) (7) (8) (9) (10) (11) An appeal shall lie to the Supreme Court of Azad Jammu and Kashmir from any judgment, decree, final order, or sentence of the High Court of Azad Jammu and Kashmir:-- (a) if the High Court on appeal reversed an order of acquittal of an accused person and sentenced him to death or to imprisonment for life, or on revision, has enhanced a sentence to a sentence as aforesaid; or (b) if the High Court has withdrawn for trial before itself any case from any Court subordinate to it and has in such trial convicted the accused person and sentenced him as aforesaid.

(c) (d) .

(e) (0 The bare reading of the aforesaid provision reveals that the above reproduced provision

does not in any way take away or curtail the jurisdiction of the High Court. The provisions deals with the question of appeal to the Supreme Court in case of certain eventualities. The Shariat Court Act does not say that the jurisdiction of the High Court to award punishment of death or to withdraw a criminal case would cease to exist. If the High Court has jurisdiction to try an offence itself or hear an appeal against the decision of a subordinate Court, it shall continue to deal with the cases as stipulated in the aforesaid Constitutional provisions. But where a power vested in the High Court under the subordinate law and same is taken away by subsequent legislation, there is no question of abridging or taking away the Constitutional jurisdiction of the High Court, there is no provision in the Constitution Act that if the punishment awarded is death, the appeal shall lie only to the High Court and not any other Court constituted under section 46 of the Constitution Act.

If the jurisdiction of the High Court is taken away by the subordinate legislations is permissible under section 46(2) and (3) of the Constitution Act, it cannot be said that the provisions of the Constitution Act contained in section 42 (II)(a) and (b) have been violated because in some cases, say that or murders, the offence is not triable by the Shariat Court and the appeal would lie to the Supreme Court and not to the High Court. Neither Section 42 of the Constitution Act nor any other provision of the same envisages that the offences which carry the penalty of death or transportation for life would essentially be triable by the High Court and not by any other Court which may be established under the provisions of section 46(2) and (3) of the Constitution Act. When the Shariat Court or for that matter, any other Court is established through a subordinate legislation in pursuance of the Constitutional provisions contained in sub-sections (2) and (3) of Section 46 of the relevant law, i.e., Code of Criminal Procedure is amended, it cannot be said that the Constitutional provisions have been violated because forum of appeals etc. in certain cases has changed. It follows from this that there is no substance in the contention that as the appeal against the judgment or order of the Shariat Court in the cases envisaged under sub-section (11 and ((b) section 42 of the Constitution Act would lie to the Supreme Court, the Constitution Act, has been violated." As the next point involved was that under sections 46(2) of Interim Constitution Act, 1974, no Court parallel to the High Court can be established. Only the subordinate Courts could be constituted and for induction in the service of the subordinate Courts, there is prescribed procedure which has not been followed. It has no substance. Section 46(1) of the Interim Constitution Act, 1974, contains that the High Court shall superintend and control all other Courts subordinate to it. Sub-section (2) contains that there shall, in addition to the Supreme Court of Azad Jammu and Kashmir and the High Court, be such other Courts as are established by law. In sub-section the words "in addition to the Supreme Court and the High Court" have been used which clearly convey that besides the High Court and the Supreme Court, other Courts equal to the High Court and the Supreme Court could be established by law. So, it could not be said that under sub-section (2) only the subordinate Courts could be constituted, so the Shariat Court could not be considered as a subordinate Court to the High Court. It was also observed by the Supreme Court as such, which is as under:- It has been also argued half-heartedly by some of the learned Counsel appearing on behalf of the Secretary of the Azad J&K Legislative Assembly that the appeal against the judgment of the Shariat Court is competent to the Supreme Court and thus, the High Court shall have no superintendence and control over the Courts subordinate to it. The argument is not relevant because Section 46 of the Constitution Act stipulates that the High Court would have control and superintendence over the Courts which are 'Subordinate to it', the Shariat Court is not subordinate to the High Court. Therefore, the argument that the Shariat Court Act is violative of Section 46 of the Constitution Act has no substance and is hereby repelled. It may also be observed that there is no provision in the Constitution Act that all the Courts constituted under sub-sections (2) and (3) of Section 46 of the Interim Constitution Act, should be necessarily subordinate to the High Court or such Courts would be under the superintendence and control of the High Court. Sub-section (1) of Section 46 only visualises that the Courts which are subordinate to the High Court would be

under the superintendence and control of the High Court and not the other Courts." The aforesaid view of the Supreme Court is very clear that the Courts constituted under section 46(2) of the Interim Constitution Act, 1974 would not necessarily be subordinate to the High Court. Therefore, it could not be said that the Shariat Court constituted under section 46(2) is subordinate to the High Court and the method prescribed for induction in the subordinate Courts has to be followed in the case of Shariat Court.

The next point involved is that the terms and conditions of the service of the Judge of the Shariat Court are as that of the Judge of the High Court, but the provisions regarding the appointment of the Judge of the Shariat Court are different from that of the Judge of the High Court, so, it is violative of the Constitution. The learned Counsel for the petitioners contended that it was necessary that the Chief Justices of the High Court and the Supreme Court, Azad Jammu and Kashmir, should have been consulted. Any appointment made without the consultation of the Chief Justices of the High Court and Supreme Court, is illegal.

The Supreme Court has also given the finding on this point which is as under:- * "19. It has also been argued that the terms and conditions of service of a Judge of the Shariat Court are the same as that of a Judge of the High Court but the mode of appointment of a Judge of the Shariat Court is different from that of the High Court which is violative of the Constitution Act. There is no provision in the Constitution Act which makes it imperative that the Judge of a Court constituted under sub-sections (2) and (3) of Section 46 cannot have the same terms and conditions as that of a Judge of the High Court or if the terms and conditions of service of such a Judge are equal to Judge of the High Court, he should be appointed in the same manner as a Judge of the High Court and not otherwise. If there is no such stipulation in the Constitution Act, how it can be said that as status of a Judge of the High Court and the Shariat Court is the same, the difference in mode of appointment would be deemed violative of Constitution Act." To be brief and precise, the Supreme Court while answering the Reference observed as under:- (i) that the establishment of the Shariat Court does not offend against any of the provisions contained in AJK Interim Constitution Act, 1974; (ii) the enactment of the AJK Shariat Court Act, 1993 does not, in any way, abridge or take away the Constitutional jurisdiction of the High Court as conferred on it under section 44 of the Act, 1974; (iii) the AJK Legislative Assembly has not travelled beyond its competency in enacting the AJK Shariat Court Act, 1993; (iv) the President of Azad J&K can be divested of his powers of amending or re-amending any existing law only by making appropriate amendment in Constitution Act and not otherwise; (v) the enactment known as Islami Tazeerati Act, 1974, and Azad Jammu & Kashmir Family Courts Act, 1993, and other Islamic Penal Laws and Establishment of Courts known as District Criminal Courts, Tehsil Criminal Courts and Family Courts are not against the public policy or the spirit of the Azad Jammu and Kashmir Interim Constitution Act, 1974." Now, the question emerges that after the aforesaid observations of the Supreme Court, whether this Court can decide otherwise? The basic question requiring determination is whether the decision given by the Supreme Court in advisory jurisdiction on a Reference made by the President of Azad Jammu and Kashmir under section 46-A is binding on the High Court or not? Section 42-A of the Act, 1974 contains that the decision of the Supreme Court on the question of law, shall be binding on all other Courts. I would like to reproduce Section 42-B of the Act, 1974 which is as under:" Section 42-B of the Act, 1974: Decisions of Supreme Court binding on other Courts: Any decision of the Supreme Court shall to the extent that it decides a question of law or is based upon or enunciates a principle of law, be binding on all other Courts in Azad J&K." The aforesaid provision clearly conveys that any decision to the extent that it decides a question of law or is based upon or enunciates a principle of law, be binding on all other Courts in Azad Jammu and Kashmir. The words "any decision" means that any decision made by the Supreme Court whether in appeal, revision or in a advisory jurisdiction. The decision which involved a question of law, is binding on the High Court under section 42-A of the Act, 1974.

In the instant case, the entire questions decided by the Supreme Court are the questions of law, therefore, this decision is binding on this Court. The same like proposition arose before the Supreme Court of India in which it was held by the learned Chief Justice of the Supreme Court of India, that the time which has been spent in determining the question shall not have been spent, in vain, so, the question of law decided even in advisory jurisdiction is binding on all other Courts in the territory of India.

This case was reported in AIR 1979 SC India 478 relevant page 519, para 101 which reads as under:- "There was some discussion, before us on the question as to whether the opinion rendered by this Court, in the exercise of its advisory jurisdiction under Art. 143(4) of the Constitution is binding as law declared by this Court within the meaning of Art. 141 of the Constitution. The question may have to be considered more fully in a future occasion but we do hope that the time which has been spent in determining the questions arising in this reference shall not have been spent in vain. In the cases of Estate Duty Bill, 1944 FCR 317 at pp. 320, 332, 341: (AIR 1944 FC 73 at pp. 74, 75, 79, 82); U.P. Legislative Assembly, (1965) 1 SCR 413 at pp. 446, 447: (AIR 1965 SC 745 at pp. 762, 763) and St. Xaviers College, (1975) 1 SCR 173 at pp. 201, 1402) the view was expressed that advisory opinions do not have the binding force of law. In Attorney-General for Ontario v. Attorney-General for Canada (1912) AC 571 at p. 589, he was even said by the Privy Council that the opinions expressed by the Court in its advisory jurisdiction will have no more effect than the opinion of the law officers". On the other hand, the High Court of Calcutta in Ram Kishore Sen v. Union of India, (AIR 1965 Cal. 282 and the High Court of Gujrat in Chhabildas Mehta v. Legislative Assembly, Gujrat State, (1970) 2 Guj LR 729 have taken the view that the opinion rendered by the Supreme Court under Art. 143 is law declared by it within the meaning of Art. 141. In the Province of Madras v. Boddu Paidanna & Sons, 1912 FCR 90; (AIR 1942 FC 33) the Federal Court discussed the opinion rendered by it in the Central Provinces case 1939 FCR 18: (AIR 1939 FC 1) in the same manner as one discusses a binding judgment. We are inclined to the view that though it is always open to this Court to re-examine the question already decided by it, and to overrule, if necessary, the view earlier taken by it, insofar as all other Courts in the territory of India are concerned, they ought to be bound by the view expressed by this Court even in exercise of its advisory jurisdiction under Art.

143(1) of the Constitution." In the present case, the learned Supreme Court, on the reference, issued notices to, the learned Counsels and also heard the Ex-learned Chief Justice of the Supreme Court, AJK on the reference and decided the question of law after hearing full arguments, therefore, according to my view, the decision of the Supreme Court made on the reference, is binding on this Court.

This view also finds support from AIR 1965 Calcutta page 282 relevant at page 290 which reads as under:- "That being so, even if Mr. Dutt is right in his point as to correct interpretation of the term 'Union Territory', the decision stands as a whole. In my opinion, it is also binding on this Court under Art. 141 of the Constitution. Mr. Dutt argues that decisions in the advisory jurisdiction are not binding upon any body. He cites Federal Court decision, in the matter of allocation of land and buildings, etc. (AIR 1943 FC 13 at p. 20). This was a pre-constitution decision and the Court merely held that it was "open to serious doubt " whether the decisions in the Advisory jurisdiction were binding. The matter comes well within the term of Art.

141. The law regarding several important and difficult points arising upon the interpretation of the Constitution, has been "declared". After all, "declares" means to make clear or manifest, and if the Supreme Court was not doing this, I fail to see what it was that it was doing. It may not be binding on others, but it is certainly binding on the Courts in India".

Now when the decision of the Supreme Court is binding on the High Court, then, I am bound by the aforesaid verdict of the Supreme Court. When the Supreme Court has resolved the aforesaid points, then it is my Constitutional obligation and duty to follow the view expressed by the Supreme Court.

So far as the appointment of the respondents Nos. 1 and 2 is concerned, according to my view, the appointment of the respondents is perfectly legal. The Prime Minister of AJK submitted advice to the President AJK for the appointment of the respondents Nos. 1 and 2 as Judges of the Shariat Court. The President; acted upon the advice tendered by the Prime Minister.

The perusal of the file shows that after the advice of the Prime Minister, the Chief Secretary concerned a meeting in which he differed for the appointment of Mr. Iftikhar Hussain Butt, but he did not resubmit the file to the Prime Minister for review of his order. The file does not contain any such request by the Chief Secretary for reconsidering the advice tendered to the President.

The Chief Secretary has simply written a note and if he was having any objection, then, he should have resubmitted the file to the Prime Minister and requested him for the review of his order but nothing like such was done by him, so , it could not be said that the Chief Secretary ever resubmitted the file for review of the advice. The Chief Secretary was not competent to differ with the Prime Minister. He was only competent to resubmit the file otherwise the order of the Prime Minister was binding on the Chief Secretary.

As the other contention of the learning Counsel for the petitioners is concerned that the consultation of both the Chief Justices of the Supreme Court & High Court was not obtained, so the appointment is illegal, has no substance. Section 3(1)(II) of the Shariat Court Act contains:~ (i) there shall be constituted for the purpose of this Ordinance a Court to be called "Azad J&K Shariat Court; (ii) The Court shall consist of a Chief Justice and one or more Muslim Judges to be appointed by the President.

The aforesaid provisions do not contain about any consultation of the Chief Justice of the Supreme Court and the High Court.

When the aforesaid provisions do not speak of any consultation, then, it could not be said that the consultation, was mandatory and by not consulting both the Chief Justices of the Supreme Court and the High Court, any violation of law was committed.

However, it is desired that in future, law should be amended and the consultation of both the Chief Justices of the Supreme Court and High Court in sub-section (2) of the said Act may also be incorporated.

The epitome of the above discussion is that in the light of the verdict of the Supreme Court, I found no force in these writ petitions which are hereby dismissed.

ORDER OF COURT (By Majority 3 to 1): In view of majority consensus on acceptance of petitions and rule 19 of High Court Procedure Rules, 1984, accepting the petitions, it is declared that:-- (1)(a) Sub-sections (3), (6), to and words "as the Chief Justice may appoint" of sub-section (7) of Section 3 of the Shariat Court Ordinance No. XL of 1997, dated 16.10.1997 and similar provisions in any other Act or Ordinance, if any; (b) Sub-sections (2) and (4) of Section 7; (c) The words "Shariat Court" in Section 8; and (d) Sections 9, 10, 11(2), 13(c) and 14 of the Shariat Court Act, 1993; (2)(a) Sub-sections (7), and the words "Shariat Court" in subsection (8) of Section 23; and (b) Sections 25 and 31 of Islamic Penal Laws Act i.e. The Azad Jammu and

Kashmir Islami (Tazirati) Qawanin Nafaz Act, 1974 (Act XI of 1974); (3) The Adaptation/Application and Enforcement of above-referred provisions of Islamic Penal Laws Act, conferring jurisdiction on Shariat Court alongwith similar provisions under the following laws: (i) Offences Against Property (Enforcement of Hudood) Act, 1985; Offnrnf nf 7.ina (Enforcement of Hudood1) Act. 1985; (iii) The Offence of Qazf (Enforcement of Hadd) Act, 1985; (iv) The Prohibition (Enforcement of Hadd) Act, 1985; (v) Section 338-D of the Azad Penal Code (Amendment) Act, 1995; (4) Section 14(1) of the Azad Jammu and Kashmir Family Court Act, 1993; (5) The words "Shariat Court" in Sections 2(c) and 10 of Ehtehab Act, 1997; and all other provisions under any law whereby the Shariat Court is substituted for the High Court, are declared ultra vires the Constitution, hence without lawful authority and of no legal effect; II. Appointment of respondents Nos. 1 and 2 through Notification No. LD/4/4/97-AD, dated 28.10.1997 as Judges of the Shariat Court in the Petition filed by "Genuine Rights Commission and others v. Iftikhar Hussain Butt and others" being against the Constitution and law, is declared without lawful authority and of no legal effect; III. The points of law raised, pleaded and argued in the above petitions and rejoinders but not decided, are left open to be decided as and when specifically raised in any other case.

In consequence of the above declarations, it is directed that; (i) All the cases filed and pending in the Shariat Court shall stand transferred to the High Court alongwith the record, staff and budget thereof. The case shall be deemed to have been filed in the High Court on and from the date these were filed in the Shariat Court. In directing so, we follow the principle of law laid down in the case of "Imran v. Presiding Officer, Punjab Special Court" (PLD 1996 Lah. 542) and "Delhi High Court Bar Association v. Union of India and others" (AIR 1995 Delhi 323); .

(ii) That Government is directed to initiate legislation placing all the Courts, created under law, under the supervision of the High Court, under section 46 of the Constitution, within six months.

Petitions Accepted

easylaw Case No.
1198599

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